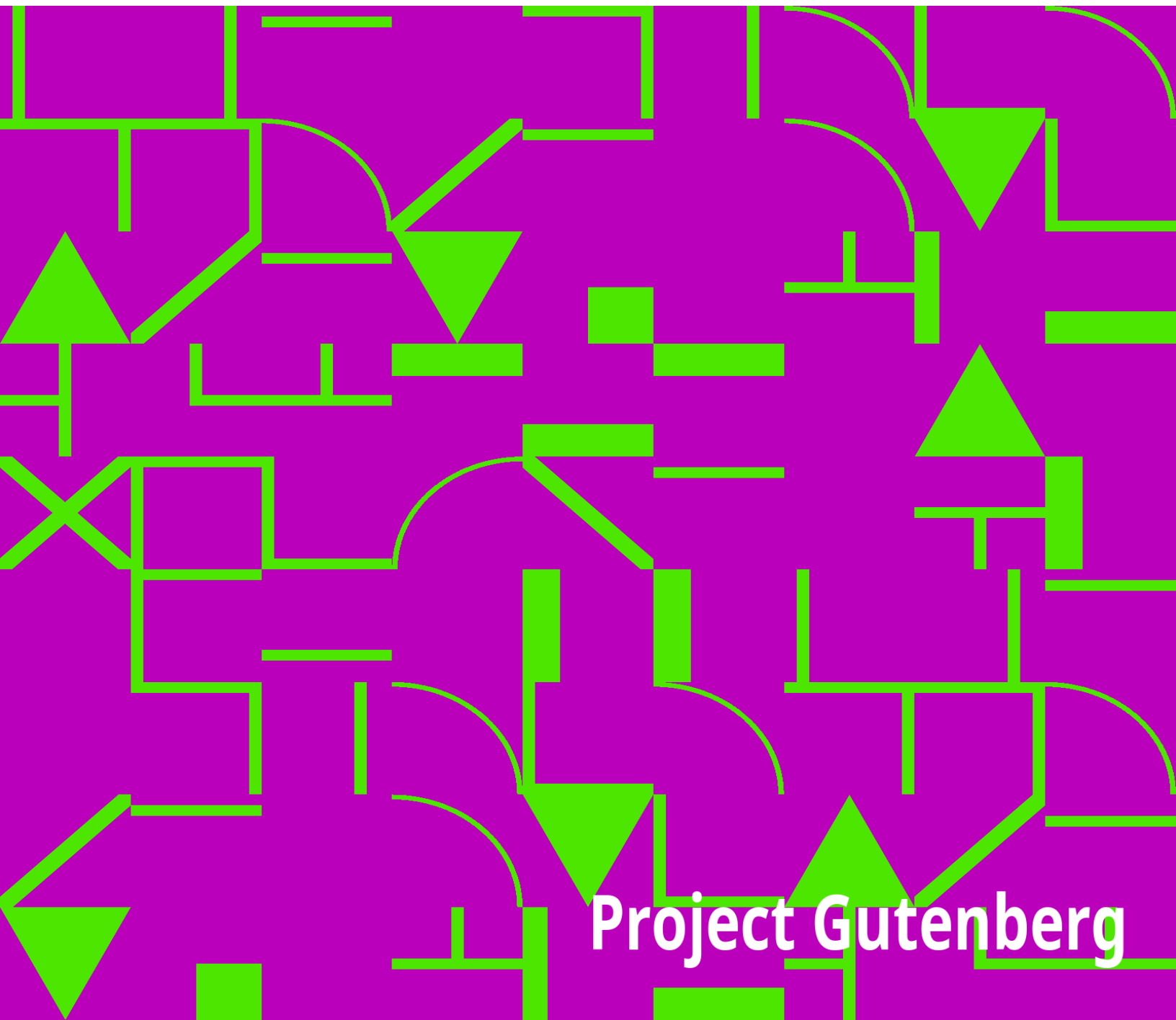


The Philippine Islands, 1493-1898 — Volume 25 of 55

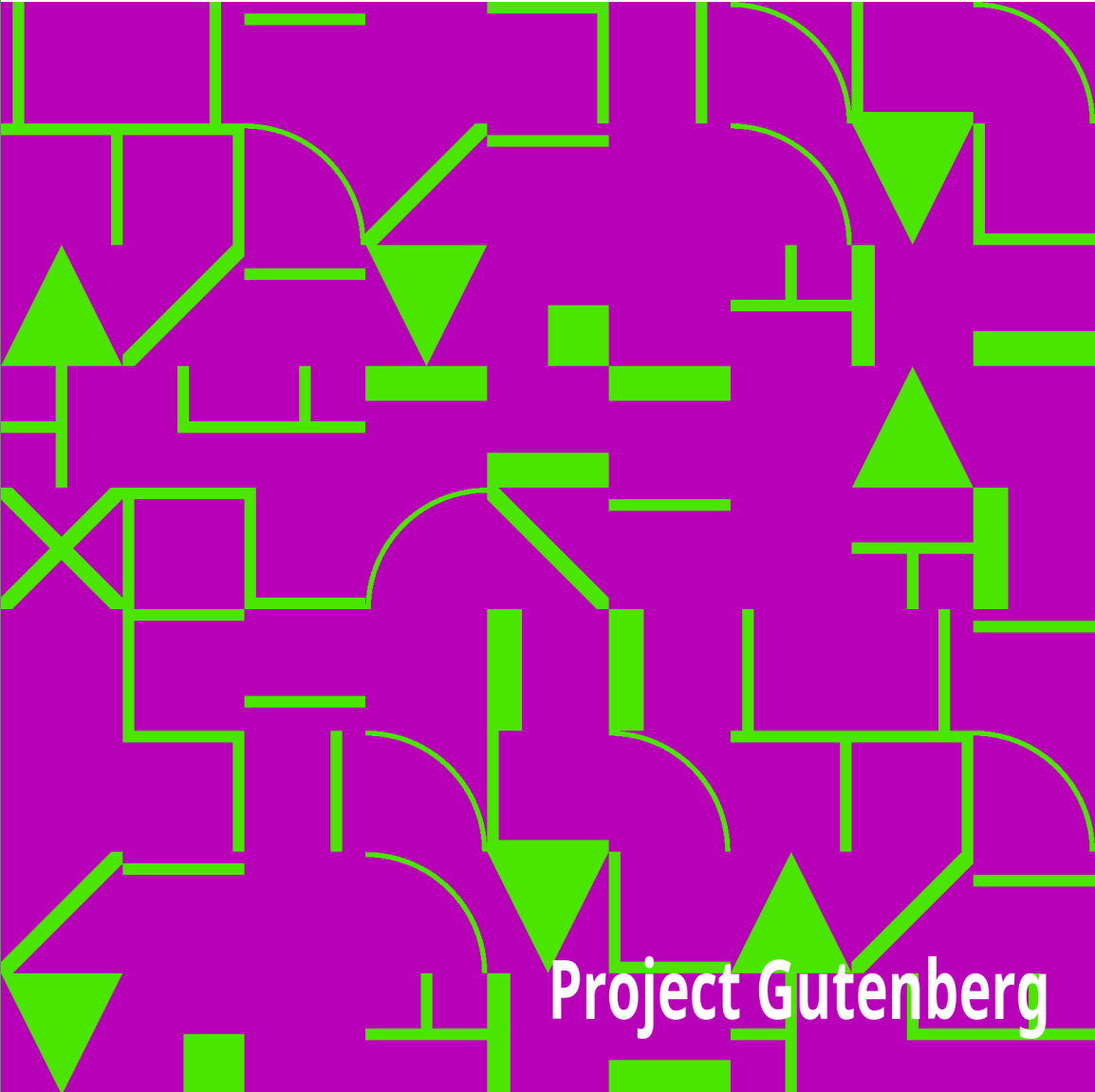
Emma Helen Blair and James Alexander

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**The Philippine Islands, 1493-1898 — Volume
25 of 55**

Emma Helen Blair and James Alexander



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*** START OF THE PROJECT GUTENBERG EBOOK THE
PHILIPPINE ISLANDS, 1493-1898 — VOLUME 25 OF 55 ***

The Philippine Islands, 1493–1898

**Explorations by early navigators,
descriptions of the islands and their peoples,
their history and records of the catholic
missions, as related in contemporaneous
books and manuscripts, showing the
political, economic, commercial and
religious conditions of those islands from
their earliest relations with European nations
to the close of the nineteenth century,**

Volume XXV, 1635–36

Edited and annotated by **Emma Helen Blair** and
James Alexander Robertson with historical
introduction and additional notes by **Edward Gaylord
Bourne**.

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Preface

The scope of the present volume (1635–36) is mainly commercial and financial matters on the one hand, and ecclesiastical affairs on the other. The paternalistic tendencies of the Spanish government are obvious in the former direction, with various restrictions on trade, and annoying imposts on all classes of people. The Portuguese of Macao are accused of ruining the Chinese trade with the islands, absorbing it to their own profit and the injury of the Spaniards. In ecclesiastical circles, the topic of prime interest is the controversy between Governor Corcuera and Archbishop Guerrero, ending in the latter's exile to Mariveles Island; it is an important episode in the continual struggle between Church and State for supremacy, and as such rightly demands large space and attention in this series. In this and several other documents may be noticed the steadily increasing influence and power of the Jesuit order in the Philippines at that period.

From *Recopilación de leyes de las Indias* (lib. ix, tit. xxxv) are compiled a series of laws relating to navigation and commerce, dated from 1611 to 1635—in continuation of those already given in VOL. XVII of this series. Married men going from Nueva España must take their wives also, or provide for them while absent. Convents shall not allow Chinese merchandise to be concealed in their houses. Royal officials who may sail in any fleet sent from Spain to the Philippines are forbidden to carry any merchandise thither on their private accounts. Flour for government use in the islands shall be provided there, and not be brought from Nueva España. The lading on the trading ships to that country must be allotted more equitably, and for the general welfare of the Philippine colonists. Disabled or incapable seamen must not be taken on these ships; provision is made for the protection and safety of the Indian deck-hands thereon; and only persons of rank are allowed to carry more than one slave each. Trade between Mexico and Peru is again forbidden; and private persons in the Philippines are not permitted to send ships, soldiers, or seamen to the mainland or other regions outside the islands. The valuation of merchandise

taken to Nueva España from Filipinas shall be made at Mexico, according to certain regulations. The officers of the trading ships shall be paid for four months only, each voyage; and the ships must leave Acapulco by December, and reach the islands by March. Extortion from the sailors by the royal officials at Acapulco is strictly forbidden. The official appointed to inspect the Chinese ships at Manila must be chosen, not by the governor alone, but by him and the Audiencia jointly. The shipment of money from New Mexico to Filipinas in excess of the amount allowed is forbidden under heavy penalties. The governors of Filipinas must keep the shipyards well equipped and provided. The ships that sail thence to Nueva España must depart in June; and careful account must be taken, by special officials, of all goods in the cargoes, and of all that the vessels carry on the return trip.

A group of royal decrees and orders occurs during the years 1633–35, concerning various interests of the Philippines. The viceroy of Nueva España is ordered (September 30, 1633) to see that the seamen needed in the islands be well treated at Acapulco, and allowed to invest some money in the Mexican trade. The governor of the Philippines is warned (March 10, 1634) to see that the lading of vessels in that trade be equitably allotted to the citizens. The viceroy is directed, at the same time, to send more reinforcements of men to the islands. The moneys granted to the city for its fortifications have been diverted to the general fund; the governor is notified (September 9, 1634) to correct this, and, two months later, to prevent the Portuguese of Macao from trading in the islands. Again (February 16, 1635) he is directed to prevent people from leaving the Philippines, and religious from going to Japan; and at the same time is despatched a reply to the Audiencia regarding some matters of which they had informed the king. The governor is ordered (November 5, 1635) to see that the garrisons in Ternate are regularly changed.

Juan Grau y Monfalcón, procurator-general for the Philippines at the Spanish court, memorializes the king (1635) regarding the importance of those islands to Spain, which country should preserve her domain there, not only for the service of God and the spread of the Catholic faith, but for the increase of the royal revenues. The writer gives a summary of the Chinese population in the islands, and the extent of their trade; the number of

Indians paying tribute, and their products. The Spaniards of Manila are greatly impoverished by their losses in conflagrations and shipwrecks, and need royal aid. If it be not given them, Manila will be lost to the Dutch, whose increasing power and wealth in the Orient is described. Especially do they request the abolition of the additional duty of two per cent on goods exported to Nueva España, which they are unable to pay. The history of this tax is outlined, and numerous reasons for its abolition are adduced. The inhabitants of Manila no longer make large profits in their trade with Nueva España; nor are the expenses of that trade such a burden as formerly on the royal treasury. The same results are really obtained from the tax levied on the Chinese goods that are carried to Manila, and this additional tax is too heavy a burden on the people. The royal duties alone amount to twenty-seven per cent on their investments of capital, and the costs and expenses to even a greater sum. Too much pressure of this sort will cause the people of Manila to abandon entirely a profitless trade; in that case the customs duties would cease, and the islands would fall into the hands of the Dutch. The misfortunes and losses of Manila by fires and shipwrecks must also be taken into account, as well as the loyalty with which they serve the crown—always ready to risk their lives and property for it, and often loaning money to the treasury in its needs. The royal fiscal makes reply to this document, advising the royal Council to give this matter very careful attention, and to consider not only the need of the inhabitants but the low condition of the royal finances; he recommends mild measures. The procurator thereupon urges, in brief, some of his former arguments (also citing precedents) for the discontinuance of the two per cent duty. An interesting compilation from the accounts of the royal treasury at Manila shows the total receipts in each of its different funds for the five years ending January 1, 1635, each year separately.

A letter of consolation to the Jesuits of Pintados who have suffered so much from the Moro pirates is sent out (February 1, 1635) by the provincial of the order, Juan de Bueras. Andrés del Sacramento, a Franciscan friar at Nueva Cáceres, complains to the king (June 2, 1635) of interference in the affairs of that order by certain brethren of the Observantine branch, who have by their schemes obtained control of the Filipinas province; and asks that the king assign the province to one or the other branch, allowing no one else to

enter it. About the same time, a high Franciscan official at Madrid writes, probably to one of the king's councilors, promising to investigate and punish certain lawless acts by Manila friars of his order.

The Jesuits of Manila having asked for a grant from the royal treasury to rebuild their residence there, the matter is discussed in the royal Council, and a decree issued (July 10, 1635) ordering the governor of the Philippines to investigate the need for such appropriation, and to report it, with other information, to the king. Pedro de Arce, who has been ruler *ad interim* of the archdiocese of Manila, notifies the king (October 17, 1635) of his return to his own bishopric of Cebú; and of his entrusting to the Jesuits the spiritual care of the natives of Mindanao, where the Spanish fortress of Zamboanga has been recently established. He asks the king to confirm this, and to send them more missionaries of their order.

In 1632 a memorial is presented before the municipal council of Manila by one of its regidores, representing the injuries and losses arising from the trade which has been commenced there by the Portuguese of Macao. It seems that they have absorbed the trade formerly carried on by the Chinese with Manila, and have so increased the prices of goods that the citizens cannot make a profit on the goods that they send to Nueva España. Navada presents seventeen considerations and arguments regarding this condition of affairs. He states that in earlier years the authorities of Manila forbade the Portuguese to come to Manila, for the same reasons that are now so urgent; that investments of capital are now seldom made by citizens of the Philippines, for lack of returns thereon; and that the royal revenues are defrauded by the enormous losses in the proceeds from the customs duties on the goods brought by the Portuguese, as compared with those realized on the goods of the Sangley traders. The Portuguese are making enormous profits, and this is ruining the citizens of the islands; moreover, they buy their goods from the Chinese at sufficient prices to satisfy the latter, and they misrepresent the condition and actions of the Spaniards, so that the Chinese are prevented from coming to Manila. The Portuguese will make no fair agreement as to prices, and some of them remain in Manila to sell their left-over goods; and these even ship goods to Nueva España in the royal ships, with the connivance of certain citizens—all of which defrauds

the Spaniards, and violates the royal decrees. Moreover, the Portuguese bring from China only silks, for the sake of the great profits thereon; while cotton cloth and other articles needed by the poor (which formerly were supplied by the Sangleys) are now scarce and high-priced. The Portuguese should be forbidden to carry on the China trade; this would quickly restore its conduct by the Chinese themselves, and funds to the royal treasury from the increase in customs duties. Manila is the only market for this trade, and can easily hold it. The Portuguese have even carried their insolence so far as to attack the Chinese trading ships (for which the Audiencia has neglected to render justice to the Chinese); they also ill-treat Spaniards who go to trade at Macao, and deal dishonestly with those who let them sell goods on commission. If the Portuguese are forbidden to trade in Manila, the Chinese will again come to trade; the citizens will enjoy good profits on their investments, and incomes from their possessions in the Parián. This memorial by Navada is discussed by the city council, who unanimously decide to adopt his recommendations and to place the matter before the governor and the citizens. The Spanish government favor (1634–36) depriving the Portuguese of the Manila trade, and decrees are sent to the islands empowering the governor and other officials to do what seems best in the case. To these papers are added a letter to the king by Juan Grau y Monfalcón, urging that the decree of 1593 be reissued, forbidding any Spanish vassals to buy goods in China, these to be carried to Manila by the Chinese at their own risk. He submits, with his letter, tables showing the comparative amounts of duties collected at Manila on the goods brought by the Chinese and the Portuguese respectively; also a copy of the aforesaid decree of 1593.

A royal decree of February 1, 1636, prolongs the tenure of encomiendas for another generation, in certain of the Spanish colonies, in consideration of contributions by the holders to the royal treasury; and various directions are given for procedure therein. The procurator Monfalcón, in a letter to the king (June 13, 1636), commends the military services of the Filipinos, and asks for some tokens of royal appreciation of their loyalty.

An account of conflicts between the civil and ecclesiastical authorities in 1635–36 is taken from the *Conquistas* of the Augustinian writer Fray

Casimiro Diaz. With this main subject he interpolates other matters from the general annals of that time. Among these is a relation of the piratical raids of the Moros into Leyte and Panay in 1634; the invaders kill a Jesuit priest. In June of the following year arrives the new governor, Sebastián Hurtado de Corcuera. At the same time, Archbishop Guerrero begins his rule over the churches of the islands; and controversies at once arise between him and the governor over the royal patronage and other church affairs. Among these is an attempt to divide the Dominican province into two, which is favored by Corcuera. This arouses bitter controversies, which involve both ecclesiastics and laymen and many conflicting interests. A case occurs in Manila in which a criminal's right of sanctuary in a church is involved; this leads to various complications between the civil and ecclesiastical authorities, involving also the religious orders—the Jesuits siding with the governor, the other orders with the archbishop. The successive events and acts in this controversy are quite fully related, the writer, as would naturally be expected, placing most of the blame upon the governor. A truce is made between the parties (January, 1636), but it soon falls apart and the quarrels begin anew; they go to such lengths that finally (in May of that year) the archbishop is sent into exile on Mariveles Island, in Manila Bay. The cathedral cabildo take charge *ad interim* of the archdiocese. Within a month, however, the archbishop is released, and permitted to return to the charge of his diocese, but on humiliating conditions. Diaz notes that ever after this episode Governor Corcuera was followed by losses, troubles, and afflictions; that many of his relatives and partisans came to untimely ends; that the archiepiscopal palace of that time was utterly destroyed in subsequent earthquakes; and that after the persecution of the archbishop the sardines in Manila Bay almost wholly disappeared. Even after the prelate's restoration, other controversies arise, which embitter his few remaining years; and he narrowly escapes capture by the Moro pirates.

Another account of the contentions of the governor with the archbishop and the orders is that given in a "letter written by a citizen of Manila to an absent friend" (June 15, 1636); it is obtained from one of the Jesuit documents preserved at Madrid. The events of that controversy are narrated from a different standpoint than Diaz's—defending the governor and the

Jesuits, and blaming the friars for having caused most of the trouble. The writer makes his account more valuable by presenting various documents and letters concerned in the affair; and describes many occurrences that do not appear in other accounts. This letter is also avowedly despatched to refute certain statements made by the Dominicans in their version of the controversy of 1635–36. It is evidently written by some friend of the Jesuits who was a lawyer—possibly by Fabian de Santillan, whom they appointed judge-conservator against the bishop. In it is a curiously lifelike and interesting picture of the dissensions that then involved all circles of Manila officialdom, both civil and religious; and of certain aspects of human nature which are highly interesting, even if not always edifying.

Governor Corcuera writes to Felipe IV (June 19, 1636), commending the Jesuits and their work in the islands, and asking that more of them be sent thither, in preference to those of other orders. The bishop of Nueva Cáceres also writes by the same mail, commending Corcuera and complaining of the hostility displayed by the orders against the governor, and of their ambition and arrogance. The bishop (himself an Augustinian) arraigns all the friar orders except his own, in scathing terms, saying of these religious: “They live without God, without king, and without law, ... as they please, and there is no further law than their own wills.” “They say openly in their missions that they are kings and popes.” Zamudio accuses them of being “notorious traders,” of domineering over both the Indians and the *alcaldes-mayor*, and of infringing upon the royal patronage; and claims that the conduct of the Franciscans in Camarines is such that he cannot remain there in his own diocese. He ascribes the late troubles with the archbishop mainly to the mischievous influence of the friars, and explains his restoration to his see as “the act of a Christian gentleman” on Corcuera’s part. The friars in Zamudio’s diocese have refused to let him make a visitation among them, although he obtained from the governor a guard of soldiers to protect him. He recommends that the friars be deprived of their missions, and replaced by secular priests.

The archbishop of Manila furnishes (1636) a list of the persons composing the ecclesiastical *cabildo* of the Manila cathedral; and another, of ecclesiastics outside that body from whom might well be supplied any

positions in the cabildo which his Majesty might be pleased to declare vacant. In each case the archbishop mentions various particulars of the man's age, family, qualifications for office, etc., and of his career thus far in the Church. According to the archbishop, some of those now in the cabildo are quite unworthy or incompetent for such positions.

THE EDITORS

April, 1905.

Documents Of 1635

- [Laws regarding navigation and commerce, 1611–35](#). Felipe III and Felipe IV; 1611–35.
- [Royal decrees, 1633–35](#). Felipe IV; 1633–35.
- [Memorial to the king, in the year 1635](#). Juan Grao y Monfalcon; September 6.
- [Manila treasury accounts, 1630–35](#). Geronimo de ———, and Francisco Antonio Manzano; August 13, 1638.
- [Letter of consolation to the Jesuits of Pintados](#). Juan de Bueras, S.J.; February 1.
- [Letter to Felipe IV](#). Andres del Sacramento, O.S.F.; June 2.
- [Letter from the Franciscan commissary-general of the Indias](#). Francisco de Ocaña, O.S.F.; June 28.
- [Opinion of Council and royal decree concerning request of Manila Jesuits for alms](#). Felipe IV, and others; July 10.
- [Letter to Felipe IV](#). Pedro de Arce; October 17.

SOURCES: The first of these documents is taken from the *Recopilación de leyes de Indias*, lib. ix, tit. xxxv; the second, from the “Cedulario Indico” in the Archivo Historico Nacional, Madrid; the third, from a MS. in the Biblioteca Nacional, Madrid; the fourth, sixth, and seventh, from MSS. in the Archivo general de Indias, Sevilla; the fifth, from a MS. in the Academia Real de la Historia, Madrid; and the last two, from Pastells’s edition of Colin’s *Labor evangélica*.

TRANSLATIONS: All these documents are translated by James A. Robertson.

Laws Regarding Navigation and Commerce

[The first installment of these laws is given in VOL. XVII, pp. 27–50. The laws in the present installment date from 1611 to 1635. The method of treatment is the same as in the laws of the above volume.]

Law XXX

The viceroy of Nueva España shall not allow any married man to pass thence to Filipinas unless he take his wife with him, or unless he have permission to leave the country for a limited time, after giving bonds that he will return within the time set; and provided he leave his wife what is necessary for her support. In no other way [shall he be allowed to go]. [Felipe III—Guadarrama, November 12. 1611.]

Law XXXIII

Many religious and laymen come to these kingdoms from the Filipinas Islands by way of Eastern India, abandoning their ministries and employments. We order the governor and captain-general to be very careful about applying the remedy, and that he give notice of this to the bishops and to the superiors of the orders in what pertains to them; and the said governor shall maintain especial watch over the laymen so that they may not go by that route. [Felipe III—Valladolid, November 4, 1612.]

Law LXXII

We charge the regular prelates that they watch very carefully and give strict commands in all the convents and houses of their orders, that under no consideration shall Chinese merchandise be concealed or hidden therein; and any violation of this rule shall be punished. [Felipe III—Valladolid, August 20, 1615.]

Law XLVI

Our fiscal of the royal Audiencia of Manila shall take part in the allotment of the toneladas that are allowed to be distributed; and it shall be done with his consent and in his presence. In the same way he shall be present at the transaction of business in our royal treasury. Nothing shall be attended to unless he be present, and he shall endeavor to avoid the losses and injuries that may arise in the aforesaid [his absence]. [Felipe III—Mérida, May 4, 1619.]

Law XXXVII

If any foreigners are engaged in the Filipinas Islands in the occupation of sailors, or if they come to Nueva España in the ships, in the line of that trade-route, they shall not be molested, nor shall they be obliged to make agreements. If any trouble result from this, we order the viceroy of Nueva España and the governor of Filipinas to advise us thereof in our Council of the Indias, so that suitable measures may be taken. [Felipe III—Santaren, October 13, 1619.]

Law VII

It may be necessary and advisable to send a fleet from these kingdoms to the Filipinas Islands by the cape of Buena Esperanza or the straits of

Magallanes and San Vicente. Those who shall sail to serve us may happen to carry in the fleet investments of merchandise, wines, oils, and other things, and with that object undertake that voyage, and be the cause of delay or loss to the fleet by their making a pretext of difficulties, from which might result great inconveniences. In order that such may be prevented, we order that when any such fleet shall be sent, no person, of whatever rank or condition he be, shall lade or allow to be laded in it any of the aforesaid goods, under penalty of losing his life and of the confiscation of his property. If such a thing happens [*i.e.*, that a fleet be despatched], this law shall be proclaimed in the port whence the said fleet sails, so that it may be obeyed and observed. [Felipe III—Madrid, December 12, 1619.]

Law VIII

In the fleets that shall sail from these kingdoms to Filipinas in order to succor them, or for matters of our service, married pilots may embark, even though they leave their wives in these kingdoms. And because when they shall have reached the said islands, they will wish to return to their families, and it is right that no obstructions be placed in their way, and in that of others, we order the governors to allow them to return and perform their voyage, and to give them the necessary despatches. [Felipe III—Madrid, December 12, 1619.]

Law XXVI

There is sufficient flour in the Filipinas for the supplies that are provided there on our account. Inasmuch as that taken from Nueva España is not so good, we order that provision of this product be not made from Nueva España, in consideration of the fact that it is advisable to benefit our royal treasury as far as possible. [Felipe III—Madrid, May 23, 1620.]

Law XLV

In the permission conceded to the inhabitants of Filipinas of the lading-space in the ships that sail to Nueva España, it is ordered that this be distributed according to their rank and wealth. Notwithstanding, the governors do not make the allotment in accordance with this order. Sometimes they give it, under pretext of gratuities, to officers on half-pay, thus obliging the inhabitants to buy space at excessive prices. Sometimes they allot many toneladas for charitable purposes, in order that these may be sold, and the price [obtained for them] be used therefor, to the prejudice of the general welfare; this results from causing them to be sold to those who will pay the best price for them, and merchants who have companies in Méjico buying them—to whom a great part of the merchandise generally belongs, to the prejudice of the citizens to whom is conceded the permission by which favor is shown them. We order and command the governors to observe the ordinance; and if they violate it, it will be placed as a clause in their residencia. [Felipe III—Madrid, May 23, 1620.]

Law XIX

The ships which shall be built for the trade between Filipinas and Nueva España shall have and shall without fail carry their hearths under the forecastle, and in no other part. In no case shall they be carried above deck. [Felipe III—Madrid, May 29, 1620.]

Law XLIX

The accommodations distributed to the officers in the ships of Filipinas shall be moderate, and shall conform to the capacity of the ships. The governor shall assign to each one the space which he may occupy and fill, and he shall not exceed it. [Felipe III—Madrid, May 29, 1620.]

Law LI

In the enrollments of seamen which are made in Filipinas, it occurs that a ship admits and carries sixty sailors, not thirty of whom are of use, and in time of need there is no one to work; and there is signal danger in so long and difficult a voyage. We order the governor and captain-general always to provide and order that the sailors and common seamen be effective. If our officials do not comply with this, it shall be placed as a clause in their residencias. [Felipe III—Madrid, May 29, 1620.]

Law LIII

The Indian deck-hands on the ships of Filipinas shall all be from that coast; and shall be clothed, in order to protect themselves from the cold of the voyage. Our fiscal of the Audiencia of Manila shall enroll, and take a memorandum of, the Indian deckhands who shall be embarked. On the return from the voyage, he shall take account from the ship's officers of the payments and treatment that shall have been given the Indians. If any of them shall have died from the causes above mentioned, complaint shall be lodged against the guilty, until they are punished as a warning and example; and it shall be a charge in their residencia against the said officers, who must be obliged to give account of those Indians. If any Indian die from sickness or accident, a report must be made of it in the same vessel, as soon as it happens; and if they do not do that, and the Indian dies, they shall be considered as confessed criminals, guilty of the crime. [Felipe III—Madrid, May 29, 1620.]

Law LV

Inasmuch as many slaves are usually carried in the ships from Filipinas, who consume the provisions, we order and command that no passenger or sailor shall take more than one slave, except persons of rank, and that for good cause, and with careful restriction. And inasmuch as the duties are paid in Acapulco on those who are sold there, because of the inconvenience of paying them in Manila, we order that the president and auditors of our royal Audiencia of Filipinas provide that it be so observed and executed. [Felipe III—Madrid, May 29, 1620.]

Law LVII

We order that our royal Audiencia of Manila rate the amount of what the mates on the ships shall exact in the port of Acapulco for the guard of boxes, barrels, and other articles of merchandise. If this be exceeded, claims may be made against them in their residencias at the end of their voyages. [Felipe III—Madrid, May 29, 1620.]

Law LXXVII

Some ships sail from the ports of Callao and Guayaquil to Nicaragua and Guatemala, under pretext of going for pitch and other things, and then often go from there to the port of Acapulco to lade Chinese cloth, in return for a great sum of silver which they carry, practicing many efforts and frauds. We order that under no consideration may any ships or other vessels from the said ports or provinces of Perú go to that of Acapulco; and that the viceroys shall order and take what measures may be necessary so that this be obeyed and observed. They shall impose what penalties they choose; and they shall execute those penalties on the transgressors in a severe and exemplary manner. [Felipe IV—San Lorenzo, October 20, 1621.]

Law XXXVIII

We order and command the governors of Filipinas not to permit private persons of those islands to despatch ships to Macan, Malaca, Siam, Camboja, and other parts of that archipelago, or to take seamen or soldiers in them; for it is advisable to have ships and a fleet ready for the defense of Manila, which can be defended or garrisoned in no other way; and they shall attend to the correction of this as a thing so important, and shall give such orders as are most expedient. [Felipe IV—Madrid, December 31, 1622.]

Law LXIII

By reason of haste in the despatch [of the ships], the clerks of the register are usually left, through forgetfulness, with some registers which have been made of the merchandise; and, as the registers do not appear, the judges condemn the goods as confiscated. We order the viceroy and auditors of our royal Audiencia of Méjico that, when this happens, they shall enact justice¹ so that the parties' right to collect it shall remain free. [Felipe IV—Madrid, October 9, 1623.]

Law XXII

The governors and captains-general of the Filipinas Islands and Maluco, and our other judges and justices, shall observe and shall cause to be observed all the privileges, immunities, and exemptions of the artillerymen on that route and commerce, and of those who live at the ports, forts, and fortifications, which for that reason belong to them, in respect to the trade of the Indias from these kingdoms to those islands, in accordance with título 22 of this book.² [Felipe IV—Madrid, December 6, 1624.]

Law LXXIX

We permit the viceroys, auditors, governors, royal officials, and government agents who shall have been appointed, and who have to go by way of the South Sea from Nueva España to Petú, and from there to Nueva España, to take their property registered, if they swear that it is their own and not another's under penalty of incurring confiscation [of the same]. [Felipe IV—Madrid (?), October 5, 1626.]

Law LXII

We declare and order that the valuation of merchandise taken to Nueva España from Filipinas shall be made in Méjico by an accountant of the bureau of accounts, an officer of our royal treasury of the said city, and one of the members of the consulate of the said city. The viceroy shall appoint them every year, one fortnight before the said valuations are to be made, and he shall have special care in the making such appointment. In case that there shall be any discord between the three said persons, the viceroy shall appoint another accountant and royal official other than the first, so that these may meet with them. That measure which has two votes shall be adopted, even though they be but two who are in complete harmony. And if they should not be in harmony, and should be two to two of different opinions, they shall have recourse to the viceroy; and the decision of that side with which he shall agree shall be put into execution, without reply or contradiction.³ [Felipe IV—Madrid, June 4, 1627.]

Law LXVII

We order all the judges and justices before whom Chinese cloth shall be denounced as being contraband, not to condemn it as confiscated; but to send it to these kingdoms in a separate account directed to the president and official judges of the House of Trade of Sevilla, so that it may be sent from

there to the treasurer of our Council of the Indias. Thus shall it be done on all the occasions that arise.⁴ [Felipe III—Madrid, April 18, 1617; Felipe IV—Madrid, March 3, 1629.]

Law L

The commander and officers whom the governor of Filipinas appoints for the ships sailing to Nueva España, shall not be aided with pay for more than four months, both in Méjico and Filipinas. At the termination of the trip, their accounts shall be balanced, and the remainder for the time while they shall have served, and no more, shall be paid them. [Felipe IV—Madrid, December 14, 1630.]

Law XIII

Our fiscal of the Audiencia of Filipinas shall, according to the settled custom, be present at the inspection of ships which is made in the port of Manila, on those ships which come from Nueva España and other parts; and he shall denounce those which carry more than what is permitted. The judges who shall try the cause shall apply the merchandise denounced to our royal exchequer, and shall punish the guilty rigorously. [Felipe III—Madrid, May 4, 1619; Felipe IV—Madrid, March 25, 1633.]

Law LXXIII

In the court trials regarding the seizures of smuggled goods from China which shall be seized in Perú, what shall pertain to the denouncers—namely, their third part—shall be paid to them immediately in money, provided it does not pass or exceed that ordered by laws of título 17, libro 8, which treat of seizures of smuggled goods, irregularities, and confiscations;

and provided that the money be not taken from our royal treasury under any consideration, but from expenses of justice or fines forfeited to the treasury, or from the proceeds from merchandise or other articles which generally come with those that are contraband and outside the register, which are not from China, or of those prohibited to be sold or traded in Perú. We charge the viceroys to advise us on all occasions, with specification, of these denunciations, and of the part given to the denouncer, and in what quantity and kind, making us a clear and distinct relation. [Felipe IV—Madrid, March 31, 1633.]

Law XXXI

It was ordered that the ships that go from Nueva España to Filipinas must sail from the port of Acapulco by the end of March, without extending even a day into April. And inasmuch as we are informed that that is inconvenient, we order that the ships be prepared with all that is necessary by December, so that at the end of that month, they may leave the said port of Acapulco, so that they may be able to arrive at the said islands, at the latest, some time in March. It is our will that this be executed inviolably, and it will be made a charge of omission in the residencia of the viceroys of Nueva España; and, if they do not so do, we shall consider ourselves disserved. [Felipe IV—Madrid, August 26, 1633.]

Law XXV

We order the viceroys of Nueva España to give the necessary orders, and to take suitable precautions, that the provision which is made annually for the departure of the ships which sail from the port of Acapulco to Filipinas be made there very seasonably, so that the ships may not be detained, or those who are to embark suffer because of the short time allowed for departure or the inadequate provision of food. [Felipe IV—Madrid, September 30, 1633.]

Law LXI

Inasmuch as it has come to our notice that the agents and officials of our royal treasury at the port of Acapulco maltreat the sailors and others who come from the Filipinas Islands, and cause them much trouble and vexation, by obliging them to give up what they carry, obtained through so long and arduous a voyage: we order the viceroys of Nueva España to have the matter examined, and the guilty punished. They shall establish what remedy seems to them most effective, so that like offenses may be avoided. [Felipe IV—Madrid, September 30, 1633.]

Law III

It is usual for the governor and captain-general of Filipinas to appoint a person for the inspection of the Chinese ships when they come with their merchandise to the city of Manila. That person is usually one of his household, and from it follow certain injuries, and no one dares to demand satisfaction. We order the said governor and the royal Audiencia of Manila to meet to discuss this matter, and to choose a suitable person for this office. They shall endeavor to select one fitted for this task, and acceptable to the natives and foreigners. They shall take in this regard the measures which are expedient, and shall always advise us through our Council of the Indias of the person whom they shall elect, and of all else necessary for the good of that community. [Felipe III—San Lorenzo, August 25, 1620; Felipe IV—Madrid, November 10, 1634.]

Law XIV

We order that money from Nueva España shall not be sent to Filipinas in excess of what is permitted; and all that is found en route from Acapulco

without a written permit, beyond the apportionment made of the five hundred thousand pesos permitted, shall be confiscated and applied to our treasury and exchequer. The driver who shall carry such money shall incur the confiscation of his beasts of burden and slaves, and a fine of two thousand Castilian ducados, applied in the same way [as the above], and the stewards in charge of the illegal funds shall be punished with ten years' service in Terrenate. [Felipe IV—Madrid, January 30, 1635.]

Law XLIII

The governors of Filipinas appoint commander, admiral, and officers for the ships which sail to Nueva España; and in case of the death or absence of these, they make appointments of other persons, in accordance with the usual procedure. And inasmuch as it is advisable to do this, we order our viceroys of Nueva España to observe and cause to be observed what is ordained in this regard, and the custom which has always been observed, without making any innovation. [Felipe IV—Madrid, February 5, 1635.]

Law XXXVI

We charge and order the governors of Filipinas to be very careful to see that the shipyards do not lack lumber for the repair of ships, rigging, war-stores, and food; and that they provide throughout a sufficient supply of these articles and of all else necessary, with careful precaution. [Felipe IV—Madrid, February 21, 1635.]

[Although the final dates of the two following laws are later than 1635, they are here included in order to keep the laws of this título together.]

Law XXXII

The ships which are to be despatched and to sail from the Filipinas Islands for Nueva España shall depart in the month of June; for there is great danger of their having to put back or of being wrecked if they sail later. We order the governor and captain-general of those islands to have it observed and executed accordingly. But this must be after holding a council of persons experienced in that navigation—so that, having heard and weighed their opinions, the most advisable measures may be enacted. [Felipe IV—Madrid, December 31, 1622; January 27, 1631; February 14, 1660.]

Law XLI

The overseer and accountant of these voyages shall have everything in charge, and they shall set down and keep in their books an account of what is laden in merchandise, and what is carried on the return trip of the ships. They shall be chosen from persons who are well approved, who have given satisfaction, and are trustworthy, and they shall be given the proper and sufficient salary, which shall not exceed two thousand ducados apiece for the voyage; for they shall not lade any quantity of merchandise, under penalty of the fines imposed by law 48 of this título.⁵ We order that they sail going and coming, one in the flagship and the other in the almiranta, alternating in all the voyages. The governor shall give them the instructions which they are to observe during the voyage. Their residencia must be taken as soon as the voyage is finished, as is done with the other officers of that fleet, before they can sail on another voyage. [Felipe III—Madrid, May 23, 1620; Carlos II (in this *Recopilación*).]

¹ A note to this law in the *Recopilación* says that the prohibition of reciprocal commerce between Perú and Nueva España for natural products, and with various limitations, was raised by a decree of January 20, 1774.

² Título xxii is entitled: “Of the captain-general of artillery, the artillerymen-in-chief, and others of the war and trading fleets; the artillery, arms, and ammunition.” It consists of forty-eight laws.

³ The above law refers to lib. viii, tit. xvi, ley xvii, which reads as follows: “We order that the valuation of Chinese merchandise be made in Nueva España, in the same way as the merchandise which is sent from these kingdoms, observing in it the ordinances that have been established. After it has been made, it shall be remitted to the bureau of accounts of Méjico, so that it may make the account, and give certifications of what must be collected, and from what persons.” The law is dated Madrid, December 6, 1624.

⁴ See VOL. xvii. p. 34, law lxxi.

⁵ See VOL. XVII, pp. 39, 40.

Royal Decrees, 1633–35

The King. To the Marqués de Cerralvo, my relative, member of my Council of War, my viceroy, governor, and captain-general of those provinces of Nueva España, and president of my royal treasury therein; or the person or persons to whose charge the government of them may be entrusted: the king my sovereign and father (whom may holy paradise keep!) ordered to be issued, and did issue, a decree (which is found at folio 163 verso, of this same volume, number 144).¹ And now Don Juan Grau Monfalcon, procurator-general of the city of Manila of the Filipinas Islands, has related to me that, as is well known, there is great need of sailors and seamen in the navigation of the said Filipinas Islands, and that, for the islands to obtain these men it is advisable that good treatment and [an opportunity for] passage be given to them in the seaports; and that they be granted some means of gain, so that they might, by reason of that self-interest, be encouraged and induced to serve in the voyages—shielding them from the annoyances inflicted upon them by the officials at the said ports. He has petitioned me that I be pleased so to order, and that their chests be not opened; that permission be granted them so that each seaman may carry up to seven thousand pesos of investments in that voyage, in which is to be included the quantity which they have hitherto been permitted to carry; and that the castellan and my other employees at the port of Acapulco shall cause them neither vexations nor injuries. The matter having been examined in my royal Council of the Yndias, I have considered it fitting to issue the present, by which I order you to observe and fulfil, and to cause to be observed and fulfilled, the decree herein incorporated, *in toto* and exactly as is therein contained, and that you do not violate it or pass beyond its tenor and form.² In its fulfilment, you shall give what orders may be necessary, so that care may be taken of those men at the port of Acapulco and so that all proper facilities and despatch may be accorded them. Madrid, September 30, 1633.

I THE KING

By order of the king our sovereign:
DON FRANCISCO RUIZ DE CONTRERAS

The King. To my governor and captain-general of the Filipinas islands, and president of my royal Audiencia therein. Don Juan Grau y Monfalcon, procurator-general of that city, has informed me that I ordered, by a decree of May 23, 1620, that the cargo of the ships be distributed to the inhabitants with all fairness; but that, contrary to the orders therein contained the governors have introduced the custom of giving a part of the cargoes to the sailors and seamen, and to the soldiers, hospitals, works of charity, clerics, and their own servants, as also to the auditors, fiscals, and officials of my royal treasury, whereby the favor that had been shown the inhabitants has been diminished. He also states that Don Juan Niño de Tavora tried to make the said allotment, although it belonged to the city; and that the people most needy, and those to whom there are greater obligations, did not enjoy the benefit of this favor. He petitioned me to be pleased to order that those decrees which have been given be observed, since that city has served me, and always serves me with the love and zeal which has been experienced—and lately, notwithstanding the losses that they suffered in the flagship which sank in that port, they gave me an offering of four thousand ducados; and that, whenever that allotment be made, it be with the consent of my governor and the approval of the city. By that means the complaints and dissatisfaction among them will be avoided. The matter having been examined in my royal Council of the Yndias, I have deemed it best to order and command you, as I do order and command you, to observe and fulfil, and cause to be observed and fulfilled, the things that are ordered by virtue of decrees, and the orders that have been given, since you see how just it is to give entire satisfaction to the parties [concerned]; and that your measures be such that those allotments be made with all equity and justice, preventing the quarrels and complaints that might arise on that account if the contrary were permitted. Madrid, March 10, 1634.

I THE KING

By order of his Majesty:
DON GABRIEL DE OCAÑA Y ALARCON

The King. To Marqués de Cerralvo, my relative, member of my Council of War, governor and captain-general of the provinces of Nueva España, and president of my royal Audiencia therein: Don Juan Grau y Monfalcon, procurator-general of the city of Manila, has informed me that there is great need of sailors and soldiers in those islands, and that they need at least 2,200 soldiers for the defense of those islands—600 being assigned to the city; in the fort and redoubt, 100; in the fort of Cavite, another 100; in the galleys, a like number; in Cibu and Caragua, 200; in the island of Hermosa and Cagayan, 400; and in Terrenate, 600. There can be no security without them, and although some reënforcements are sent from Nueva España, as these are so few those needs are not remedied. It is also necessary that the ships that sail from Acapulco to the said islands leave at the latest by the twenty-fifth of March, because of the troubles that result if the contrary be done. He petitioned me to order you to make the reënforcements to the fullest extent possible, and to send annually at least four hundred soldiers, eight hundred and fifty sailors and the artillerymen that you can send, since the conservation of the islands depends on them. The matter having been examined in my Council of War of the Yndias, I have considered it fitting to give the present, by which I charge and order you to fulfil in both matters the commands of my decrees in this regard. Madrid, March 10, 1634.

I THE KING

By order of his Majesty:

DON GABRIEL DE OCAÑA Y ALARCON

The King. To Don Sebastian Hurtado de Corcuera, knight of the Order of Alcantara, my governor and captain-general of the Filipinas Islands, and president of my royal Audiencia resident therein, or the person or persons in whose charge their government may be: Don Juan Grau y Monfalcon, procurator-general of that city, has informed me that that said city has been granted, for its fortification, the proceeds of the income from the monopoly on playing-cards and other articles, and that the money that has been received from those sources was always paid into the fortification fund; but that, in violation of that, Don Juan Niño de Tabora, my former governor of those islands, ordered that the said sums be placed in my royal treasury, as

was done. On that account, the money that is so necessary for the different works, the repairs, and fortifications that arise daily, is lacking. He says that the city having petitioned the governor to have the sums that belonged to the said fund returned, he refused to comply; but on the contrary ordered that the city furnish, from its communal property, all that was thus placed in my royal treasury. He petitioned me to be pleased to have my royal decree issued ordering that no room be given for such innovation, that the city and its council might spend and distribute their communal funds freely, as they have always done, since that pertains to the city; and that the kinds of income that have been customary in the past be placed therein and in no other fund. The matter having been examined in my royal Council of the Yndias, I have considered it fitting to give the present, by which I order you to cause to be observed and fulfilled exactly the orders that were given and commanded in this regard before the said Don Juan Niño de Tavora made this innovation. Madrid, September 9, 1634.

I THE KING

By order of the king our sovereign:
DON GABRIEL DE OCAÑA Y ALARCON

The King. To the president and auditors of my royal Audiencia of the Filipinas Islands: Don Juan Gran y Monfalcon, procurator-general of that city, has reported to me that the Portuguese nation who are living in Eastern Yndia have attempted trade and commerce with those islands, to the detriment of the Sangleys who go to sell their merchandise at that city; and that that intercourse was already established, contrary to the orders and decrees that have been given, to the very great damage and prejudice of my royal treasury and the good government of the islands. He petitioned me to be pleased to have a speedy and efficacious remedy applied to so grave a matter and one of so great importance. All the papers that were presented in regard to this matter, together with what my fiscal declared and alleged therein, having been examined in my royal Council of the Yndias, I have considered it fitting to send you a copy of them so that you may examine them; and, should the relation made therein appear to you to be correct, you shall immediately apply the remedy for this injury. By another decree,³ I

order my fiscal of my Audiencia there to take up that case, and to plead all that he shall deem advisable for the advantage and increase of my royal treasury, and the observance of the orders and decrees that have been issued, since that pertains to him by reason of his office. You shall continue to advise me of all steps that you shall take, and of what you shall do in the future, in this matter. Madrid, November 10, 1634.

I THE KING

By order of the king our sovereign:

DON GABRIEL DE OCAÑA Y ALARCON

The King. To Don Sebastian Hurtado de Corcuera, whom I have appointed as my governor and captain-general of the Filipinas Islands, and president of my royal Audiencia therein: a letter which was written to me under date of the former year 633, by Don Juan Cerezo de Salamanca, my governor *ad interim* of the said islands, on a matter of government, has been received by my royal Council of the Yndias, and answer is given in this present letter. He says that the relationship with Japon has been destroyed because the Dutch have angered that king by their accustomed trickery, under pretext of the religious who have preached—by reason of which, fearful of new conquests, all his oldtime friendship has been converted in those parts into hatred, and he makes use of severe methods with the Catholics—and that many of the said religious who have gone to that kingdom have acted with some imprudence, causing more trouble than gain. For the remedy of that, he considers it advisable to charge the provincials not to grant such licenses. Notwithstanding that that has been commanded on other occasions, as you will understand by the decrees that have been issued, it has seemed best to me to advise you of it, so that you may pay heed to this matter, and so that you may take such measures as are most advisable for my service and the conservation of those islands.

He also advises us that there is a lack of people in those islands, and that their inhabitants are decreasing in number by reason of the unhealthful climate; and that it would be important to provide a remedy for that, because of the need for it. I charge you to avoid, as far as possible, the giving of passports for granting passage from the islands. The viceroy of

Nueva España is ordered to have a care in this, and to send more people than is his regular custom. Madrid, February 16, 1635.

I THE KING

By order of the king our sovereign:
DON GABRIEL DE OCAÑA Y ALARCON

The King. To the auditors of my royal Audiencia of the Filipinas Islands: the letter which you wrote me under date of August 8 of the former year 1633 has been received and examined in my royal Council of the Yndias, and answer is made to you in this present letter.

The reformation that you have made in the licenses that were given by the government for rice-wine stills, in which so great a quantity of rice was consumed, is well advised for the present, as it is beneficial to the common welfare; and if you shall encounter any difficulties in regard to this in the future, you shall advise me of them.

You say that when that Audiencia was governing because of the death of Don Alonso Faxardo de Tenza, they began to introduce the inspection of the prisons of the Parián and of Tondo, on the Saturday of each week, as they are very near that city. Afterward in the time of the other governors, that custom was dropped, as they thought that it deprived them of some of their gubernatorial powers. As it is advisable that more attention be given to the alcaldes-mayor, and that certain annoyances to the prisoners be avoided, the said visits were continued, as they were so advisable to the service of God our Lord and to my own. I charge you to continue them for the present, if there is no disadvantage to prevent it.

The efforts that you have made in regard to the building of a galleon that is being constructed, in the province of Camarines, have met my approval.

As for the encomenderos who may have recourse to that Audiencia beyond the limits of its commission, whose encomiendas were declared vacant by the visitor, as they had failed to secure their confirmations within the

specified time, justice will be done to the parties when they come to ask for what is necessary for them.

In regard to the allotment of the lading-space in the ships, that you made to the inhabitants of that city, in accordance with the agreement that was made for that purpose, it is approved. Madrid, February 16, 1635.

I THE KING

By order of the king our sovereign:

DON GABRIEL DE OCAÑA Y ALARCON

The King. To Don Sebastian Hurtado de Corcuera, knight of the Order of Alcantara, my governor and captain-general of the Filipinas Islands, and president of my royal Audiencia therein: I have been informed that the reënforcements for Terrenate are the matters that give most anxiety to those who serve me in that government, and that these are made at great risk and at great expense to my treasury; that that of the former year 1632 had gone there in very creditable manner, because it was carried by a fortified ship, which could act defensively and offensively against the Dutch; that on account of the information received that the enemy was preparing to await with greater forces the ship that was to sail in the year 1633, the reënforcements were prepared in two war galleons; that, in the future, the attempt would be made to send all the reënforcements with two entire infantry companies, so that two other companies could return thence—by which method [the garrison of] that presidio will be changed every three years, and all the companies of the army will share the work equally; and that it was advisable for my service that I order you to do this with exactness, since trouble arises by sending parts of companies, as only the favored ones leave that presidio, and by exchanging entire companies all will enjoy the privilege of all the aforesaid. Accordingly, I have thought best to order and command you, as I do order and command you, to see to it that remnants of companies are not sent to Terrenate; but that entire companies go, in the form and manner herein contained, so that entire companies of those who are exchanged may return. You shall advise me of whatever you shall enact in this matter. Madrid, November 5, 1635.

I THE KING

By order of the king our sovereign:
DON GABRIEL DE OCAÑA Y ALARCON

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- 1 The parenthetical clause is evidently the work of one of the clerks who copied the decrees in the “Cedulario Indico.” The decree mentioned, whose general tenor can easily be seen from the present decree, is not given, probably owing to an oversight of the transcriber, too late to rectify.
 - 2 The decree whose location is above given.
 - 3 Also contained in the “Cedulario Indico,” immediately following the decree here presented, to which it is very similar in tenor.

Memorial to the King by Juan Grao y Monfalcon in the Year 1635

The procurator-general of the city of Manila and the Philipinas Islands, to his Majesty. He considers the reasons why it is advisable to pay careful attention to the preservation of those islands; and entreats his Majesty to have the collection of the two per cent duty recently imposed on merchandise shipped for the commerce of Nueva España discontinued.

Sire:

Don Juan Grao y Monfalcon, procurator-general for the distinguished and loyal city of Manila, the metropolis and capital of the Philipinas Islands, declares that the preservation and protection of these islands are of the utmost consideration and importance, and deserve the most careful attention, on account of the great advantages and profits which they afford—to say nothing of the principal consideration, namely, the service of God, and the propagation of religion and the Catholic faith. In the aforesaid city and in the other islands that faith is established, and will steadily become stronger, increasing and spreading not only among those but other and neighboring islands. This is especially true in Great China and Japon, which from continual intercourse and friendly relations with the said Philipinas Islands may—if the Christian faith is preserved and permanently maintained in the latter, and as deeply rooted and as pure and constant as at present—look, in the said matter of religion, for felicitous and great results. The same [may be said] for what concerns the service of your Majesty, and the profitable and advantageous increase of the royal estate, since even the profits which your Majesty at present enjoys and possesses in the said city and the other islands are many, and of great importance. For in one village alone, which they call Parián, an arquebus-shot from the said city [of Manila], more than twenty thousand Chinese Indians called Sangleys, and in the other islands over ten thousand more, have all come from Great

China and Japon for their own private affairs and interests. It is they who build up and maintain the greater part of the traffic and commerce of the islands. From that result the trade with Nueva España, and the ships which sail thither annually, laden with many different kinds of merchandise (carried [to Manila] and bartered by the said Sangleys)—such as much gold (wrought, and in sheets); diamonds, rubies, and other gems, besides a great quantity of pearls; many silk textiles of all colors—taffetas, damasks, satins, silk grograms, and velvets—and raw silk; a quantity of white and black cotton cloth; amber, civet, musk, and storax. Thence arises annually great gain to the royal treasury, on account of the many considerable duties which are paid and collected—both when the ships leave the said city of Manila, and their islands and ports, and in that of Acapulco; and later, when they enter Nueva España and the City of Mexico. There, when the ships leave for the said Filipinas, the duties are doubled, as well as in the said port of Acapulco, by those duties anew incurred and paid, the [trade of the] said Sangleys being a great part in this receipt [*adquisicion*]. Of no less consideration is the tribute which the Sangleys pay to the royal treasury for their license, and right of entrance and residence in the said village of the Parián, and in the other islands where they reside. Since the said Sangleys number thirty [thousand], they pay in most years an annual sum of two hundred and seventy thousand reals of eight (which means nine reals of eight for each license), which are placed in the royal treasury. In the islands of Pintados and other islands which belong to the said Filipinas, there are one hundred and fourteen thousand two hundred and seventeen Indians, all paying tribute to the royal treasury. Their conservation is very necessary, as they are no longer wild and are excellent workmen, and for that reason are people of utility and profit for any occasion that may arise—especially as there are also many gold mines in the said islands, whence is obtained a quantity of gold. There are also other fruits of the land in great abundance, especially wax, cotton, large cattle, swine, fowls, rice, and civet, besides other innumerable products and means of gain. All of this tells and publishes the great importance of the said city and its islands, and of their preservation; and the many incomparable wrongs which would follow if the said city, the capital of the others, were to become depopulated, ruined, or destroyed. It is very near to that, because of the great and continual misfortunes and disasters which the inhabitants of it have suffered and are

suffering, caused by fires that have destroyed almost the entire city and the property of the said inhabitants, and the shipwreck and loss of many different vessels, which have been miserably wrecked during the usual voyage from the said city to Nueva España, with the destruction of the goods and wealth of the said inhabitants which are carried in the ships. The effects from so many and so large losses last and will last always; for those losses have ruined and impoverished the inhabitants to a degree very different from what one can imagine and explain. Consequently, if the generosity, magnificence, and powerful hand of your Majesty do not protect it, one can and must fear the very certain ruin and destruction of the said city and of the other islands, which are under its government and protection. From that [ruin] will follow great and intolerable disadvantages and losses to the disservice of the royal crown, the loss of that land and community, and (what is most reprehensible) that of religion and the Catholic faith. Although this is so deeply rooted in the said city and in the other islands, it would be lost, if the Dutch gained possession of Manila, as they have done of many neighboring islands and forts: namely, the island of Motiel; that of Maquien, where the Dutch have two forts, named Talagora and Mosaquia; the island of Ambueno, where the above-mentioned people are fortified with considerable artillery and a Dutch population; that of Xacadra, where the said Dutchmen have their capital and where a captain-general and an Audiencia composed of four auditors reside, and a settlement and population of one thousand Dutch inhabitants; the islands of Xaba Major and Minor, and that of Mindanao. In some of those islands they have established their factories, where they collect what they pillage, and [carry on] their trade with the Chinese and other nations. They gather in the said islands (whose products consist of cloves, pepper, and nutmeg) an exceedingly great quantity [of this produce], for which three ships are annually despatched to Olanda, laden with more than three thousand five hundred and fifty valas [*i.e.*, *bares* = bahars] of cloves (each vale [*sic*] containing four hundred and sixty libras), with a great quantity of pepper, and of the said nutmeg and its mace; also silks, cinnamon, and other products. Hence they are extremely well fortified in the said islands, as well as in others, as they have an understanding with the surrounding kings. For the king of Daquen gives them eighty thousand ducados annually in order to have them protect his country, and so that his vassals may go and

navigate safely in those straits on their trade and traffic with the islands surrounding his kingdom. All of that obliges the said city of Manila and its other islands to be more watchful and to maintain larger forces and supplies. For were there neglect in this, the power and invasion of the said Dutch, who have so frequented and learned the said straits (of which they have so thoroughly taken possession and with so many forces, as above narrated), could be feared.

Although the said city and its inhabitants have been and are always very careful and vigilant (as is very well known); defending, at the cost of their lives and goods, the land from the incessant bombardments, surprises, and attacks of the said Dutch, with the forced obligation of very generally keeping their arms in readiness all the time; enduring a servile life full of annoyance and danger, although they could leave it, and it would be better and more worth living if it were less grievous, and free from so many dangers and difficulties: nevertheless they endure them, in consideration of the service of your Majesty, and in continuation of the many services which they have rendered in the defense and preservation of that country; and hoping that the greatness and liberality of your Majesty will protect and relieve them, so that they may accomplish their purpose better. Particularly do they ask that you order to be repealed the collection of the two per cent, the imposition of which was ordered by a decree of the former year six hundred and four on the merchandise exported from the said islands to the said Nueva España, in addition to the three per cent paid on them by the merchants of the said city—which heard and received notice of the said royal decree in the year of six hundred and seven, while Don Rodrigo de Vibero was governor. At that time the decree was not made effective or fulfilled, as the difficulty and great disadvantages that accompany it were recognized. Consequently, it remained in that condition until the year six hundred and eleven, when the collection of the said duty was again charged to Governor Don Juan de Sirva [*i.e.*, Silva]. He, trying to carry out its provisions, recognized the same difficulties, for the many reasons advanced by the city, which were so just and relevant that they obliged him to call a treasury council. Having there discussed and conferred upon those reasons, and it having been seen that they were so urgent and necessary that they strictly prevented and ought to prevent the execution of the said royal

decree of 604, he suspended it for the time being, giving your Majesty notice [thereof]. The decree remained in this condition until the year six hundred and twenty-five, in which the royal officials again discussed the matter of the collection of the said two per cent, during the government of Don Fernando de Silva. He, recognizing the same obstacles, and that those obstacles were much greater then because of the worse condition and the notable change and damage to which the affairs of the said city had come—the property, traffic, and means of gain of its inhabitants—with a great reduction and difference from that which they had in the said year of six hundred and seven, concurred with what had been provided by his predecessor, the said Don Juan de Silva, and ordered that no innovation be made in it. The same was done by the governor who succeeded him, Don Juan Niño de Tabora. Thus, the said governors, as each confronted the matter, always came to see very plainly the said difficulties, which at present are not only of the above-mentioned character, but are impossible to overcome because of the condition of affairs, the poverty of the inhabitants, and the great decrease and diminution of the trade and commerce of former times. That is given more prominence by the efforts of the visitor, Licentiate Don Francisco de Rojas, who made strenuous efforts to have the collection of the two per cent carried out. Nevertheless, he saw with his own eyes the said disadvantages that resulted from the said collection. One of them was the resolution of the inhabitants not to export their goods and merchandise; nor could they do so, because of the great losses, both past and present, which they have encountered. This is the greatest damage that can happen to the royal treasury; for if the export and commerce ceases, not only will the said two per cent be lacking, but also the old three per cent which has always been paid, as well as the other three per cent which was lately imposed upon the merchandise which the Chinese Indians bring to the said city and the Filipinas Islands. Accordingly, if the commerce of the islands with Nueva España fails, it is certain and infallible that that of the said Chinese, which forms the whole export to Nueva España, will also fail.

Therefore, the said visitor, notwithstanding the great desire which he showed of putting the said collection into execution, did not dare to do it; but considered it better to suspend it, and report to your Majesty. Although he tried to have it collected as a voluntary service for the future, the

citizens, seeing their great lack of wealth, could not conform to that measure, although for that time only they gave a subsidy of four thousand pesos, on condition that it should not serve as a precedent for the future, and that there should be no further talk of the said collection [of the said two per cent] until, after your Majesty had examined it, a suitable decision should be adopted. They petition your Majesty to be pleased to consider the very necessary and urgent causes and reasons why the said collection of the said two per cent should not be carried on, but that its execution be abrogated, which are as follows:

First, that the motive and cause declared in the said decree of six hundred and four for the said imposition, was the declaration that there was suffering because of the great profits of those who were trading and trafficking in the Filipinas commerce. It was said that the profits were one hundred per cent, and at times two hundred. Although the said Sangleys, antecedent to the said year of six hundred and four, brought the merchandise from China to the said city, and sold it at prices so low that when taken and sold in Nueva España it allowed a very great profit: still that ceased many years ago, from the said year of six hundred and four, when the Dutch enemy and pirates began to continue in and infest those islands with many different plunderings of the merchandise that the Chinese ships brought to the said city of Manila. On that account the said trade has gone on diminishing from day to day, very fast and steadily, to the pass to which the said Dutch have brought it by their pursuit and pillaging of the said Chinese ships. From that has resulted the ruin of the said commerce, and for the same reason the profits of it [have declined] to so great a degree that scarcely can one now buy one pico of silk for the price that he formerly paid for two and one-half picos. This has been the reason why, since the merchandise of the Chinese was lacking to the inhabitants for their investments, they have had to buy the goods from the Portuguese of Macan, at prices so high and excessive that they make no considerable profit in Nueva España. Consequently, the profits that the inhabitants of Manila formerly had have come to be made by the said Portuguese of Macan. Thus the reason and motive for the said royal decree has entirely and surely disappeared; and this same fact ought to do away with its ruling.

The second reason also is founded on the expense and cost that had to be incurred for the security and defense of the trading ships from the said islands to Nueva España, with the fifty soldiers, military captain, and other officers; that the said ships had to be of a certain tonnage; and that for this reason of the said expenses and costs, the said decree ordered the imposition of the said two per cent in order that it should be unnecessary to have recourse to the royal treasury. It ordered the proceeds therefrom to be deposited in a separate fund and account, for the said expenses which had to be incurred with the said ships and their crews. That reason likewise has had no effect, for the said expenses have not been made, nor are they made; nor do the said military captain, soldiers, or other officers sail in the said ships. Neither are the said ships—those that there are—of the said burden and tonnage, but smaller. Therefore the said expenses and costs cease, upon which the said decree is grounded; accordingly, that which is ruled and ordered by it ceases, for the reason stated, and, indeed, should cease.

Third, because by the former year of six hundred and eleven, the said governor, Don Juan de Silva, seeing the unsatisfactory method and arrangements existing for the collection of the said two per cent, tried to supply it—and did so—by the method that he thought least harmful, and of greater profit to the royal treasury—namely, to impose in its stead another duty of three per cent on the merchandise brought by the Chinese to sell in the said city of Manila. But, although the said imposition is ostensibly on the said Chinese, it comes, in fact, to be imposed on the inhabitants of Manila themselves; for the latter, being the purchasers, necessarily have to pay more, the Chinese sellers taking into consideration the new charge and imposition which has been levied on them. Consequently, the said two per cent has come to have actual effect and with greater profit by the said three per cent substituted in its place, which fact the said governor, Don Juan de Silva, had in mind. If the decree were again to be carried out, it would mean a double imposition for the above-mentioned damages and obstacles, and there would be no possibility of executing it.

Fourth, because the royal duties which the inhabitants pay on the said investments that they make, are very great; for on every thousand pesos of principal that they invest the duties in the said city and in Nueva España

amount to two hundred and seventy pesos and more, while the cost and expense incidental to the said investments amount to two hundred and eighty pesos more. Consequently, the said royal duties alone for each one thousand pesos invested inevitably amount, as is well known, to five hundred and fifty pesos. Therefore, within four years, setting aside the said costs and expenses, the said inhabitants come to pay more than the said one thousand pesos of capital for the said royal duties. The same thing happens in the same proportion when larger sums are invested.

The fifth springs directly from the preceding reason; for since the said duties and said costs and expenses are so great, and the profits so slight and uncertain, as above stated, the said inhabitants cannot continue the said trade and commerce of Filipinas with Nueva España; for to do that would be a poor management and administration of their possessions, carrying them over seas at so many risks, and in danger of catastrophes such as generally happen, which are daily becoming greater; while there is no profit, or so little that, with the said two per cent, the profits will be of little or no consideration, for which they will not expose their goods and capital to so great a risk.

Sixth, because, if the said collection and enforcement of the said two per cent were to be insisted upon, it would be a foregone conclusion that the inhabitants would abandon the said trade and commerce, and would not make the said investments, for the reasons stated above. That has proved to be so on the occasions on which the said collection has been discussed with some warmth—and especially when the said visitor, Licentiate Don Francisco de Rojas, tried to effect it, when the said inhabitants were firm and were resolved not to appraise, register, or lade anything in the ships, which were all ready to sail to Nueva España. Thereupon the said visitor thought it advisable and necessary to repeal the said enforcement. Although the inhabitants, on that occasion, because of the great pressure exerted and the advantageous reasons put forward by the visitor, offered to aid with a gift of four thousand pesos, it was with the said condition that it was to be for only that one time, and with the said condition that nothing was to be said of the said collection.

Seventh, the great damage and injury that would assuredly follow to the royal treasury if the said commerce were abandoned; for since the said three per cent that is first collected as a customs duty, and the other three per cent imposed anew in the said year of six hundred and eleven, amount and are worth a very great sum and number of pesos annually to the royal treasury, that sum will not increase with the imposition of the said two per cent, but, on the contrary, both the one and the other duty will be lost; or at least they will be reduced to a very great loss, damage, and diminution of the royal treasury, and the reason therefor is very clear and evident. For in every year, and in that of the imposition of the two per cent of which we are treating, the duty amounted to about four thousand; and to that amount now, without the imposition of the said two per cent, all the inhabitants of the said city, both rich and poor, trade and traffic. By that means are caused the said customs duties not only at departure from the said city of Manila, but at entrance into the said City of Mexico, and on their returns afterward, from the investments, and on the kinds of merchandise that are sent back by the same ports and places to be traded at the said city of Manila. For since the number of those who traffic is large, the said duties which are caused and paid are also large. But if the said two per cent be put in force, although it may be stated that some of the said inhabitants will continue to trade, they would be very few; and the trade would be reduced to those who are richest and those with most capital, who are not many. But among all the others who are not rich, money and capital would fail, and they would refuse to [trade] and could not risk their little capital without gain or profit, as they will have no profit with the said two per cent. And it would not be right or expedient, for the sake of the said new imposition (since the reasons and motives for it are lacking, as above stated), to place the income and value of the said customs duties in danger and peril, as it is so great and considerable, or to risk that of the other three per cent of the said year 611—the one dependent on and inseparable from the other; for, beyond all doubt, both would fail if the said commerce failed or diminished. The said danger can be regarded as certain, both for the abandonment of the said commerce and of the colony of those islands; and that would allow the Dutch, who are so powerful in the surrounding islands, as above stated, to gain an entrance in them, for the lack of troops caused by the said imposition. That is a matter which your Majesty should have examined with

great attention, because of the many precedents that have been seen in like cases in these kingdoms [*i.e.*, of España] with the great injury and loss to the royal treasury which could not be restored later—as happened in the increase [of the tax] on playing cards, one real more than the usual tax being imposed. That income, being valued at that said time at from forty-four to forty-five million maravedis annually in the three districts of Castilla, Toledo, and Andalucia, dropped to twenty-two millions because of the new imposition, thereby losing a like sum annually. And, although the damage was afterward seen, and the attempt was made to correct it by repealing the said new imposition, and reducing the tax to the old amount, the amendment did not follow; for because of the frauds and cheats caused by the said income in its first condition, it never returned to that condition, and remained with the annual loss and decrease of fourteen million maravedis from what it had at the time of the said new imposition. The same thing happened in the thirty per cent which was imposed on the trade of foreign merchants while the court was in Valladolid. The result of that was that the foreign merchants abandoned the commerce, and looked for new methods, applying themselves to gaining a foothold in the Eastern Indias. The said imposition was thus the reason for the many important lands and ports of which the foreigners have gained possession and which they hold, which we have lost for the said reason. Both these instances are very certain, well-known, public, and notorious.

The eighth reason, a very urgent and cogent one, is that since the year six hundred and seven, when the said commerce was in a much better condition, and the said Dutch had not begun to make their raids, or all the great damages that they have inflicted on the said islands and those near by, and on the said Sangleys and Chinese—nevertheless, the said governors, Don Rodrigo de Vivero, Don Juan de Silva, and Don Juan Niño de Tabora (who succeeded him), seeing the difficulties involved in the said imposition, did not consider it advisable, nor did they dare, to put it into force. Much less could it be done today, after the lapse of almost thirty years, at a time when the inhabitants are suffering from so great distress and necessity, caused by the many losses, as above stated, of many ships—some of which have sunk, while others have of necessity sought port on the coasts of Japon and other districts where so great riches were lost without its being possible

to secure them, or for anything to be saved; and by the fires which they have suffered, on one occasion the greater part of the city, as well as the possessions of the inhabitants being burned. A few years ago our flagship “Nuestra Señora de la Vida” [*i.e.*, “Our Lady of Life”] was wrecked on the island of Verde¹ while en route to Nueva España, with the possessions and capital of the aforesaid citizens. In the former year of thirty-one, the ship “Sancta Maria Magdalena” went to the bottom in the port of Cabite with all the goods and cloth aboard it. Although the cargo was taken out, it was after it had been in the water more than one and one-half months. Consequently the damage to the owners was great and notable; and on that account all the capital was ruined, the trade limited, and the goods destroyed—so much so that if the said two per cent be put in force, it will have the above defects, and the said trade will be ruined.

The ninth reason is of great importance, and consists in the many great services that have been performed for your Majesty by the said city of Manila, and those which its inhabitants are performing every day; for when occasion demands—as it does often, when there is a lack of regular infantry, because it has gone away or been employed in something else—the inhabitants enter the guard, as that city is surrounded by so many heathen; and they have always hastened with all the loyalty and love possible to serve on any expedition that has offered against the Dutch and other nations, with their persons and possessions, and are the first to take arms.

Another thing is of great consideration, namely, that in the great necessities that arise in the royal treasury, which has not the wherewithal to take care of them, the said inhabitants have aided it; and they aid it very often with very considerable sums, depositing therein from eighty to one hundred thousand pesos, without receiving any interest. That money is retained in the said royal treasury, and the owners are not repaid for more than two years. The loss of interest on so great a sum for so long a period constitutes a great service, for merchants and men of business. They only think of the great desire that they have always had, and have, for the service of your Majesty; and that is so great that many poor inhabitants, not having any capital to allow them to make loans to the royal treasury as the other inhabitants do,

beg for a loan in order to be enabled to attend to your Majesty's royal service. In the assessments continually levied upon them by the governor, consisting of jars [of oil or wine], rice, and other things necessary for the relief of Terrenate and the island of Hermosa, the said inhabitants contribute very eagerly and willingly; and on the voyages made by the galleys, if slaves are needed (as often happens), they give their own. With the same willingness did they make the gift of the said four thousand pesos in the year 632.

Since all above stated is so, and since the inhabitants are perpetually and continually serving your Majesty with their persons, lives, and possessions, and by the intolerable burden of always bearing arms; and since all that is related in this memorial is evident from the investigations made at the citation of the fiscal, and by what the governors and the orders write: therefore it is just for your Majesty to honor and reward the inhabitants, since their services are so worthy of reward and remuneration; and since the said imposition of the said two per cent would be only an affliction and punishment, to have its enforcement discontinued, so that there may be no further question of it—which, as can be understood by the reasons above stated, has been and is the royal intention and purpose of your Majesty. For during the so many years that its execution has been suspended, your Majesty having been informed by the letters of the governors and royal officials of the difficulty of its observance, it has been abandoned and repealed in order to avoid so many and so great dangers as above stated, and injuries to the said inhabitants and residents of those islands—an intent quite in accord with the first decree of the said year six hundred and four, in which, although it was ordered to impose the said two per cent, it commanded that this was to be done with the greatest mildness possible. Consequently, as this mildness was not and could not be exercised, the imposition occasioning only great troubles and difficulties, the decree itself intimates, as if by express statements, that the said collection was impracticable.

Thus the request of the said city and its inhabitants, and of the said islands, is that your Majesty be pleased to have it so declared and ordered, not only for the future, but also for the past; since the said royal decree has not been

put in force, nor has it been advisable at any time, for either the future or the past. The impossibility [of enforcing the decree] is even greater [at this time], because of the many years that have passed, and the many persons against whom it might be attempted, who have died; so that to undertake it would mean nothing else than a beginning of lawsuits, and the disquiet and revolution of all the inhabitants of the said city, or of most of them—for those who have trafficked here from the said year of six hundred and seven are many, and most of them have died, without leaving any property from which to collect the arrears of duty—in case that that effort is made. By that [concession] the inhabitants will receive an especial favor, as is hoped from the greatness of your Majesty. Madrid, September 6, 1635.

Reply of the fiscal

The fiscal declares that he has examined the documents sent with this memorial, and the other papers and letters from the Audiencia, the visitor, and the superiors of the orders; that the decision [of this question] demands close attention, and all that the council is wont to exercise for its sure action, for the great necessity of its inhabitants which the city represents, confronts us. We must consider not only the impracticability of enforcing the impost, but no less his Majesty's lack of means (caused by the wars and necessary occasions for expense that have limited the royal incomes), which constrains him so that he can do no more—a course which, as so Christian and pious a king, he would avoid, if it were possible. Having considered everything, what the visitor writes has much force with the fiscal, and persuades him that it is expedient and necessary to consult with his Majesty regarding this letter—so that, having examined its contents, and that, besides, which the council shall advise, he may be pleased to order what may be most to the welfare of his vassals, in whose conservation consists his best service; and approving the mild method pointed out by the visitor (of which he availed himself, in order that the trade might not cease, with the obvious danger of greater loss), he concurs in everything, and thus petitions. Madrid, September six, one thousand six hundred and thirty-five.

Don Juan Grao y Monfalcon, procurator-general of the distinguished and loyal city of Manila, metropolis and capital of the Filipinas Islands, in

answer to what was said and alleged by his Majesty's fiscal to the memorial and arguments which he has presented, in order that the effort for the collection of the two per cent may cease and be abandoned, declares that your Majesty, in heeding the arguments that he has presented in another memorial, does not give up nor is he excluded from what is alleged on the other side. On the contrary he expressly recognizes (a fact that cannot be denied) the justification and urgent reasons that are necessary and unavoidable, which strenuously oblige to what the said city has entreated. In the name of the city, he accepts what is said and alleged in its favor by the said fiscal. But inasmuch as the fiscal mentions his approbation of the method which the visitor approves—and of which he availed himself, so that the said trade might not cease, which, he says with good reason, would be of greater loss—and says that with the said method everything would turn out well, he excludes the condition that it will not provide for everything, but only for the effort to enforce the said duty of two per cent. The difficulty would remain present, and the reasons and arguments of the said city be as if they were not; and it and its commerce would be left without any remedy, or means to preserve itself. Nor is there nor can there be considered any difference of opinion in the necessity that is mentioned of the royal treasury; for, although this necessity is great, the contention of the said city concerns not necessity, but the limits of impossibility. Consequently, [the interests of] the city ought to prevail and be preferred. This conclusion was reached by experience, on the occasion of the former year 632, when the said visitor tried to put the said duty in force, in which he found himself confounded; for he beheld the cessation of commerce, and the resolve made by the said inhabitants that they would not export or risk their wealth, without receiving any profit—by which it resulted that the despatch of the ships which were being sent to Nueva España was delayed, the cause of which was the said visitor, because of the said collection that he was trying to enforce. The governors of those islands—of whom there have been many, very prudent and clear-headed, and eminent in their zeal for the service of your Majesty—never came to such a determination, in all these years. And the strength and resistance of the obstacles that they found, and which they were considering in person, compelled them to consult with your Majesty, as they always have done—regarding that as much more proper than to execute [a decree] and risk the condition of those islands, and

considering the matter with mature judgment and prudent deliberation. Consequently, they never reached the said decision that the said visitor attempted. And although the latter tried to remedy it, by proposing the means (that he alleges as a counterbalance) of the payment of four thousand pesos, by way of gift and gracious service, that gift was not perpetual, as appears on the contrary, and as is given to understand; but it was only for that time, and until the decision of your Majesty should be made. That is well verified by the fact of what afterward occurred; for in the following year the said visitor—recognizing that the gift of the four thousand pesos had been limited, and for once only, and that by virtue of that the said inhabitants were not bound to anything—attempted to make again, through some of the regidores, the same suspension that he had already made of the execution of the said duty, until your Majesty determined with what they should serve, with some gift, even though it should be only a small sum. That which was finally assigned was from one to two thousand pesos, the visitor again with this new occasion placing the despatch of the said ships in peril, causing by the least delay more loss than the said profit. Therefore the royal Audiencia, in order to proceed with more certainty, called a council of the bishop who was governor of that archbishopric, the archbishop, and the superiors of the orders. All of them agreed and concurred that the despatch ought to be made in the manner in which it had always been done, without allowing any innovation. Consequently all, and on all occasions, have always recognized the impossibility, and the new damages and obstacles that would result from the said enforcement.

In consideration of the above, he petitions and entreats your Majesty that you be, nevertheless, pleased to provide and order the discontinuance of the collection of the said two per cent, according to his petition. Thereby he will receive an especial favor, as that city and kingdom hopes from his Majesty's greatness and royal hand.

¹ An island off the south coast of Batangas, Luzón, midway in the channel between that island and Mindoro.

Manila Treasury Accounts, 1630–35

Relation of the receipts of the treasury of Manila from January seven, one thousand six hundred and thirty, until January six, one thousand six hundred and thirty-five, a period of five years

	Common gold		
	[Pesos]	[tomins]	[granos]
The balance found in the said treasury on the said day, January seven, 1630, amounted to ¹	11,561	8	6
The total from the fines of the exchequer ² from the said day until March six, 1631, amounted to	2,073	6	1
That from the [unspent?] balances of war funds [<i>alcances de guerra</i>] for the said time amounted to	20,317	5	0
That of the army fund for the said time amounted to	15,797	1	5
That from the licenses of Indians [<i>sic</i> ; <i>sc.</i> Chinese] for the said time	87,606	4	0
That from loans made to the treasury for the said time amounted to	71,057	7	0
That from mesada taxes ³ for the said time amounted to	917	1	11
That from import and export duties for the said time amounted to	33,448	7	0
That from offices sold for the said time amounted to	29,458	3	0
That from expenses of justice for the said time amounted to	75	0	0

That from royal situados for the said time amounted to	4,124	2	4
That from condemnations for the building of houses during the said time amounted to	374	5	4
That from fiestas for the said time amounted to	281	3	0
That from the tenths of gold for the said time amounted to	48	3	0
That from transportation of passengers [on the royal ships?] for the said time amounted to	300	0	0
That from the proceeds for war from the cattle tithes for the said time amounted to	120	3	0
That from the silver and reals received from Nueva España during the said time amounted to	278,115	6	0
That from court expenses for the said time amounted to	100	0	0
During the said time the receipts of the said treasury amounted to	555,775	3	0

Account from April 20, 1631, to January six, 1632

The total from condemnations (in court) for fines of the exchequer for the said time amounted to	1,611	6	0
That from import and export duties amounted to	35,650	1	2
That from loans made to the treasury amounted to	16,600	7	5
That from royal situados from the encomiendas of private persons amounted to	3,708	6	8
That from the balances of accounts amounted to	18,430	3	0
That from extraordinary sources amounted to	6,115	1	0
That from mesada taxes amounted to	112	4	9
That from <i>resultas</i> amounted to	456	3	5
That from tenths of gold amounted to	23	7	8

That from expenses of justice amounted to	8	6	0
That from [the fund for?] expenses of courts ⁴ amounted to	287	4	0
That from licenses to heathen Chinese amounted to	116,697	4	0
That from offices sold amounted to	646	4	0
That from silver and reals sent from Nueva España amounted to	203,915	0	0
That from passenger transportation amounted to	50	0	0
That from deposits amounted to	2,000	0	0
That from [unspent balance of fund for?] ship-building and forts amounted to	8	0	0
That from the vacant encomiendas amounted to	36	4	0
That from restitutions amounted to	38	0	0
That which was placed in the treasury at the order of the visitor amounted to	6,117	0	0
That collected from what is owing [to the treasury] amounted to	62,473	3	10
The receipts of the treasury for the said time amounted to	475,889	1	2

Account from January seven, one thousand six hundred and thirty-two, to January six, one thousand six hundred and thirty-three

The total amount of the balance struck on January 7, 1632, amounted to two thousand one hundred and eighty-seven pesos, four tomins, and four pieces of gold and three rings ⁵	2,187	4	0
That from balances of accounts amounted to	26,458	4	0
That from fines of the exchequer amounted to	2,984	3	2
That from the fifths of gold amounted to	99	5	6
That from royal situados amounted to	2,150	4	0
That from the expenses of justice amounted to	75	1	0

That from loans made to the treasury amounted to	64,453	4	0
That from import and export duties amounted to	36,603	2	0
That from the mesada taxes amounted to	835	0	8
That from <i>resultas</i> amounted to	2,114	5	6
That from vacancies in encomiendas amounted to	66	7	8
That from deposits amounted to	1,858	0	0
That from offices sold amounted to	3,800	0	0
That from extraordinary <u>sources</u> amounted to	30,046	3	3
That sent from Nueva España amounted to	232,569	4	0
The receipts for account of the visit amounted to	7,013	6	1
That from passenger transportation amounted to	250	0	0
The receipts from the proceeds of condemnations to be remitted to the Council amounted to	3,060	4	0
That from the Chinese licenses amounted to	105,898	0	10
That from cattle tithes amounted to	300	0	0
That from the fifths of silver amounted to	285	2	4
That from [fund for?] the expenses of the courts of the Parián	60	4	0
That from [fund for?] the expenses of the courts of the Audiencia amounted to seventy-five pesos	75	0	0
That collected from what is owing [to the treasury] amounted to	97,663	2	3
The receipts of the said treasury for the said time amounted to	622,484	5	1

Account from January 7, 1633, to January 6, 1634

The total amount of the balance struck on the said day, January seven, 1633, amounted to four thousand seven hundred and ninety-two pesos, three tomins, and four pieces of gold and three rings ⁶	4,792	3	0
That from balances of accounts amounted to	14,299	1	2
That from the mesada taxes amounted to	258	2	11
That from extraordinary sources amounted to	2,226	5	7
That from import and export duties amounted to	46,897	6	1
The receipts from the visit amounted to	13,770	6	0
That from Chinese licenses amounted to	51,396	2	0
That from loans amounted to	109,260	0	0
That from fines of the exchequer amounted to	1,918	0	0
That from expenses of justice amounted to	120	0	0
That from royal situados amounted to	1,385	5	6
That from offices sold amounted to	14,850	0	0
That from the fifth of gold amounted to	300	2	7
That from vacant encomiendas [<i>vacantes</i>] amounted to	41	1	6
That from passenger transportation amounted to	950	0	0
That from tributes amounted to	9	3	0
That from the half-annats amounted to	4,961	5	2
That from the silver sent from Nueva España amounted to	277,326	1	1
That from <i>resultas</i> amounted to	1,056	5	5
That from [fund for?] courts and expenses of the royal Audiencia amounted to	135	0	0
That from deposits amounted to	600	0	0
That from cattle tithes amounted to	386	6	9
The receipts of the said treasury for the said time amounted to	546,873	0	5

Account from January 7, 1634, to January 6, 1635

The total of the balance struck on the said day, January seven, one thousand six hundred and thirty-four, amounted to seventy-three thousand two hundred and thirty-one pesos, seven tomins, and ten granos, and [4 pieces] of gold, and 3 rings ⁷	73,231	7	10
The total of the half-annats amounted to	16,393	0	1
That from balances of accounts amounted to	31,311	2	11
That from royal situados amounted to	1,688	5	6
That from fines of the exchequer amounted to	1,945	2	5
That from <i>resultas</i> amounted to	11,557	6	3
That from cattle tithes	211	0	0
That from import and export duties amounted to	28,170	4	11
That from heathen Chinese licenses	162,941	7	5
That from extraordinary sources amounted to	33,097	3	9
That from the fifth of gold amounted to	325	7	4
That from deposits amounted to ⁸	6,375	1	0
That from offices sold amounted to	11,400	0	0
That from [fund for?] the expenses of the courts amounted to	50	0	0
That from expenses of justice amounted to	36	1	6
That from condemnations collected to remit to this Council amounted to	444	0	0
That from passenger transportation amounted to	650	0	0
That from proceeds of the visita amounted to	3,417	4	0
That from restitutions amounted to	1,003	0	0
That from the money sent from Nueva España amounted to	308,396	2	0
That from loans amounted to	11,000	0	0

That from the proceeds for the fortification of Manila amounted to	6,000	0	0
That from the tenths of gold amounted to	296	6	0
The total receipts of the said treasury for the said time amounted to	715,849	6	11

Given in [*word illegible in MS.*] August eighteen, 1638.

DON GERONIMO DE [*word illegible in MS.*]
FRANCISCO ANTONIO MANZELO

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- 1 The manuscript has a side- or sub-heading at the right that reads “Pieces of gold,” and in the margin at this point is the figure 10.
 - 2 Spanish, *el cargo de penas de Camara*. *Cargo*, as thus used, refers to the amount charged on the books of the accountant, and especially to the general balance struck; in a general sense, *cargo* and *data*, in the old Spanish system of accounting, corresponded to “debit” and “credit” in modern bookkeeping. The difference between these (*alcance*), in an individual account, would be nearly the same as our term “balance of account.” The old Spanish methods of accounting were somewhat different from the modern, and based on more complicated procedure; and it is difficult to find modern equivalents for various words and phrases used therein—especially for some which designate the duties of accountants, and for others which are no longer in actual use. The whole accounting and auditing system was very elaborate and characteristically suspicious. There were, in every case, two men working together; and, if one of them was absent, some different work must be assigned to the other for that day, by the bureau of accounts. There were three classes of employees in this work, in the Spanish colonies: the *contadores de cuentas* (who apparently were of higher rank than the others), *contadores de resultas*, and *ordenadores de pago*. The second of these terms is no longer used in accounting, and no satisfactory explanation of its commercial use is given in lexicons. The *ordenadores de pagos* (an office abolished at intervals) might correspond to our disbursing officers, save that they did not, I think, actually handle the money; hence, their functions rather correspond to a part of the duties of our auditors. It may be that the term *cuentas* is used in the accounting system to define accounts in general, items of any and all sorts owed to the state; and *resultas*, as referring to the accounts kept of money paid out, on one or another account, by the public treasury—its balances (*alcances*) being, therefore, the sums remaining over and above the amounts spent. This would give us a system of accountants for the items owing to the state—in other words, for its incomes; and another system of accountants for the expenditures of the government. In such case, *resultas* might

also designate the balances reverting to the credit of the state—that is, the unspent balances of various funds; this meaning would harmonize with the related functions of the *contadores de resultas* and the *ordenadores de pagos*, who supplied each other's places. These are suggestions rather than definitive statements, for which latter is needed expert knowledge of the old Spanish accounting system. The *Recopilación de leyes de Indias* contains much information on these points; see especially lib. viii, tit. i, ii, xxix; lib. ix, tit. viii.—JAMES A. LEROY.

3 *Mesada*: a month's pay or salary. The *derecho de mesada* was a tax of that amount levied (like the half-annat on civil offices) on ecclesiastical benefices and preferments which had been granted by the popes to the crown of Spain as part of its royal patronage of religion. Laws regarding this tax may be found in *Recopilación de leyes de Indias*, lib. i, tit. xvii; the first of these is dated 1629. See also *Teatro de la legislación universal de España y Indias* (Madrid, 1791–97). The *mesada* was to be collected on the basis of the receipts from each preferment during the five years preceding the new incumbent's entry upon his office.—JAMES A. LEROY.

4 *Estrados*: literally, "platforms;" the platform on which stood the royal throne, or the seat of the judge, afterward came to mean the court itself. Perhaps the Manila treasury received from Mexico a sum for the proper maintenance of the dignity of the tribunals, for the hangings, furnishing, platforms, etc. This might also refer to the platforms and carpets and hangings provided in the cathedral for certain royal officials.—JAMES A. LEROY.

5 In the margin at this point occurs: "4 [pieces of gold]; 3 rings."

6 In the margin at this point occurs: "4 [pieces of gold]; 3 rings."

7 In the margin at this point occurs: "4 [pieces of gold]; 3 rings."

8 In the margin at this point occurs: "88 taes, 1 real of gold."

Letter of Consolation to the Jesuits of Pintados

To my beloved fathers and brothers of the islands and residences of the
Pintados.

Pax Christi, etc.:

Great has been the grief that has been caused to us who have been in these missions of the Tagals, by severe hardships that your Reverences have suffered and are suffering in those islands of Pintados, because of the madness and ferocity of so cruel enemies. For who would not be afflicted at hearing of the hatred and hostility of the barbarians against Christ our Lord, which they have displayed against His sacred images, which they have outraged and broken to pieces, and His temples, which they have burned and destroyed? Who would not be struck with pity on seeing the beloved flock of the sheep of Christ our Lord, and his faithful ones with their pastors and ministers, robbed, dispersed, and pursued even into the fastnesses of the mountains, imprisoned, captured, and killed?—and the shepherds, with especial ignominy and cruelty, as we see in [the case of] our most beloved father, Juan del Carpio, who is happy, fortunate, and chosen, since he has purchased the eternal crown by the shedding of his blood.¹ Who would not have compassion at hearing of the fatigues, surprises, necessities, and dangers, of those of your Reverences who are still alive—a life that resembles a continual death rather than life? But this tender compassion must cause pain in us because of the evils, and encouragement and joy because of the blessings, which follow from them—truly one and the other feeling; for who can refrain from weeping at the sight of an offended God, at His holy name blasphemed, His worship violated, His faithful ones captive, and His priests killed? But who will not be consoled with that holiness of the great doctor of the Church, St. Augustine, whom God our Lord permitted [to be visited by] evils in order that he might derive greater

blessings therefrom—such as are these greater blessings from so many present evils? Such are the [*word illegible*] acts born from the fervid hearts of my most beloved fathers, so that they have offered themselves to their Creator and Lord in so virulent dangers, not as they might wish, but as a most perfect holocaust, without any fear, placing everything in His hands—health, honor, blood, and life, for the greater glory of his Majesty, and the welfare of souls. Peradventure these are not blessings that enrich those who possess them, but they give courage, fervor, and glory to our province and Society of Jesus, which has such sons and so valorous soldiers, the imitators of their Society of Jesus, their blood shed to deliver their spiritual children and that which pertains to the Divine and Christian worship—which blessings will he not bring to our islands and fields of Christendom, and to our Society of Jesus in those islands? For as says the most illustrious Tertullian in his *Apologetica adversus gentis*, chapter 49: *Semen est sanguis Christianorum*.² And a Christianity wet with such blood will doubtless give a most abundant harvest. And what encouragement will it give to the sons of the Society in Europa! And what desires will they have to come where they may have opportunity to shed their blood also for the honor of their Creator! Blood shed by the hands of barbarian Mahometans instigated by their casique³—especially against the priests, the preachers of our holy faith, as we learned from one who escaped from them; and with so remarkable tokens of special hate against religion, that they tore to pieces the very body of the father, so that the head was the largest part of it. However much they may claim that in order that there should be no planting [of Christianity?] they did not spare his life, their actions show that they took life away from him in hatred of Christ our Lord, and of His holy religion, which the father was preaching and extending. And even if the Mahometans did not have that intention and hate against Christ and His holy faith, which this shows that they have, not only is the death inflicted and suffered in this manner a true martyrdom, but also in more general terms Christ our Lord said through St. Mark in the 8th chapter: *Qui perdidit animam suam propter me, et evangelium, salvam faciet*.⁴ On those words is founded every form of true martyrdom, which embraces that of the innocents, and those who gave their lives to serve those sick with the plague, and for any virtue whatever; and thus say the saints. St. Augustine

pondering these words in his sermon 100 (*De diversis*) section 2,⁵ makes a strenuous effort for martyrdom, in the occasion of dying, in these words: “*Qui perdiderit,*” inquit, “*propter me.*” *Tota caussa ibi est. “Qui perdiderit,” non quomodocumque, non qualibet caussa, sed “propter me.” Ylli enim yn propheta yam dixerant martires, “Propter te mortificamur tota die.” Propterea martirem non facit pena, sed caussa.* And if this is Christ our Lord, and one loses his life either in order not to offend Him—for example, by denying His faith, or losing his chastity, or by lying, etc.—or in order to serve Him—for example, by preaching His holy gospel, or by practicing the doctrine of succoring one’s neighbors with the spiritual or corporal works of charity—even if the tyrant does not deprive him of life as a mark of hatred against the faith, assuredly he gains the crown, *salvam faciet eam*. Accordingly, he who dies in the mountains when fleeing from persecution, or by means of wild beasts or robbers, or who is drowned in the sea, says St. Cyprian in his Epistle number 56, *Ad Tibaitanos*, is and must be called a martyr, for his death is [suffered] for Christ. Thence can one well see what we feel in the present case, and in the occasions that we have in hand. I will quote his words here, for they are a consolation for all those who are liable to lose their lives, in the sea or in the mountains, because of the preaching of the holy gospel and the persecution of the enemies of the gospel. *Si fugientem in solitudine ac montibus latro oppresserit, fera invaserit, fames aut sitis aut frigus afflixerit, vel per maria præcipiti navigatione properantem tempestas ac procella submerserit spectat militem suum Christus ubicunque pugnans, et persecutionis causa pro nominis sui honore morienti præmium reddit quod daturum se in resurrectione promisit. Nec minor est martyrii gloria non publica et [non] inter multos perisse cum pereundi causa sit propter Christum perire. Sufficit ad testimoniam martyrii fui [sc. fuisse] testis ille qui probat martyres et coronat.*⁶ This is sufficient for a letter, although other testimonials of the saints could be adduced, which show that the institution of martyrdom made by Christ our Lord was not the narrow thing of which certain scholastics speak. Father Teofilo Raynaudo⁷ of our Society, in the book that he published, *De martyrio per pestem*, in the year 1630, proves in a very learned and wise manner that those who die through the exercise of the works of charity with the sufferers of the pest are really and truly, and can

be called, martyrs. And clearly it is not less to give one's life than to exercise spiritual works of charity, for one's neighbors. Hence we ought to endure in this particular, for Christ our Lord, *in bonitate et liberalitate*,⁸ and since for other lesser works—as leaving father and mother, or positions, etc., for Him—Christ our Lord chose to give as a reward so much in this life, and afterward eternal life, as He said through St. Mark, in the 10th chapter: *Centies tantum in tempore hoc et in sæculo futuro vitam æternam*.⁹ The most heroic and lofty work was necessarily the giving of one's life for the same cause; and that loss will not give, to him who serves, another reward here, but the reward of eternal life is reserved for the world to come, and with a special diadem. Then may we be consoled, my fathers, in our missions and voyages, if we lose our lives therein in the service of Christ for the preaching of His holy gospel; since according to His royal promise He always maintains it assured, and brighter is the crown. I do not say this in order that we should publish our martyrs, or that we should so talk with those outside (for it is better for us to limit ourselves in that direction), but for our consolation and assurance, I am persuaded that after this pilgrimage we shall recognize that glory in some or many of the fathers of this province who have preceded us—as in the case of the fortunate father Juan Dominico Bilançio, who died a captive of the Mahometan [king of] Jolo, the harsh treatment and sufferings of his captivity being the cause of his death; and Father Juan de las Missas, [who perished] at the hands of the hostile Camucones; besides other fathers. I regard it as superfluous to expatiate further on this, or to attempt to spur on those who are running so gloriously. Therefore I conclude with the words, which the glorious bishop and martyr, St. Cyprian, wrote in a similar case in his epistle number 81, to Sergius Rogatianus and his companions: *Saluto vos fratres charissimi [ac beatissimi] optans ipsse quoque conspectu vestro frui, si me ad vos pervenire loci condicio permiteret. Quid enim mihi optacius et lecius pocet [i.e., posset] accidere, quam nunc vovis inhærere? ... Sed quoniam qui [sc. huic] lætiçie interesse facultas non datur has pro me ad aures et [ad] oculos vestros vicarias literas mito, quibus glatulor pariter, et eshortor, ut yn confessione selestis glorie fortes et estabiles perseberetis et ingressi viam Dominice dignacionis ad acipiendam coronam espiritualli virtute pergatis*.¹⁰ Manila, February 1, 1635.

JUAN DE BUERAS

1 This raid spread fear and alarm throughout the Visayas; and the religious, especially the Jesuits, urged the governor (then Cerezo de Salamanca) to provide some defense against the pirates. Accordingly he ordered (although in the face of much opposition) the establishment of a fort and garrison at Zamboanga, Mindanao; and to aid in the expenses of this enterprise, a contribution of a ganta of rice from each tribute in the Visayas. (Combés says that this measure originated with the Jesuit Bueras.) This contribution was afterward extended to all the provinces, and was known as “the Zamboanga donation.” The fort at Zamboanga (begun June 23, 1635) was planned by the Jesuit Melchor de Vera, and built under his direction. See accounts given by Combés (*Hist. Mindanao*, col. 213–224), Murillo Velarde (*Hist. Philipinas*, fols. 76b–78a), and Montero y Vidal (*Hist. Filipinas*, pp. 190–192).

2 “The seed is the blood of Christians.”

3 A corruption of *kasis* (Vol. XVI, p. 134), or *kázi*, an appellation of Mahometan preachers.

4 Part of the thirty-fifth verse. The quotation should end with *eam*. The English is: “And whosoever shall lose his life for my sake and the gospel, shall save it.”

5 Translated: “*He that shall lose (his life)*, He says, *for my sake*. There is the whole cause. *He that shall lose*, not in any way whatsoever, not for any reason that you like; but: *For my sake*. In prophecy those other martyrs already said: *For thy sake we are killed all the day long* (Ps. xliii, 22). Not therefore is it the punishment, that makes a martyr, but the cause.” This is found in St. Augustine’s sermon *In natali martyrium* (“On the festival of martyrs”), cap. ii, sec. 2; it is Sermon 331, ed. Migne, Paris, 1841 and 1845—in older codices, “Sermon 100 *de Diversis*.”—T. C. MIDDLETON, O.S.A.

6 Translated: “If a robber should assault, or a wild beast attack, or hunger or thirst or cold afflict, one fleeing in the desert and mountains, or a storm or hurricane drown one making haste through the seas in precipitate navigation, Christ beholds in him His soldier, wherever he may be fighting; and He gives the reward to him who dies persecuted for the name of His honor, which He promised that He would give at the resurrection. Nor less is the glory of martyrdom, in having perished not in public, nor in the midst of a multitude, when the cause for which he dies is to lose his life for the sake of Christ. For the witnessing of martyrdom, it is enough that He was witness who approves and crowns the martyrs.”

7 Théophile Raynaud was born November 15, 1587, at Sospello, in the county of Nice, and entered the Society of Jesus November 21, 1602. He taught grammar and the humanities at Avignon, philosophy for six years and theology for ten at Lyons, where he was also prefect of studies

for two years. He lived for some years at Grenoble, Chambéry, and Rome, and passed the last thirteen years of his life at Lyons, where he died October 31, 1633. He was a most voluminous writer, but his style was poor. Some of his works have been printed, while others exist only in manuscript. He had planned to print them all together, but death hindered the project. The book referred to in the text is *De Martyrio per pestem Ad martyrium improprium, et proprium vulgare comparato, Disquisitio Theologica, Theophili Raynavdi Societatis Iesu Theologi* (Lvgdvni, Sumpt. Iacobi Cardon, M.DCXXX.) See Sommervogel's *Bibliothèque*.

8 "In goodness and liberality."

9 A portion of St. Mark x, 30. The Latin of the entire passage is: *Qui non accipiat centies tantum, nunc in tempore hoc: domos, et fratres, et sorores, et matres, et filios, et agros, cum persecutionibus, et in sæculo futuro vitam æternam.* The English of the Douay version is: "Who shall not receive an hundred times as much, now in this time; houses, and brethren, and sisters, and mothers, and children, and lands, with persecutions, and in the world to come life everlasting."

10 Translated: "I greet you, well-beloved and blessed brethren, yearning also myself for the joy of seeing you, if only the conditions of place would allow me to reach you. For what could be more to my wish and my joy than to be with you now? ... But because no opportunity now offers for this happiness of being present myself to your eyes and ears, I am sending this letter instead; whereby I equally felicitate and exhort you to stand strong and firm in your confession of the heavenly glory: and, having entered upon the way that the Lord has honored, to go forward in spiritual strength to receive the crown." This is the "Letter of St. Cyprian to Sergius and Rogatianus, and other confessors in the Lord"—no. vi in Tauchnitz ed. (Lipsiæ, 1838).—T.C. MIDDLETON, O.S.A.

Letter to Felipe IV from Father Andres del Sacramento

Sire:

Since I have passed thirty years in this province of the discalced Franciscans of San Gregorio of Filipinas, and, since I am a father of this province, I regard it as my obligation to advise your Majesty of its present condition; so that, since you are the one who sends the ministers at the cost of your royal treasury, you might apply the corrective that necessity demands. It is a fact that, although the said province has been established by the discalced religious, and always maintained in its first perfection by the religious sent it by the discalced provinces of España, among those who come some Observantines are generally found, under pretext of going to Japon—who, although they change the habit, do not change their inclination to their own observance. This mingling [of the two branches] is the cause of very great disquiet, because of the opposition that is sucked in there in the milk, as is apparent to your Majesty from many instances. Although the Observantines are so few that they do not number twenty, they make use of their favor with the commissaries-general, who generally appoint them as commissaries of visitation. In parts so remote and deprived of recourse [to superiors], they hold their will as law whenever they choose. For that reason we have always feared that the Observantines would deprive the discalced religious of this province; and that has been done by an Observantine commissary-visitor, who removed all the definitors and a great number of votes, by absolute authority and without sufficient cause. He did it for the sole purpose of succeeding in that design, which he accomplished; hence this province and its definitors are at present in the power of the Observantines. Since the fathers commissaries-general are Observantines, they naturally favor their own party. From that circumstance, serious and long-drawn-out litigation is promised, which your Majesty can prevent by ordering strictly that one or the other branch

do not come. The discalced religious, as I said, established this province. They have furnished many martyrs to the church, and have toiled in the ministry with poverty, humility, and good example among Spaniards and Indians, as they relate and as your Majesty can inform yourself. You will also be informed of the manner in which the Observantine fathers administer in Megico; and you can select which [branch] you may please, and order that those religious who do not possess a testimonial from the discalced or from the Observantine provincials (according to which branch your Majesty selects) shall not embark at Cadiz. In case that Observantines are not to come, it is very necessary also to order strictly your viceroy of Mexico not to allow those who should not possess the said testimonials to embark at Acapulco; for, since the commissary-general is in Mexico, he will exert great activity in this respect in order to carry farther what has been commenced. For that purpose they are at present sending an Observantine religious. I beg your Majesty not to consider this as a matter of little moment, for on this one remedy alone depends the preservation of this province on its first foundation, the peace of the religious, the proper administration of the Indians, and the prevention of most serious scandals born from the said opposition and intermixture, of which this whole kingdom is witness.

In this letter it is seen that no favor or protection is requested from your Majesty for either myself or anyone else; but I only inform you, as our sovereign lord, so that you may remedy the injury that results from the aforesaid to the consciences of your vassals and in the administration of the Indians. Notwithstanding this, I beseech your Majesty, if you will be so pleased, to keep my name secret from the father commissary-general and the Observantines; for if they learn it, they will give me considerable trouble here. May Heaven prosper your life with the most fortunate successes, as we your Majesty's most humble vassals and chaplains desire. [Nueva] Caceres, in the province of Camarines, June 2, 1635.

Your Majesty's humble chaplain,

FRAY ANDRES DEL SACRAMENTO, father of this province of San Gregorio.

[*Endorsed*: “June 16, 638. Collect what may have been written on this matter, and bring it; and have the father commissary-general report whether Observantines go among the discalced fathers who are asked for. A report was asked from the commissary-general on the sixteenth of said month.”]

Letter from the Franciscan Commissary-General of the Indias

I have received two documents from your Grace, in regard to various matters, and I shall answer them in two others, so that your Grace may be pleased to read them to the gentlemen of that royal Council. In regard to one, I say that since the winter when I had certain advices from the province of San Gregorio of the Filipinas, and of which I informed the council, I have had no further news. That news was certain complaints of the provincial and definitors against the commissary who deprived them of certain things which he found in his visit, although he exceeded [his authority] in it. That case went to the commissary of Nueva España. According to what the disalced provincial of the Filipinas wrote me, who went to follow up the case, penalties were imposed upon the said commissary. Another was sent from the disalced province of San Diego, so that another chapter might be celebrated, and that province appeased. I hope in our Lord that it will be appeased and satisfied; but if not, I have written for them to send me all the documents and all decisions that shall have been rendered. Letters were also written to me then, and I was advised of the great injuries that the governor was causing to the religious. I neglected to inform his Majesty and that royal Council of this, as I considered it certain that, as it had been so public, the matter would have been communicated from there; and that, after having been weighed by those gentlemen, they would despatch orders to reform it.

Concerning the lawless act and the audacity of the friars in protecting and aiding the cleric Don Pedro Monroy, and their public censure of the governor, the Audiencia, and others in their sermons, with scandal, for which I feel due regret, although the things that occur there publicly, and the events that happen there, have been very extraordinary, yet the words of their sermons must be according to the statement of the holy Council of Trent: *Que sint examinata et casta, eloquia ad edificationem*¹—words used

by our father St. Francis, in his rules for preachers. If they are not so, then the word of God will not have the effect on its hearers that it had before the disturbance and scandal—a matter that has always seemed very wrong to me, and deserving blame and condemnation. That will happen on this occasion, for which, in due time, I shall send commission for an investigation and the punishment of the guilty; and [an account of] what shall be done shall be sent, so that I may present it to that royal Council, and it may be seen whether satisfaction has been made; for where that has not been done, I shall endeavor to secure it, as I strive to do in all things that arise. This is my response to the first document sent by your Grace. Given in this convent of St. Francis, in Madrid, June twenty-eight, one thousand six hundred and thirty-five.

FRAY FRANCISCO DE OCAÑA,
commissary-general of the Indias.

¹ “Let them be of a considered and chaste eloquence, that they may be a cause for edification.”

Opinion of Council and Royal Decree Regarding the Request of the Jesuits of Manila for Alms for Their Residence

Sire:

By a decree of June first of the former year six hundred and twenty-five, your Majesty granted a concession to the residence of the Society of Jesus of the city of Manila, in the Philipinas Islands, of one thousand ducados in each of ten years, in unassigned Indians, or those who should first become such in the said islands, under the same terms with which your Majesty granted concession to the convent of the Order of St. Augustine in the islands for their buildings. The procurator-general of the said residence has now represented that, after the work was commenced, the church fell to the ground one night—leaving the house in ruins, and in so great danger that they were obliged immediately to borrow a temple for divine worship. For their building, and in order that they might be expeditious in it, and to build part of a house where the religious could be sheltered, it was necessary to raise a large sum of money by an assessment, which has rendered them very needy. It is the seminary for all the religious of the said Society who leave these kingdoms for the cultivation of the holy gospel in those provinces, where they equip themselves and learn the languages of the natives, in order to go out to teach them. It has a school where reading, writing, and Latin are taught, and the arts and theology, to Spaniards and natives; and six congregations—namely, of priests, laymen, students, Indians, and blacks—with great spiritual increase. It is the refuge for all the gospel ministers who fall sick, and who go thither for treatment, as there are no physicians in any other part. There they are treated, entertained, and supported with great charity, until they can return to continue their ministries. There are entertained all those who go by way of Eastern Yndia, when they go to Japon, China, Maluco, and other places. The said residence is very

cramped, both in its house and its church, because of the great crowds that go there continually. For the relief of that condition, the order begs your Majesty that—considering the aforesaid, and that your Majesty has twice granted to the convent of St. Augustine in the said islands a bounty of twenty thousand ducados for their building—you will also give the said residence as an alms another ten thousand ducados, so that it may continue the said building, paying it to them in the tributes of Indians who may be unassigned. The matter having been examined in the Council, together with the letter which the royal Audiencia of the said islands wrote to your Majesty, July twenty-nine, six hundred and thirty—in which is mentioned the great necessity for a church which the religious of the residence experience because of the fall of theirs, and the evident danger in which they live, and the great results that they obtain in those parts—the count of Castillo, presiding officer of the said Council, Fernando de Villaseñor, the count of Umanes, and Don Bartolomé Morquecho were of the opinion that, in order to take a resolution in this matter, it is advisable that the governor, the Audiencia, and the archbishop of the said islands report on the condition of the work on the said residence, what is yet to be built, how much it will cost, and whether the said Society of Jesus has funds with which to build it.

Licentiate Don Lorenzo Ramirez de Prado, Juan Prado, Juan de Solorzano, and Don Juan de Palafox think that, if your Majesty be so pleased, you can do them the favor of continuing to the said residence the sum as above stated which was given them (of one thousand ducados in each year, for ten years) for two years more—one thousand ducados in each of them to be paid from the said tributes of unassigned Indians, so that they may continue the said work. This should be with the qualification that the governor of the said islands see whether there is any other kind of property from which to pay those two thousand ducados, so that it may not be taken from the treasury of your Majesty, or from the said encomiendas of Indians—in order that the latter may remain free, with which to reward the soldiers who serve your Majesty in those districts with great toil and danger. Those two years of extension shall run from the day on which the ten years of the said grant are concluded, and in each one of those two years they shall not enjoy more than one thousand ducados. Will your Majesty order what is your royal pleasure. Madrid, [blank] of [blank], six hundred and thirty-five.

[The king, having seen the above opinions of his Council, despatched a decree to the president and auditors of the Manila Audiencia, which recites in identical terms throughout the matter preceding the opinion in the first paragraph above, and then continues:]

The matter having been examined in my royal Council of the Yndias, together with the letter which you wrote me on July twenty-nine, six hundred and thirty, and they having conferred with me in respect to the many years during which I made the said concession to the said residence, and our ignorance at present of what had been done with that money, or into what it has been converted, and what still lacks to be built; and as it is in tributes of unassigned Indians, which are to be used as a reward for the soldiers who serve me in those islands with so great toil and danger, without there being any other thing with which to reward them: I command you, in order that our decision in this matter may be made with the knowledge that is advisable, to inform me on the first opportunity that offers of the condition of the work on the said residence, what is still to be built, and how much it will cost; and whether the said Society of Jesus has enough funds with which to build it, without our continuing the said concession and alms, as I have so many alms to grant, and things so greatly needing attention, on which account it is needful to retrench as much as possible. You shall send me the said report, together with your opinion, through the said my Council of the Yndias, so that, after they have examined it, the most advisable measures may be taken. Given in Madrid, July ten, one thousand six hundred and thirty-five.

I THE KING

By order of the king our sovereign:

DON GABRIEL OCAÑA Y ALARCON

Signed by the gentlemen of the Council.

Letter from Pedro de Arce to Felipe IV

Although my age is now so advanced, and I was very contented in my bishopric of the city of Santísimo Nombre de Jhesus (which is commonly called Cebú), I was forced to leave my quiet because of the death of the archbishop of Manila, Don Fray Garcia Serrano, which happened more than six years ago, in order to come to govern this archbishopric of Manila during the period of its vacancy, as such was ordered by his Holiness Paul V, in a bull which he gave at the petition of your Majesty's father (whom may holy Paradise keep!), providing that the senior bishop of Philipinas should come to govern the church at Manila for three vacancies in this metropolitan see. Thus the lot fell to me to come; and the urgency with which the governor and the Audiencia begged me to come gave me no room for excuses, or to represent my indispositions and advanced age.

During the time while I have been in this government, there has been great peace and harmony between the ecclesiastical and civil powers; and we have always endeavored to promote the cause of our Lord and the service of your Majesty, as we all are bound to do. I have not left the government until now, when the bulls of this archbishopric came for Don Fray Hernando Guerrero; for, although he had a decree from your Majesty, the bulls, as I say, had not arrived, and I was governing by a bull of his Holiness, with a decree from your Majesty. Having consulted in regard to it with erudite men, theologians and jurists, as to whether I could give up the government of the archbishopric to Don Fray Hernando Guerrero, all counseled me in the negative, and charged my conscience.

Finally, the Lord has been pleased to relieve me of that charge, and to leave me the old responsibility of my own failures; and, accordingly, I am returning thither with much pleasure and happiness, to finish my days among my people, aiding them in whatever I can; for they have suffered considerably during these years from the enemy from Mindanao and Jolo, who are very powerful, and who make extensive raids with their fleets—

burning villages, firing churches, destroying images, and capturing many Indians. Especially last year did those enemies display themselves most insolently; whereupon Governor Don Juan Cerezo Salamanca was obliged to apply the only remedy which we believed there to be—namely, to construct a fort at Samboanga, in the land of Mindanao, which might serve as a check to both enemies.

That fort was commenced when Don Sebastian Hurtado de Corcuera arrived to govern these islands. Hearing of the advisability of that work, he determined to forward it, for its benefit is great, and its cost to the royal treasury but slight; and even thus it is hoped that it will be of great advantage in a few years, for those enemies will be obliged to pay tribute to your Majesty—and, in fact, whole villages have already begun to enter your Majesty's obedience. I hope that they will also enter the obedience of our Majesty [*i.e.*, of God]. For that purpose, I have given and entrusted the spiritual affairs of those islands to the fathers of the Society, so that by their excellent method of procedure and their gentleness they may continue to attract and convert the natives, who are very numerous. Already have they set their hands to the labor, although the number of subjects that they have is few; because those of this order come but very seldom, and they have much to which to attend, and every day they have more. For I, for only the time during which I governed the archbishopric of Manila, have, in consideration of the welfare of the Indians and the devotion and efficient method of administration which those of the Society preserve among them in all parts, entrusted them with new posts. Both in the island of Negros and in that of Mindoro, besides the old Christians, they have three or four thousand heathen to whom to attend; and they are already baptizing these, in addition to the said heathen of Mindanao, who number many thousands.

Consequently, I petition your Majesty for two things: one that your Majesty be pleased to confirm them in the said mission of Mindanao, for the bishops have entrusted it to them alone for many years (as did I also), through expectation of great results in the conversion, by means of the said fathers of the Society of Jesus; the other, that your Majesty send a goodly reënforcement of the subjects of that order, so that they may attend to

everything. I think a good reënforcement would be about forty, if most of them are priests, who can immediately begin to instruct.

May our Lord preserve the royal person of your Majesty, as all kingdoms need, and as I, the least of your Majesty's chaplains, beg in my sacrifices and prayers. Manila, October seventeen, one thousand six hundred and thirty-five.

FRAY PEDRO,
Bishop of Santisimo Nombre de Jhesus.

Documents of 1636

- [Discussion regarding Portuguese trade at Manila](#). Joseph de Navada Alvarado, and others; 1632–36,
- [Decree extending the tenure of encomiendas](#). Felipe IV; February 1.
- [Military services of Filipinos](#). Juan Grau y Monfalcon; June 13.
- [Conflicts between civil and ecclesiastical authorities, 1635–36](#). Casimiro Diaz, O.S.A.
- [Letter from a citizen of Manila to an absent friend](#). [Unsigned; Fabian de Santillan y Gavilanes?]; June 15.
- [Request for Jesuit missionaries](#). Sebastian Hurtado de Corcuera; June 19.
- [Letter from the bishop of Nueva Caceres to Felipe IV](#). Francisco de Zamudio, O.S.A.; June 20.
- [List of prominent ecclesiastics in Manila and the islands](#). Hernando de Guerrero, archbishop of Manila; 1636.

SOURCES: All but three of these documents are obtained from MSS. in the Archivo general de Indias, Sevilla. The second is from the “Cedulario Indico” of the Archivo Historico Nacional, Madrid; the fourth, from Diaz’s *Conquistas de las Islas Filipinas*; the fifth, from a MS. in the Academia Real de la Historia, Madrid.

TRANSLATIONS: All but one of these documents are translated by James A. Robertson; the last is by Robert W. Haight.

Discussion Regarding Portuguese Trade at Manila

Copy of seventeen articles which Joseph de Navada Alvarado, regidor of the distinguished and loyal city of Manila, proposed to the municipal council [ayuntamiento] of that city, in which he represents the injuries and troubles which follow and have been experienced from the Portuguese of Macan continuing the trade which they have begun to introduce in that city [of Manila]. These articles were presented to Don Juan Niño de Tavora, and afterward to Don Juan Cerezo de Salamanca, governor of those islands—who, having examined them, wrote his opinion to his Majesty, and how advisable it was to suppress the trade of Macan with the said city of Manila, as is apparent by the said letter.

Captain Joseph de Navada Alvarado, regidor of this city of Manila, represented in this city council that, as was public and well known, from the year six hundred and nineteen until the present of thirty-two, the Portuguese inhabitants of Macan have come to this city in various vessels, without fail in all the years above mentioned, laden with Chinese merchandise, in order to sell it here; and that, with their said coming, it seems that they have obtained possession of this trade, which is so strictly prohibited by various royal decrees. On account of that trade they have waxed rich, while the inhabitants of this community now find themselves in their so wretched present condition, by the great sales which have been generally made to them; and because with the said trade that which the Sangleys had by coming yearly to this said city, with the greatest abundance of goods, has ceased. It appears that necessity has always obliged them to have to buy from the said Portuguese. Notwithstanding that the prices have usually been very high, the profit which the inhabitants of this said city have made in Nueva España has been very slight; and at times it has been little more than the prime cost of the goods here, besides the heavy expenses and duties which they carry, both in these islands and in the said Nueva España. For

that reason, he feels that it is very advisable for the preservation of the said inhabitants and of this community that the said trade of the Portuguese cease, and that they be ordered not to come to this city; for this is permitted by the royal will, under the penalties expressed in the said decrees in which he orders it, to which we refer, since there are so many and so fundamental reasons as the following.

The first, that the said Portuguese of Macan having tried in years past to open this trade, and having come to this city with merchandise to sell it there, this city council, seeing the damage that might grow from it (which is the damage bewailed today), opposed the said coming, and made various decisions in regard to demanding that the royal will be observed, and that the Portuguese be ordered not to return to this city. And in fact they did not come for the time being, or for many years after, until the said year of six hundred and nineteen—[since] when, not encountering the resistance which had been formerly made, they have continued the said trade, as aforesaid.

The second, for proof of the aforesaid, is that, as is notorious, the amounts of capital [invested by] the inhabitants of these islands were very great in the first years of the coming of the said ships from Macan; but with the high prices which the Portuguese have always set upon their merchandise, and (as aforesaid) because the citizens have bought from them more by force than willingly, by reason of the lack of the goods which the Chinese brought formerly, for that reason the said investments of capital have stopped, and are so greatly diminished as has been, and is seen in general; because the gains have been very slight compared with the profits that have been made in Nueva España, considering the high prices that they demand here, as has been previously stated.

The third point which ought to be considered is, that the customs duties on the merchandise brought by the Chinese to this city were worth to his Majesty from eighty to one hundred thousand pesos annually; while those on the merchandise of the ships which have come from Macan have not been worth more than twenty thousand pesos in any one year, and it is considered as certain that some years the duties have not exceeded twelve thousand. In regard to this truth, as a point so worthy of consideration—and

of which this city council ought to take so much notice, as it is the body whom the increase of the royal revenues to their possible extent concerns so fully—we refer to what shall appear from the amounts of the said duties which the Sangleys now for twenty years have put into the royal treasury, and to those which the Portuguese have put in from the year six hundred and nineteen, the goods which they have generally brought being valued at about one million and a half, defrauding to a greater sum the said import and export duties so rightfully due his Majesty.

The fourth matter that must be considered for the greater proof of the aforesaid statement is, the quickness of the voyage from the said city of Macan to this of Manila, since it can be made in twelve days or a fortnight (or in one week, as has already happened), and the short time that they spend in this city selling their goods. Those were causes which could ensure the success of the contract which the citizens of this city have offered to make with them, several years—namely, to give them forty per cent clear profit upon the first cost which they [*i.e.*, the Portuguese] had invested. But as the Portuguese have always beheld themselves powerful and masters of the said trade, they have always refused to accept it—from which one can infer the great gains which they have made and are making in the trade, since, in short, more than sixty per cent [profit] has now to be given for everything. That is a hardship which sufficiently accounts for the present condition of the inhabitants of this city who are afflicted with the many troubles which attend them by reason of the said diminution of their wealth; and for the total ruin of others, who see themselves dispossessed of what they had. For that reason they make no further investments, because they have not the wherewithal.

Fifth, it ought to be considered how long and dangerous is the voyage from these islands to the said Nueva España, and the heavy costs and expenses caused by the investments; while the returns for what is sent from here are not received even if good fortune attend them, except at the end of two years, and sometimes more.

Sixth, that with the coming of the said Portuguese and ships from the city of Macan to this of Manila, the commerce and trade which the Sangleys

merchants of China usually carried on every year with this city has ceased, because of the keen intelligence which the Portuguese have employed in preventing it. That they have succeeded in doing, entirely by means of a very astute plan which they have followed, by taking to the annual fairs which are usually held at Canton so many thousands of pesos to invest and to bring to this city, as, in short, has already been said. In that way the Chinese sell them all that they want, at a profit of twenty-five or thirty per cent. That arrangement is so agreeable to the Sangleys, with the said profit in their own land and without trouble, that they have ceased to come to this city as they did formerly, risking the capital which they brought hither. This has been aided greatly by the Portuguese persuading the said Sangleys that the wealth of the inhabitants of this city is very nigh gone, and to so great an extent that they cannot find an outlet even for all the goods which they bring; and that, for that reason, they give trust for the greater part of it—a thing that has never happened, nor been done, for they have always received money, and the value for everything that they have sold. To that is added also that the said Portuguese have been wont to frighten the said Sangley traders by telling them of the danger that they will experience in their coming because of the Dutch pirates and the fleets of bancons¹ with which some of the Chinese nation themselves go about committing depredations along those coasts. At the same time they have represented to the Chinese the heavy dues that they pay here, and the injuries that are inflicted upon them in this city, notwithstanding that they have [not] known that the Chinese have any complaint of this. All is with the purpose of turning them from any design that they have had of coming to this city with merchandise; for they fear that if the Chinese did so it would result in impairing their trade² and discrediting that which the said Portuguese hold so firmly.

The seventh is in regard to the Chinese merchants who refuse to sell their goods in Canton to the said Portuguese of Macan, saying that they prefer to bring them at their own cost and risk to this city in their champans to sell them to the inhabitants of this city, and to enjoy in their entirety the profits and gain which they can thereby get. In order to dissuade these men from that purpose and resolve which they have had, the said Portuguese have offered (as many Chinese merchants who have come to this city this present

year have said) for the sake of peace to bring the goods of the said Sangleys to this city at their own account and risk in order to sell them here—as they could do, if they should carry them—making a contract, by which for their administration [of this business] they were to get five per cent. That has been seen now for two years, during which they brought in this way more than one hundred and fifty thousand pesos on account of Sangley merchants of Canton. They also take the funds of the Chinese to make a return at so much per cent, and bring it to this city, so that the Sangleys may not come here with the said goods. That is a well known fact, and has been learned from some of the Portuguese of Macan themselves. The said Portuguese make those efforts in order to have the monopoly for themselves of the merchandise brought to this city from the kingdom of China, and so that all might pass through their hands; since, in whatever form the aforesaid goods are brought, the Portuguese prove to be so interested, and, for the same reason, as has already been stated, the inhabitants of this city come to be so despoiled of their wealth. No less [injury] is possible, except that, if the said trade is not suppressed, they will finish by losing the little that they have within very few years.

The eighth. In regard to the aforesaid, we must consider that the said Portuguese of Macan have always refused to agree by way of *pancada* on a general price, although the said *pancada* is so usual among them in all parts where they buy and sell. During one of the last few years, having agreed to the said *pancada*, and in order to begin it having appointed a person both on their part and on that of this city, when the prices were set those of Macan refused to accept them, as they were not so high as they wished. For always with the consideration of having a port to leeward (which is that some of the said Portuguese remain in this city to sell their goods which they have left over, in which no opposition has been shown them, either, although it is so much to the prejudice of the common welfare of this city), they become obstinate in whatever they desire—those who spend the winter making a monopoly of their merchandise that is left over, selling it at very high prices to the inhabitants who need it, and selling some to the Sangleys of the Parián. The latter afterward retail such merchandise to all manner of persons, doing that in the course of the year with some gain.

The ninth point, and one which ought to be carefully considered, is, that besides some of the Portuguese remaining in this city who come from the city of Macan with the said merchandise, with the intent and for the causes stated in the above article, they accomplish their ends in another way, no less injurious to this community—namely, that some of them have sent a very heavy export of their merchandise in the ships despatched to Nueva España, although that is so stringently prohibited by decrees and orders of his Majesty. Taking advantage of the said opportunity, they sent it by the hands and under the names of persons of this city, who have protected and are protecting them. Although this city, on account of the notice given to it of this conduct, has made all possible efforts to prevent so harmful a proceeding—having even requested and received letters of excommunication, which have been read and published in the churches—yet it has not been learned that these have been sufficient to prevent it. This is verified by the unlading of the flagship “Santa Maria Magdalena,” which was despatched from the port of Cavite in these islands in the first part of August of the past year, six hundred and thirty-one, for Nueva España, but whose voyage did not take place, because of the disaster that happened. Through that mishap it became known what the Portuguese of Macan had embarked in it, as can be related by Captain Andres Lopez de Azaldiqui, depositary-general of this court, who was present at the discharge of cargo with a commission from this city council.

The tenth is, that what the ships bring from Macan is only silks, in bundles and in fabrics. If they have brought any cotton cloth needed by the poor, each piece of cloth has been sold at three or three and one-half pesos. The same price is received for one cate of sewing thread, and a dish of average quality sells for one real; and notwithstanding that they bring but little of this for the supply of this community, they have always sold the said articles at the prices quoted, because of reducing the cargo of the said ships to the said silks and stuffs, on account of the profits arising from such freights. The ships give little or no place for the lading of cotton cloth and other wares needed so badly by the poor, because of their volume and of the little profit made from such cargoes. Such things are also needed by those who are not poor; and even a single ship of those usually brought by the Sangleys from China to this city fills the land with the said common goods,

which are so necessary, as can be understood; and the poor are supplied with these by the convenience of their prices, which are very low. They are still lower when a number of ships come, as was formerly the case. That is verified by the few which have come with the said goods for some years past, so that these articles have been valued at prices so low as the fourth part, and less, of the prices at which they have been sold by the said Portuguese, as has been stated.

The eleventh is, that it would not have been any trouble for the Chinese to come to engage in this trade with a quantity of goods—as they did before the Portuguese represented to them the dangers of enemies or the other things aforesaid—if the trade of Macan had been suppressed. For the greed of gain, which they are so well known to possess, would have conquered everything, and they would come here; since an outlet for the merchandise in which they trade in China must be sought beneath the water. If the Chinese can know for only one year that no ships have come from Macan to this city, it is certain that they will come, and that beyond all doubt. Also the reestablishment of the trade of the said Chinese will be effected; and, since there will be great abundance in the goods which they trade, the customs duties will amount to the sums which I have already stated. Consequently, there will be a stop put to the loans, so numerous and usual, that we are wont to require every year from the inhabitants in order to supply the needs of the royal treasury; or at least the loans will not be so large, since the said duties will be able to supply much.

The twelfth is that, as is well known, in the merchandise brought by the Portuguese from the city of Macan to this of Manila, there are no articles that can, with known reason, have an outlet with profits or even without profits, in any other part, because of this—namely, that what they take to Japon is only raw silk, which they call of the first value, and the cream of that of China, whose products they bring here. No other thing is used in Japon; and the skins which they also carry, besides being in small quantity, are but little used by the Japanese, according to their customs; so that all the rest which the inhabitants of Macan buy is for conveyance to this city. If they do not come here with it, then, it is certain that they will not buy it.

Consequently, the Chinese will come with it, for it is their trade, and they have to procure an outlet and profit for their merchandise.

The thirteenth is that the efforts exerted by the said Portuguese of Macan in preventing the commerce of the Chinese have been by as many roads of state as they have been able to attempt. This came to such a pass that a ship returning from this city to that of Macan, whence it had come with merchandise, with some Portuguese aboard it, while coasting along the Ilocan shore some two years ago, sighted two ships of the Sangleys, which were coming from China laden with merchandise to this city. The said ship from Macan attacked them while passing, and chased them, the while discharging its artillery, with the intention of pillaging and sinking them, and preventing their coming here. By the strenuous efforts that they made, the Chinese escaped from their hands, although they received great damage from the artillery. Through the delay that they suffered in these perils, their arrival here was postponed, and having entered the bay during a terrible storm, one ship was wrecked in the neighborhood of Parañaque, and the other in sight of the walls [of Manila]. Consequently, the Sangleys lost their goods, and were in danger of losing their lives. As soon as they entered this city they gave notice of that injury, and this city council having seen the reason of it, voted that an investigation should be made of the aforesaid affair, and that it be done by Licentiate Nicolas Antonio de Omaña, as he was alcalde-in-ordinary of the city. He began to make an investigation, but ceased because the governor said that it belonged to the jurisdiction of the war department. Thereupon the Sangleys—seeing that they would not obtain the justice which they desired in respect to the said investigation; and that the said Portuguese returned to this city, because they did not continue their voyage, on account of the wreck of the said ship in which they were going along the said coast of Ilocos—had recourse to the royal Audiencia of these islands, where they filed a complaint against the Portuguese who was leader of the said ship, and the others. From the papers which were drawn up, it resulted that the said Audiencia ordered the said Portuguese who was commander of the said ship to be arrested. That was done, and the latter was a prisoner for many days in the houses of the city council, until at the end of some time he was freed, without any one knowing in what condition the said case remained.

The fourteenth is, the long experience that we have of the injuries that have been committed on the Castilians who have gone from this city to the said city of Macan in the Portuguese ships, with some money which they have taken to invest and with which to pay their passage and the freight on their investments. Having reached the said city of Macan they are arrested, and the said money is sequestered. Some who have escaped this harsh treatment have taken refuge in churches, and have at last embarked, fortunate to be at liberty with their money, in order to return to this city. Having gone through those kingdoms and experienced the delay of the long time during which they have been suffering this molestation, and the others who, as aforesaid, have escaped it by availing themselves of the said churches, these have employed their capital in buying the merchandise of the Portuguese of that city—and always at so high prices that, from one hand to another, the Portuguese gain twenty-five or thirty per cent with our people. For no lesser rate was open to the latter, in order to redeem themselves from the injury inflicted on them, of little or no liberty; while the Portuguese have so much freedom in this said city, as has been and is seen, as I have already stated. Consequently, what our people have brought from that city has always been too dear, by reason of the aforesaid profit which the said Portuguese have made of it. They, not content with this, have (as is well known also), whenever opportunity has arisen to send any ship of his Majesty from this city to bring back at his royal account military supplies for the provision of the royal magazines, refused to let these be bought by the hands of those who have the matter in charge, but [insist that it be] by those of inhabitants of Macan. Thus they make use of what goods they have, and sell them at the prices which they choose. That has always resulted in great loss to the royal treasury, which is sufficiently notorious, because it has been said openly by all who have gone from here for that purpose. Such comment has not been less, even though many citizens of this city are so patiently enduring such injustice; for, these having delivered their goods to the said Portuguese that they might take them hence to the said city of Macan and invest them, and bring them back or send them the proceeds, the Portuguese have kept the goods, and have not thus far made any return to our people. For that reason those who sent the goods have been completely ruined by such great losses, which in their total amount to a very large sum. With that, and with all the profits and gains aforesaid, those of Macan are today

known to be very powerful, and to have great wealth—although they had no considerable wealth in the said year of six hundred and nineteen, when they began to come here to avail themselves of the said trade.

The fifteenth is, that if the trade of the said Portuguese ceases, there can be no doubt that the Sangleys will come in their ships from China, laden with merchandise, in order to sell it in this city. And even should this not be to the number of those who formerly came, nor with so great an amount of goods during these first years, yet with the few that do come with valuable goods, and with those which can come from the island of Hermosa, and the wax which is obtained in these islands, there will be enough goods to complete the two hundred and fifty thousand pesos which his Majesty allows the inhabitants of this archipelago to trade with the said Nueva España—and even to exceed that amount, in general, according to the scarcity of wealth that they have today. The great investments which are made today through the hands of agents who are here—who have the money of certain citizens of Mexico in large quantities, many thousands of pesos, with which they disturb the trade and commerce of our citizens—will be prevented. For, as these men who have the agencies enjoy an interest of ten per cent of what they thus invest by their own authority (even though it be bought very dear), they will not consider the removal of obstacles in the prices of the merchandise—making them exceptions to the general loss of all this community; for the Portuguese have continued their sales at the same prices, without its having been possible to apply the corrective which so great an injury demands. If that loss cease, our citizens alone will enjoy the said investments, complying therein with his Majesty's will, and will make them at favorable prices, whereby considerable profit will accrue to them. For this they will share the merchandise which will come, both from China and from the island of Hermosa and other places, in accordance with their means. From it will also result another advantage with the coming of the said vessels from China, to the citizens who have possessions in the Parián, who will thus have someone to occupy those possessions. The limited time during which the said Sangleys are wont to remain here will be worth more to those citizens than the rent and payment for their property which they now usually obtain for all the year. With that income the tax which they ought to pay for the arable land in the said possessions, at the

[current] values of this city, will not be so long delayed, and will be paid with greater ease, promptness, and willingness than is done now; for, as is well known to this city council, about eight thousand pesos are owing to the said public property for the said reason, according to the accounts that have been rendered by Juan de Arguelles and Juan Lopez de Andoin.

The sixteenth is for an argument that, if the trade of the Portuguese of Macan cease, the said [Chinese] will have to conduct the trade as they did before in the said merchandise, because they will have no other outlet for it, except in this city. This is proved because in the revolts of the Sangleys here, in the first part of October of the former year six hundred and two [sic], more than twenty thousand Sangleys having been killed and their possessions ruined—of which advices were taken to China by more than ten of their ships which escaped and carried the news—nevertheless, by May of the year following the same ships came to this city, in the number and with the amounts of goods with which they had come in the years preceding. They continued that in the following years, as if the aforesaid punishment had been a benefit to them. They did that for the reason above mentioned, of not having any other outlet for the said merchandise in which they traded.

The seventeenth is that, as is well known, as soon as the Portuguese of Macan knew of the post which we took in the island of Hermosa, they tried to obstruct that trade, by sending a religious of their nation to one of the commercial ports of China, in order that he might direct those Chinese not to take any merchandise to the said island. They have persisted and are still persisting in those efforts.

In regard to all the above, as a matter so important, and on which depends the conservation of this community, and so that the citizens of it may retrieve their losses, he petitions that discussion be held, and that this proposition be set down in the record-book; that a decision be reached, and a vote taken in regard to all that ought to be petitioned; and that the royal decrees which treat of all the said matter be observed. Having read and understood it *de verbo ad verbum*, it was voted that the said proposition be enrolled in the record-book of this cabildo, and that it should be discussed

and voted upon. That having been done, in consideration of the fact that the arguments which it contains are so notorious and so well known in this city and by its inhabitants, Manila unanimously and as one man has resolved to inform his Lordship, the governor, of the said proposition; that for its accomplishment all the steps that shall seem to be advisable shall be taken, by writing, until the said effect is obtained—with the consent and advice of the counselor of this city; that the procurator-general of the city attend to all the above, and that they appoint as commissaries those deputed to inform the governor. Thereupon, Captain Diego Diaz, regidor of this city, voted, and said that his opinion is that this affair is one of great importance; and that it seems right to discuss and treat of it with the inhabitants of the community, who are the ones interested. This is his vote and opinion. The governor is requested to be pleased to give permission for the holding of an open cabildo, so that those interested, as they are the ones whom it concerns so greatly, may declare therein the resolution that ought to be taken in this matter. For if the suspension of the coming of the goods from Macan were to happen in any other way, and at the same time those of China should not come, the people would generally complain; and in order that they may not do that, let them be participants in the resolution that shall be taken. In such condition was this vote, and all signed it.

Copy of a section of a letter written to his Majesty, August 14, 1633, by the governor of Filipinas

The trade of Great China also has declined, inasmuch as the Portuguese of Macan have become masters of it, as they are so near; and as they are admitted here, contrary to all good government, they retail the products which the said Chinese formerly brought direct. That causes a great scarcity in these provinces, all of which results in our loss, and in the gain of China, because of the great advance in price over the [former] cheapness—[an excess], moreover, which they carry to their own land. The relief that I believe can be had, although some privation may be felt in the beginning, is that your Majesty prohibit the trade of Macan with Manila, and decree that Portuguese be not admitted into this government. Besides having the above result, your Majesty's duties will increase; and the commerce of China with the island of Hermosa can be established by this route, and become of

importance to your Majesty, although up to the present it has been only an expense. [*Decree of the Council*: “Collect the papers treating of this matter and the chart of the island of Hermosa; and together with this section take it all to the fiscal, and bring it to the Council with what he shall say. November 25, 1634.”]

[*Note*: “The fiscal declares that he regards it as very unadvisable to make any innovation for the present, and that the trade now possessed by the Portuguese should be not prohibited; for, since the said trade is permitted to the Sangleys and other foreign nations, who are not vassals of his Majesty, it is not right to prohibit it to the Portuguese; and because if the said trade is prohibited to the Portuguese, the Dutch and other rebels to this crown might seize that site and the trade. Moreover, the advantages which the governor represents as the consequence are not sure but contingent; and the increase which he mentions might not happen, and could not afterward be made up if the Portuguese abandoned that site and that trade ceased. Madrid, December 6, 1635.”]

[*Endorsed*: “In regard to the affairs of the island of Hermosa and the Portuguese. Refer it to the fiscal. April 15, 636.” “Let account be given so that those decrees may be carried out which were given in order that foreigners might not trade or traffic in the Filipinas Islands—taking note that the Portuguese are included among foreigners, and that the Chinese and Sangleys can trade and traffic as hitherto. In regard to the expulsion thence of the Portuguese who are not living there by the express license of his Majesty, he shall expel them, unless the governor and Audiencia consider that it is not advisable; of which it may be necessary to present information to the Council.”]

Copies of the decrees which were despatched to the governor and Audiencia of Filipinas, and the fiscal and royal officials of them, in regard to the trade which the Portuguese of Macan have introduced into Manila.

The King. To the president and auditors of my royal Audiencia of the Philipinas Islands: Don Juan Grau y Monfalcon, procurator-general of that city, has informed me that the Portuguese people who live in Eastern India

have attempted to trade and traffic with those islands, thus hindering the Sangleys from going to sell their merchandise in that city; and that this intercourse was already established, in violation of the orders and decrees issued, to the very great damage and prejudice of my royal revenues and the good government of the islands. He petitioned me to be pleased to have a speedy and effective remedy applied in a matter of so great importance and weight. My royal Council of the Indias having examined all the papers which were presented in this matter, together with what my fiscal said and alleged regarding it, I have considered it fitting to send you a copy of them, so that you may see them. If the report that has been made of this seems to you correct, you shall immediately attend to the remedy for this damage; and I order my fiscal of that my royal Audiencia, by another decree, to prosecute that case and to plead whatever he judges suitable for the advantage and increase of my royal treasury, and the observance of the orders and decrees issued, since that pertains to him by reason of his office. Of all that you shall enact and that you shall continue to do in this matter, you shall advise me. Given in Madrid, November ten, one thousand six hundred and thirty-four.

I THE KING

By order of the king our sovereign:

DON GABRIEL DE OCAÑA Y ALARCON

[A decree of the same date and of like tenor, addressed to the fiscal of the Manila Audiencia, Juan de Quesada Vitado y Mendoça, follows, in which he is ordered to prosecute the case. A decree of the same date is also addressed to the royal officials; which, after the same general statement at the beginning, continues: "And although I order that Audiencia by another of my decrees of equal date with this to attend to the remedy of this damage, and the fiscal to plead in prosecution what he sees to be necessary, I have thought it best to advise you of it, so that after you have understood it, if you are sure that there is fraud in the collection and administration of my royal duties, you also shall plead what you consider to be advisable, since you see what is your obligation by virtue of your office. And of what you shall hear, and what shall be done, you shall keep me advised."]

Sire:

Don Juan Grau y Monfalcon, procurator-general of the noble and loyal city of Manila, metropolis and capital of the Philipinas Islands, declares that the past year he represented to your Majesty the great damages and injuries which the inhabitants of that city are experiencing from the Portuguese of Macan having introduced the custom of going to buy their merchandise at the fair of Canton in China, and bringing the same to the city of Manila to retail it—where they make a monopoly of it, without the inhabitants [of Manila] being able to make any profit, such as they had before when the Chinese came to the said city to sell their merchandise. The latter, besides selling the merchandise for very suitable prices, gave credit for them until they came back again. Without spending money, the inhabitants then were benefited, and sent the said merchandise to Nueva España, and made very great profits on it. All this has ceased with the coming of the Portuguese, who not only give no credit, but sell the merchandise for excessive prices. If they do not receive the pay that they wish for the goods, they send them to Mexico at their own account. As they are settled in Manila, they keep the merchandise from one year to another. The Sangleys did not do that; for, in order to be able to return, they sold the goods at very suitable prices, or gave credit for them, by which the inhabitants made considerable profits. As that profit has ceased, they are becoming very poor, and have no capital, and there is no help for it. What they gained the Portuguese now gain; and the latter withdraw thrice as much money from Manila as the Sangleys did. The latter exchanged a great part of their merchandise for products of the country, which the Portuguese do not do, but take away the money in bars and reals. And although they allege in their favor, in order to continue the trade, that they are vassals of his Majesty, and that it is right for them to trade and traffic in Manila as in Castilla and in other parts of España, the fact is excluded that the inhabitants of that city have conquered those islands and shed their blood in that conquest, and always have arms in their hands for their defense. It is right that they alone should have this advantage (as your Majesty orders by the many decrees which have been despatched in regard to this), and not the Portuguese, who have and have always had places to trade and traffic in Portuguese India, Japon, China, and many

other parts. It is not right to snatch the bread from the hands of the inhabitants of Manila, who have no other trade or means of gain save that in the merchandise of China. If relief is not given in this very quickly, all the commerce of that city will be destroyed, and it is now so fallen for this reason. Besides, it is prohibited to the inhabitants of those islands by decrees, and in particular by one of the year 593, to go to the Canton fair or to China, as the Portuguese go to buy. It is also prohibited by many decrees for any Portuguese, notwithstanding that they are vassals of your Majesty, to trade or traffic in the provinces of the Indias without special permission. This same thing must be observed in Manila, just as it is observed in Nueva España and Piru.

Certain reasons that were presented having been examined in the royal Council of the Indias, it was ordered by a decree despatched November ten, one thousand six hundred and thirty-four, to send all the papers which were presented in behalf of that city to the governor and Audiencia of Manila; and commission was given to them so that, after examination of the documents by the fiscal and the royal officials (to whom a decree of like tenor was sent), they might apply in this matter such remedy as they deemed most advisable, and as a matter so important for the preservation of those islands demands.

King Don Felipe Second, having considered and foreseen the many difficulties [involved in decreeing] that no one of his vassals go to China to buy merchandise from the Chinese, ordered the said decree to be despatched January eleven, of the said year, one thousand five hundred and ninety-three (a copy of which is here presented), by which he ordered Gomez Perez Dasmariñas, governor of Manila, not to allow any inhabitants of those islands to go to China to buy merchandise from the Chinese; but to have the latter come to that city to sell them, at their own risk. That decree was enforced until the year one thousand six hundred and six; but it is now violated because the Portuguese have crossed over, contrary to the order of the said decree. They go to China, which is the act prohibited in the decree; and not only do they cause that damage, but they also deprive the inhabitants [of Manila] of the benefit which they had of receiving on credit the merchandise from the Chinese who go to that city. Further, they bought

the goods at very low prices, since, in accordance with the terms of the said decree, the governor and the city set the prices for the merchandise, which was a thing of great importance. And in order that the Chinese might return to Manila, and the inhabitants enjoy the profits and accommodations of former times, and the terms of the said decree of 593 might be obeyed, in which all the trouble that happens now was anticipated; and for confirmation of the above statement, and so that your Majesty may see that not only do the inhabitants of that city suffer damage because the Portuguese go to it with Chinese merchandise, but that your Majesty also loses vast sums of which the royal duties are defrauded: will you be pleased to order the certification which the writer presents, from the accountant of the official visit to be examined. From this, it is apparent that during the last thirteen years while the Sangleys had the trade in that city—from the year one thousand six hundred and six until that of one thousand six hundred and eighteen—they paid in duties to your Majesty, 574,627 pesos and six tomins; and that in another thirteen years while the said Portuguese of Macan have had the said trade, they have paid only 90,041 pesos. Figuring one period against the other, the royal treasury has had a shortage of 483,986 pesos and four tomins, a considerable quantity in only thirteen years. And, in order that this truth may be apparent to your Majesty, the writer presents the said certification of the annual amounts of the said duties, for both the thirteen years of the Portuguese and the thirteen of the Chinese.

[He also invites] consideration of the fact that the purpose of the said royal decree of 593 is subverted and violated by the commerce which the Portuguese of Macan carry on in China in order to take the merchandise by way of retail to the said city of Manila; for the said purpose declared in the said royal decree is that the said merchandise of China shall enter into the said Manila through the hands of the said Chinese, and at their own account and risk, as the said decree says, without any other persons being authorized to meddle in it at all, or any merchants save the said Chinese. Thus the said violation is manifest, since the said Portuguese are the ones who carry and deliver the merchandise in the said city, by means of the said commerce which they have in China. Without that it would be impossible to take them to Manila, or to violate the said royal decree. Since they are not deserving

of greater favor or benefit than the inhabitants of the said city—in whom concur so many merits and services, as is well known, and to whom the said commerce is denied by the said decree of 593—nor is there any cause or reason why the said Portuguese, who can not urge the said services, and who only think of the said retailing of goods and of their own interest and greed, should be permitted to trade; he petitions and beseeches your Majesty to be pleased to have a second decree of like tenor to that of the year 593 issued, so that it may be observed and obeyed exactly, as is stated therein. In it also should be included the case above mentioned, or it should be ordered anew that the said Portuguese shall not conduct or continue the said commerce in the said city—at least making it an offense to carry to Manila the said merchandise for which they trade in China, imposing therefor heavy penalties of confiscation, and others more severe in case of violation. By this the royal treasury will receive great benefit and increase, and avoid the so considerable injury and loss that has been set forth; and the said city and its inhabitants will receive an especial favor and grace, as is hoped from the greatness and the royal authority of your Majesty.

Further, he besought your Majesty to have filed with this memorial the letters which were in the secretary's office, written by the governor and Audiencia in regard to what is represented in the memorial; so that after the whole has been examined, the decision most fitting to the service of your Majesty and the preservation of those islands may be made. And that the great troubles that follow from the aforesaid may be seen, he petitions that an examination be ordered to be made of the memorial of seventeen articles which was presented by Jusepe de Naveda, regidor of that city.

Decree of our sovereign King Don Felipe Second, by which it is prohibited that any one go to China to buy merchandise from the Chinese; but the latter must go to the city of Manila to carry them, and sell them at their own cost and risk—in which decree are to be included the Portuguese of Macan.

The King. To Gomez Perez Dasmariñas, my governor and captain-general of the Philipinas Islands, and any other person who shall hereafter serve in the said office: know that I have been informed that many persons of those islands are going to Macan and other ports of China to trade and traffic with

the Chinese for the profit that results from it. From that result higher prices for the merchandise, and other notable inconveniences. And as it is fitting that a remedy be applied in this matter, I have determined to prohibit and to order—as I do by this present prohibit, forbid, and order—that no person, now and henceforth, shall trade or traffic in any part of China; nor shall any merchandise, on account of the merchants of the said islands, be carried or permitted to be carried from that kingdom to the islands, unless the Chinese themselves, at their own account and risk, shall carry it to the said islands, and sell it therein by wholesale. For this, you, together with the city council of the city of Manila, shall appoint each two or three persons whom you shall consider most suitable to value and appraise the said merchandise. They shall take it at wholesale from the Chinese, paying them the amount for the goods; and afterward it shall be divided among all the citizens and natives of the islands at that price, in accordance with their wealth, so that all may share the profit which results from this trade. You shall order that the said persons thus appointed keep a book, in which shall be entered the amount of money which is invested each time, and the price at which each kind of merchandise is appraised; among what persons it is divided; and the quantity that falls to each one's share. And I charge you straitly to have especial care to ascertain in what manner the persons deputed for that purpose exercise that commission. You shall not permit those who have held it one year to be chosen for it the following year. You shall send me a relation of all the aforesaid, signed by them, and another to the viceroy of Nueva España. And I order you, and also all other justices and judges, to observe and obey, and cause to be observed and obeyed, and executed to the letter, the contents of this our decree; for thus it is fitting for my service. Given in Madrid, January eleven, one thousand five hundred and ninety-three.

I the King

By order of the king our sovereign.

Juan de Ybarra

[*Endorsed*: “December 19, 635. Have these papers collected; bring what is provided.” “Have all these papers taken to the fiscal. In the Council, January 16, 636.” “The fiscal asks that this decree be brought authorized by the secretary, so that he may answer and petition what he shall believe to be expedient. Madrid, January 19, 1636.” “The fiscal says that the decree of which a reissue is requested does not touch upon the case for which it is now requested; and that he considers as a rigorous measure that what is therein permitted to the Chinese should not be permitted to the Portuguese, who are his Majesty’s vassals—they having occupied that port of Macan, as he understands, after the said decree was issued. Madrid, January 22, 1636.”]

Customs duties collected at Manila on Chinese merchandise

In thirteen years while the Sangleys had control of the trade of Chinese merchandise—namely, from that of 1606 to that of 1618—they paid in duties to his Majesty, according to the certification of the accountant for the official visit, 574,627 pesos, 6 tomins. In another thirteen years while the Portuguese of Macan have controlled the said trade, they have paid only 90,641 pesos, 2 tomins. Consequently, comparing the one time with the other, there is, as he has informed his Majesty, a shortage of 483,986 pesos, 4 tomins, in his royal treasury.

This account is presented in detail in the following manner:

Year of 1606	32,113	3 3 granos.
	pesos, tomins,	
Year of 1607 and 1608	75,462	0 4 granos.
	pesos, tomins,	
Year of 1609 and 1610	131,341	4 0 granos.
	pesos, tomins,	
Year of 1611	26,053	0 7 granos.
	pesos, tomins,	
Year of 1612	95,639	2 8 granos.
	pesos, tomins,	

Year of 1613	69,427	7 0 granos.
	pesos, tomins,	
Year of 1614	36,105	2 6 granos.
	pesos, tomins,	
Year of 1615	41,558	1 tomin, 1 grano.
	pesos,	
Year of 1616	23,377	0 0 granos.
	pesos, tomins,	
Year of 1617	37,179	5 5 granos.
	pesos, tomins,	
Year of 1618	5,770 pesos,	0 0 granos.
	tomin,	
	574,627	6 10
	pesos, tomins,	granos.

Duties which the Portuguese of Macan have paid on the merchandise of China in the thirteen years from that of 1619 to that of 1631, according to the same certification; and also those which the Chinese ships that have come in those same years have paid.

<i>Macan</i>			<i>Years China</i>		
pesos	tomin	granos	pesos	tomin	granos
1,172	6	3	1619	11,148	0 0
8,903	0	0	1620	27,797	0 0
9,653	5	0	1621	6,692	6 11
7,370	0	0	1622	8,040	0 0
4,238	3	5	1623	1,759	3 9
5,444	0	0	1624	2,998	6 0
6,917	0	0	1625	10,894	0 0
10,248	0	0	1626	22,580	0 0
9,092	3	8	1627	20,385	0 0
3,036	0	0	1628	2,943	0 0

641	0	0 1629	3,957	0	0
11,645	0	0 1630	6,287	0	0
7,480	0	0 1631	18,344	0	0
90,641	2	4	143,826	6	8

¹ *Bancon*: “A boat with three oars to the side, which is used in China.”—*Dic. Nacional ... de la lengua Española* (Madrid, 1878).

² The language of this sentence is somewhat obscure and elliptical, but would seem to indicate that the Portuguese fear the diminution of their trade in China with its natives, and the loss of their prestige in the carrying trade outside that country.

Decree Extending the Tenure of Encomiendas

The King. To Don Alvaro de Quiñones, knight of the Order of Santiago, my governor and captain-general of the province of Guatemala, and president of my royal Audiencia resident therein, or the person or persons in charge of its government: as you have understood, the repartimientos and encomiendas of Indians which the kings my forbears and I have been accustomed to grant to various persons in that country, in consideration of their services, have been for two generations. Inasmuch as my intention has always been, and is, to show favor to those who serve, equal to their deserts, and especially to the pacifiers and settlers of those provinces, and considering the special importunities that many persons make, that the repartimento or encomienda which they hold may be prolonged for one more generation, they representing to me not only their own causes, but the advantages therein for the Indians, and their good treatment and education: with the consent and advice of the members of my royal Council of the Indias, after they had consulted with me, I have determined to show favor generally to all those who hold the repartimientos and encomiendas of Indians in those provinces, by prolonging them for another generation, in addition to the generations for which they now hold them, provided that they immediately, for this reason, contribute to my funds—those who shall possess encomiendas for a second generation, with the value of the first three years; and those who shall enjoy them in the third generation with the value of two years—so that that may be an aid to the heavy expenses that my royal treasury incurs in defense of these and those kingdoms, and of the increase and conservation of our holy Catholic faith. [It shall be] provided that this prolongation be not extended, nor be understood to extend, to those who should hold encomiendas of which the value exceeds eight hundred ducados and more; for such encomiendas must be kept to reward worthy persons, in the manner that has been followed hitherto. In order that this may be executed as is desired, I have thought best to order you and to

charge you—as I do—that as soon as you receive this my decree you publish it in that city of Santiago, and in all the others of your government, so that all persons who shall desire the said prolongation of their repartimientos or encomiendas may come before you within one year, counted from the day of the said publication. Those who thus come before you within the said time you shall admit to the said agreement, under the above obligations. Having made the contract, you shall give them the necessary despatches, so that they may enjoy these for the third generation; and these shall be thus continued to them with the repartimientos which they possess, or shall be continued to those who shall duly succeed to them, according to the law of succession. They shall be obliged to have obtained within four years my confirmation of the same. Those who shall come after the said year has expired you shall in no case admit. With those with whom you shall make a contract, you shall try to regulate the value of the repartimientos and encomiendas, with the advice of the fiscal of that Audiencia and the royal officials of their district, enacting for that purpose the measures that you shall deem advisable; paying heed to the consolidations which must be made of the pensions that they pay at present. With those who shall possess their repartimientos and encomiendas without any stipulation for the consolidation, you shall contract in the same manner and form, with the obligation to come to obtain the confirmation. You shall proceed in both cases with the like care that the business be regulated and transacted so that my royal treasury be paid, exactly and promptly, what belongs to it because of this. The sum resulting from this you shall send me at the first opportunity in a separate fund, and shall not put it with the rest of my revenues—sending it directed to my president and official judges of the House of Trade at Sevilla. You shall make a special report of what proceeds from each contract, and of those who wish to make contracts in regard to the encomiendas which they possess in those kingdoms; and those who enjoy those encomiendas while living in these kingdoms shall come to make these contracts in the said my Council of the Indias, where they will be admitted without any time limit being set. Madrid, February 1, 1636.

I THE KING

By order of the king our sovereign:

DON GABRIEL DE OCAÑA Y ALARCON

Idem, to the [governor] of Yucatan, Philipinas, and Venezuela.

Military Services of Filipinos

Sire:

Don Juan Grau y Monfalcon, procurator-general of the Philipinas Islands, desirous of your Majesty's service and the welfare and conservation of those islands, and that the Indians who are under your Majesty's protection and pay you homage be preserved therein, represents that the Indian natives of the provinces of Pampanga, Camarinas, and Tagalos have served and are serving your Majesty with great love and fidelity, since the time of the conquest of those islands. Not one of those Indians has ever been found in rebellion, or has wrought any treachery, or deserted to the enemy. Those Indians, mingled with Spaniards, serve as soldiers in war, and have proved excellent therein. Especially are the Pampangos valiant soldiers, who have performed and are daily performing valiant exploits at the side of the Spanish. They were at the taking of Terrenate; and, whenever occasion offers, they with other companies come to guard the city of Manila. They also serve as rowers and pioneers in expeditions by the fleets. On all occasions that offer, they serve your Majesty with their persons and possessions. The natives of the province of Tagalos do the same. They, together with those of the province of Camarinas, serve both in war and in the building of galleons and galleys with great friendship and goodwill. In order that those Indians, especially the Pampangos and Tagáls, may be encouraged to continue your Majesty's royal service, he represents that it would be very advisable for your Majesty to be pleased to command that letters be sent to them, expressing your great appreciation of their conduct; as well as to the governor of Manila, ordering him to observe and cause to be observed *in toto* the decrees that were ordered to be despatched in their favor by their Majesties the kings Don Phelipe Second and Third. If it should be deemed advisable, since they are serving in the military and are so valiant soldiers, in order to encourage them for the future [the writer suggests that you] honor them with military offices and charges; for if the natives of the said provinces see that your Majesty is mindful of them, and

honors them through your royal decrees, they will be encouraged to continue your royal service with greater fervor. In case that it should appear expedient to despatch the said decrees, they could be sent to the alcaldes-mayor of the said three provinces of Pampanga, Tagalos, and Camarinas, and they should be ordered to assemble the leading Indians of those provinces, and have your Majesty's royal decrees read to them. Besides the many advantages that may accrue from your Majesty honoring the natives of these three provinces, may follow another very great one—namely, that the other Indians of the other provinces, who do not serve with so much friendship and promptness as they (on the contrary, many of them rebel daily and go over to the enemy), on seeing that your Majesty honors them by your royal decrees, and that the governors appoint them to offices and duties, will be encouraged to serve and to merit a like reward from your Majesty. All of the above he represents, so that your Majesty may take what measures may be deemed most fitting for your royal service.

[*Endorsed*: “Don Juan Grau, procurator-general of the Philipinas Islands. June 13, 636. Have the governor notified to be very careful for the Indians of these three provinces; and to encourage them greatly. Order him to summon their leaders so that they may always continue in his Majesty's service. Have a relation made to the effect that we have heard that they serve well, and of their fidelity. This being so, let him execute the aforesaid; and let nothing which is here proposed be said that may annoy the military officers.”]

Conflicts Between Civil and Ecclesiastical Authorities, 1635–36

SECOND BOOK OF THE SECOND PART OF THE CONQUESTS OF THE FILIPINAS ISLANDS, AND CHRONICLE OF THE RELIGIOUS OF OUR FATHER, ST. AUGUSTINE

[*Translation of title-page*: “Conquests of the Filipinas Islands: the temporal by the arms of our Catholic Sovereigns of España, and the spiritual by the religious of the Order of St. Augustine; and the foundation and progress of the province of Santísimo Nombre de Jesús of the same order. Part second: compiled by the use of the materials which the very reverend father Fray Gaspar de San Agustín,¹ author of the first part, collected, by Father Fray Casimiro Diaz,² native of Toledo, of the Order of our father St. Augustine, chronicler of this province of Santísimo Nombre de Jesús, procurator-general, and twice secretary and definitor of the same. With the necessary licenses. Valladolid³ ... 1890.”]

Chapter XV

The raid of the Mindanao pirates into Leyte. Election of father Fray Juan Ramirez as provincial. Arrival of the governor, Don Sebastian Hurtado de Corcuera, and the religious who came in his company.

That year of 1634 was so quiet and so barren of events worthy of remembrance that I shall not dwell long upon it; for there is nothing of which I have heard to detain me, unless it be the raid of the Mindanao enemy into the island of Leyte, and the depredations that they committed there with the license permitted to them in seeing that there was no attempt made in Manila to check them.

On Sunday, December 3, 1634, the Mindanaos arrived with eighteen galleys at the village of Ogmuc, leaving behind in that of Baybay the rest of the vessels which they brought in their fleet. Fifty of our Indians went out to resist them, but being unable to fight so many, they gradually retired to a little fort, possessed by the village. They thought that they would be able to resist the pirates there, being encouraged by their minister, Father Juan del Carpio, of the Society of Jesus; and they did so for some time, until the Moros, knowing that the church was higher than the fort, entered it and our men could not reach them with their shots. They planted three pieces in a convenient place at the church, in order to do great damage to those in the fort; and firing without cessation, they did not allow our men to fire a shot through its loopholes and windows. Others of the enemy hastened by another side to gather bundles of thatch by uncovering the roofs of the houses; and by fastening together what wood and bamboo they could gather, and pushing this contrivance toward the fort, they set it afire. The fire burned a quantity of rice and abacá (which is the hemp of this country), and many men were choked by the smoke. The besieged, seeing that the fire had caught the timber-work [of the fort], and that they were being inevitably killed without any chance to defend themselves, displayed a signal for surrender and in fact did so.

They were all captured; and a great contest arose among the enemy as to who should have Father Carpio as his captive. In this contention they had recourse to the Mindanao captain, and he ordered that the father be killed. That they did very gladly, and beheaded him and carried his head back to present it as a spoil to their king, Cachil Corralat. The latter had charged them not to leave alive any religious or Spaniard, for so had he vowed to their false prophet Mahomet in an illness that he had had. They took the others captive, and sacked and burned all the village. From that place they sailed out and committed the same destruction in the villages of Soyor, Binñangán, Cabalián, Canamucán, and Baybay. But they were so stoutly resisted in the village of Inibañgán in [the island of] Bohol, and in Dapitán, that they retired but little the gainers; for those Indians are very valiant, and very different in valor from the other villages which the Mindanaos sacked.

The Camucones also—a people from islands subject to Borneo, cruel and barbarous, and Mahometan by religion, although there are pagans in some islands—made their raids into the island of Panay, chiefly on the villages of Bataán, Domayan, and Mahanlur, and in those of Aclán and Bahay, where they captured many of our Indians, and burned the churches of the visitas. The visitas are usually deserted, and have no houses to defend them; and those Camucones are very cowardly and very different from the Joloans and Mindanaos, who are valiant, and much more so the latter named. The Camucones entered by the river and bar of Batán, which is salt water, where a very grievous jest happened to two or three of their craft. The river of Batán has another river a short distance above the village road, which ends in a very wide and spacious sea, which they call “tinagongdagat,” or “hidden sea,” in which the inhabitants enjoy excellent fishing. With the ebb of the tide that spacious sea is left almost dry, and then many kinds of shellfish are caught, such as oysters and crabs. The Camucones entered that sea, with the intention of lying in wait for some capture, but when they least expected it they found their craft on dry ground. An Indian who was gathering the aforesaid shellfish saw them; and, recognizing them to be piratical enemies by the style of their craft, went to the village and gave warning of them. Many of the inhabitants of Batán assembled, and, well armed, attacked the Camucones very courageously. They made a great slaughter of the pirates, and captured many of them and burned their craft. Some of the Camucones escaped through the mangrove plantations and swampy ground. They were captured next day, with the exception of those who had the luck to rejoin the boats of their companions—who repenting of their carelessness, returned to their lands, and did not return to try their fortune in those regions for many years.

Those Camucones enemies, entering that island of Panay in the same district between Bataán and Aclán, in 1672, captured the alcalde-mayor of Panay, Captain Don José de San Miguel. He defended himself against them until he was killed, and immediately when that was known they beheaded him, and took his head and skin to their land as a trophy. Better fortune was experienced by the notary, Pedro de Villarús, who was in another boat; for, having seen the Camucones, he had his boat beached, and, taking to the mangrove swamps, saved his life after great danger. This he attributed to a

miracle of the apostle St. Peter, to whom he was very devoted, and to whom he made a great feast as a thank-offering. The piteous death of that alcalde-mayor, Don José de San Miguel, could be attributed to the punishment of God, as he had been a cruel persecutor of the regular ministers; so much so that in the time during which he governed that province (which by the Divine permission was short), they suffered a great persecution. But God knows the truth; and it is not permitted, nor do I wish, to interpret the events of His holy will and providence. But it has not seemed proper to me to omit a circumstance which I positively know concerning that ill-starred youth; namely, that after his death, there was found among his papers a letter from his father, Don Basilio de San Miguel (who is said to have been much given to astrology and soothsaying), who told and ordered him not to receive an office of justice under any circumstance, for the first that he should obtain threatened him with a very great disaster. I know that fact absolutely; for the rest, concerning the infallibility and even possibility of like judgments, I declare that I am ready to obey the command of our holy Mother the Church, in the constitution of his Holiness Sixtus V which begins, *Cæli et terræ Creator*.

Father Fray Gerónimo de Medrano finished his triennium, notable both for his pacific and prudent government, and by the two martyrs of Christ who ennobled this province during his triennium. In the chapter celebrated in the convent of Manila, April 28, 1635—over which father master Fray Alonso de Carvajal presided, by virtue of the letters of our father-general—father Fray Juan Ramirez,⁴ a religious of great prudence, learning, and devotion, was elected, to the content of the whole province. The definitors elected were father Fray Estacio Ortiz, the father master Fray Teófilo Mascarós,⁵ Fray Cristóbal de Miranda, and Fray Andrés Berdugo.⁶ The visitors were father Fray Diego Martinez⁷ and Fray Juan Gallegos. They enacted regulations very useful for the good government of the province, and provided ministers for the ministries of it, both priors and vicars, as at that time it contained many distinguished members of the order.

Two galleons arrived at Cavite on St. John's day, which were returning from Nueva España with the reënforcements for these islands. The flagship of those vessels was called "Nuestra Señora de la Concepción" [*i.e.*, "Our

Lady of the Conception”], and the almiranta “San Luis.” They brought the new governor and a company of religious of our order, and also some of St. Dominic, among them father Fray Diego Collado.⁸ On July twenty-seven father Fray Diego de Ordás⁹ entered the convent of Manila with his mission, which was composed of twenty-five religious, who have been very useful to this province.

That same year came also Governor Don Sebastián Hurtado de Corcuera, knight of the Order of Alcantara, and member of the Council of War in the states of Flandes, where he had served many years with great credit, being one of the most renowned captains in the siege of Breda. He had afterward been master-of-camp of the port of Callao in Perú, and captain-general of the cavalry of that kingdom, and lastly governor of Panamá. He brought a great reënforcement of soldiers, many of them from Perú, as he made his voyage to Acapulco from that kingdom. He was a gentleman of great valor, and one prone to undertake rash enterprises. However he did not have much good fortune in the outcome of these, either in war or in politics, for all had a disastrous end. The reason of this is hidden, with the Divine plans; but, as the reader will see in the events that I shall soon write, it will appear that the beginnings of his government, fatal for these islands, could not have less unfortunate progress, the effects lasting until the present time. Don Sebastián Hurtado de Corcuera took possession of this government on June 25 of the above year.

His Majesty had promoted Don Hernando Guerrero to this archbishopric of Manila; and the latter, upon the arrival of the decree of presentation in the year 1632, asked the cabildo on May 25 to put him in possession of his government. But inasmuch as the decree which was required for it was lacking, the cabildo refused to receive him in possession until the arrival of the bulls and pallium. Consequently, he remained in Manila without governing, until, in the above year [*i.e.*, 1635], came an official statement that the bulls and pallium were already attended to in the Roman court; and he thereupon insisted once more that he be admitted to the government of the Church. There were various difficulties raised by the cabildo in receiving him; for in that ship there came only a statement from an apostolic notary, without approval. In regard to this matter long opinions

were uttered by each side, which were finally settled by admitting Señor Guerrero after he swore to present himself with the bulls and pallium within a year. In accordance with this, possession was given to him on June 25, 1635.

Don Fray Hernando de Guerrero began to govern this church at the same time that Don Sebastián de Corcuera these islands: At the beginning there were abundant indications of what would happen at the end; for the new governor showed himself so greatly bent on increasing his own jurisdiction that it was necessary to act with severity, and not to allow him to make precedents by which certain notions (already beginning to be apparent when he was governor of Panamá) which he had in mind should be established. That gentleman was at once very prudent, very harsh and austere, very tenacious in his resolutions, and wedded to his own notions—which is the occasion for the greatest errors in princes; for by not yielding, in matters that self-love adopts as certain, they allow themselves to be carried over any precipice. This passion was greatly predominant in that gentleman and was the cloud that obscured other talents, worthy of esteem, that adorned him. Immediately occasions of dispute arose between the two, not because Guerrero tried to meddle with the civil government, but because the governor was trying to govern both estates, by giving unfair interpretations to several matters called by the name of “royal patronage;” these are delicate to handle, and the attention with which they ought to be treated is not bestowed on them. Don Fray Hernando greatly regretted the unavoidable occasions that arose, and feared that by the precedent of the first disputes all those which might afterward arise would be regulated; and accordingly, he tried not to weaken at the beginning, which is the time when one must pay heed in order to avoid consequences.

The first occasion when the governor contrived to introduce himself into the ecclesiastical government more than was his right, was in trying to aid father Fray Diego Collado of the Order of Preachers in the division which the latter was attempting to make of the province of Santo Rosario, under the title of “Congregation of San Pablo,” dividing the province into two parts. For that purpose the father had brought a company of religious, who were called “barbados,” because they wore long beards, and were destined

for the new province which he was going to found under the title of “congregation,” for the conversion of Japón and China. For this purpose the said father Fray Diego Collado had obtained the bulls necessary for it in Roma; but seeing that he would not be given license for it in the royal and supreme Council of the Indias, on account of the difficulties that were apparent to the eyes of the least prudent, he did not present them there, being content with having Don Sebastián Hurtado de Corcuera on his side, with whom he had come to these islands in the aforesaid company. That was a very dangerous and critical time for the province of Santo Rosario, which was exposed to many disturbances by the division that they were trying to make of it; and the best convents near Manila were to be taken away from it for the new congregation. In that pretension the aid of the governor was freely used, and it was necessary for the archbishop to oppose him, the province of Santo Rosario having had recourse to the latter. Thereupon the dispute was openly declared, because the governor tried to carry to completion the undertaking that had been begun. The said division would without doubt have been carried into effect had it not been opposed by the archbishop and by Don Fray Diego de Aduarte, a Dominican, and bishop of Nueva Segovia. That was the beginning of the sharpest controversies that have been seen in the Indias between the two jurisdictions—ecclesiastical and civil; and from it originated the disturbances which scandalized the world, causing lamentable effects which are experienced even until the present time. Not only laymen, whom worldly considerations cause to follow the side of power in these islands, conspired on the side of the governor, but also certain ecclesiastical persons, whose advancement depended on the will of the civil government. These latter, being domestic enemies, were the greatest spur in the hostilities that had been begun. They would have been ended by the care that the archbishop was taking, had the unyielding disposition of Don Sebastián de Corcuera, in what had been begun, allowed him to be less insolvent in what he was attempting. For if on such occasions something is not yielded on both sides, the fire that has been started will continue to increase until any check will be entirely impossible—as was experienced on this occasion; for instead of being extinguished, it became more furious with what happened afterward, as we shall see in the following chapter.

Chapter XVI

Relation of the disputes and strife between the archbishop and the governor, Don Sebastián Hurtado de Corcuera.

The strife, being greatly inflamed by the events above mentioned, became entangled with one of the most memorable disputes that have occurred in the islands—a necessary occasion for the sharpest encounter between the two jurisdictions, and one from which Don Fray Hernando Guerrero could not excuse himself, as it concerned the most sacred part of the ecclesiastical immunity. That was a matter in which the archbishop could not neglect to sally out with all his might, in order to comply with the obligation of a true prelate. The case was as follows: There was an artilleryman in Manila, named Francisco de Nava, who had a female slave with whom he had illicit communication, as came to the ears of the archbishop. The archbishop ordered him to remove from himself this occasion [for sin] by selling the slave-girl to another person; and had the latter placed, for that purpose, in the house of a lady who was related to Doña María de Francia, who became fond of her and arranged to buy her from the artilleryman. The latter was so beside himself over the loss of the said slave that he refused to sell her at any price, saying that he wished, on the contrary, to marry her. But Doña María de Francia so arranged matters that the slave was sold, and came into her possession with very slight effort. The artilleryman, grieved and regretful for what had happened, almost became mad, and, it having been given out that he was mad, certain violence was shown him; and on one occasion he had received a sound beating at the house of Doña María de Francia, because he had gone there to request that they should give him the slave, as he had resolved to make her his wife.

Aggrieved and rendered desperate in this way, he saw the girl pass one day in a carriage with Doña María de Francia. Going to her he asked her whether she knew him, who was her master. The slave answered him with some independence, whereupon he, blind with anger, drew his dagger in the middle of the street and killed her by stabbing her, before anyone could

prevent it. All the people, both those in the carriage and those in the street, ran tumultuously [after him]; but the artilleryman escaped them all, and took refuge in the church of our convent in Manila. The governor heard of what had happened, and ordered Don Pedro de Corcuera, his nephew (who was then sargento-mayor of the camp), to take the artilleryman from the church, saying that he could not avail himself of the sanctuary of the church, as he had committed a treacherous act—although it was only a homicide, and the settlement of this question did not concern the governor. However, his action arose mainly from the anger that he felt that what had happened was in the presence of his nephew, Don Pedro de Corcuera—who, also being angered at what concerned his wife, made use of his commission with less prudence than he ought to exercise in executing such orders from his superiors. He caused the church and convent to be surrounded; and, going inside, examined everything, not excepting even the sacristy; and it is even said that he declared that, if he found the artilleryman there, he would take him out a prisoner. But not having been able to find him then, Don Pedro left the church and convent surrounded by a double guard. The governor added to that that he would not allow the religious to enter or leave, until he had hold of the refugee. The latter was finally found, and taken from the sacristy, and surrendered to the commander of artillery, in order that he might proceed with the trial as his competent judge; and he, either carried away by flattery, or in obedience to the commands of the governor, proceeded so hastily that in a very short time he condemned the artilleryman to death.

The archbishop's provisor, Don Pedro Monroy, bore himself on this occasion with the prudence that was fitting, and proceeded against the commander of artillery, requesting him to deliver his prisoner and return him to the church. Having been informed that the commander of artillery was a mere instrument, and that all his actions were according to the impulses of the governor, he sent three lay priests to the palace to intimate to the latter that the judge should deliver the refugee to him. The priests entered, without anyone hindering them; and finding that the governor had already retired, as it was then an advanced hour of the night, they started to withdraw in order to return next morning; but the soldiers of the guard

would not permit them to leave, saying that such was the order of the governor.

The sentence against the artilleryman having been given—which it is said that the governor sent ready made out to the judge, to sign—they proceeded to execute it, notwithstanding that the provisor proceeded to threaten censures, and to impose an interdict¹⁰ and suspension from religious functions [*cessatio de divinis*]. The governor ordered a gallows to be erected in front of the very church of St. Augustine, and the criminal was hanged thereon—to the contempt of the ecclesiastical immunity, for the [proper] place assigned for such punishments was very distant from there. The governor, seeing that the sentence was already executed, and that he had now obtained the chief object of his desire, wrote to the archbishop, requesting him to have the censures removed and the interdict raised, and the churches opened on the day of the nativity of our Lady. The archbishop, recognizing the duplicity of the governor, refused to answer that letter without first consulting the orders; and, after consulting with some of them, decided that he would not raise the interdict, since there was less inconvenience in having it imposed [even] on so festive a day, than there would be in his yielding on an occasion so inimical to the ecclesiastical immunity. However, the requests of the Recollect fathers of our father St. Augustine, who had charge of the advocacy of the nativity, had so much influence that the archbishop ordered the interdict to be removed, and it was done.

The commander of artillery was condemned to some pecuniary fines, from which he appealed to the judge of appeals, who was the bishop of Camarines. The ecclesiastical judge refusing to admit the appeal, he threatened the royal aid of fuerza; and this question having been examined in the royal Audiencia (which at that time consisted of but the governor and only one auditor, Don Marcos Zapata), it was declared in his favor, and the appeal went to the bishop of Camarines. The latter—namely, Don Francisco Zamudio, of the order of our father St. Augustine, and a son of the province of Méjico—declared the commander of artillery to be free from the sentence given by the ecclesiastical judge. The trial of the commander of artillery had its second hearing. On that account there did not fail to result

certain charges against the governor, such as his having ordered the secular priests to be detained in the guard-house; his declaration that he could not be excommunicated by anyone except the pope; and that if an order were given to him to arrest the pontiff, he would arrest him, and even drag him along by one foot (which he was proved to have said by several persons). The governor freed himself from all these charges by excuses in a manifesto which he published; but as it is not a part of my duty to examine their adequacy, I shall not do so. I shall refer the reader to the reply made to him by a learned ecclesiastic of the university of Méjico;¹¹ for there is no liberty in Filipinas to enable any one to complain, or to speak his mind against what the government manipulates.

The governor ordered the provisor, Don Pedro Monroy, to go to the island of Hermosa to serve in the post of chief chaplain, endeavoring by this means to revenge himself—as if he were able to give the former the collation and the spiritual jurisdiction necessary. The provisor resisted him, and informed the archbishop thereof. The governor also wrote a letter to the latter, ordering him to appoint another provisor in place of Don Pedro Monroy, both because he had been assigned to the island of Hermosa and such was advisable for his Majesty's service (the mask under which the passions of those who ought to fulfil their duties with justice are generally cloaked), and because the office of provisor could not be exercised by him in contradiction of a royal decree which ordered that the provisor should not be one who had not been graduated and who did not have the learning necessary (although the learning of Don Pedro was sufficient, and the holy Council [of Trent?] and the sacred canons do not fix conditions for such an office). The archbishop convened the orders for the solution of this matter. Having written to Father Luis Pedrosa, rector of the Society, to attend the meeting, the said father rector excused himself; and, although summoned the requisite number of times, he refused to attend. Consequently, the archbishop promulgated an act, in which he deprived the fathers of the Society of the privilege of preaching throughout the archbishopric, of the titles of synodal examiners, and of active and passive right of assembly with the secular priests and the orders both in public acts and in other functions, in consideration of the fact that they refused to concur in the defense of the rights of the ecclesiastical estate. On the following day, Tuesday, October 9,

1635, the archbishop sent a letter to the governor, requesting him to accept the excuse given by the provisor, so that he might not go to serve in the post of chaplain at the island of Hermosa; for he had need of him [*i.e.*, the provisor]. The governor should know that it was beyond the power of secular judges to appoint ecclesiastical vicars and to confer spiritual jurisdiction. Consequently, he petitioned the governor in his own name, that of the bishop of Cebu, and those of the orders, to refrain from such appointment; and counseled him that he should consult with learned persons who feared God, since there were so many in the body of secular priests and in the orders, in such determinations. The religious of the Society, angered at the act of the archbishop, after various demands and replies on both sides (which I shall not set down here, as it is not my intention to stir up so delicate matters—in which it must be believed that each one would strive according to the dictates of his conscience, for one cannot imagine the opposite of either side, rather believing that the common enemy was preparing his weapons in order to occasion the misfortunes that followed afterward), appointed the schoolmaster, Don Fabián de Santillán y Gabilanes, judge-conservator (because they declared that they were prevented from the exercise of their privileges). He accepted the appointment, and immediately erected a tribunal against the archbishop, issuing acts against him and fulminating censures in case he should again oppose the proceedings that had been commenced.

Who could now look for less lamentable issues than those that were seen in these islands from so wretched beginnings, as are those that we have seen even to our days? The archbishop was very much grieved over this determination, for he saw arrayed against himself, on one side, the tyrannical governor (for Don Sebastián Hurtado de Corcuera was domineering), and on the other an order so great as the Society. Notwithstanding he determined to present himself in the royal Audiencia by way of [pleading] *fuerza*, although he recognized the little that he could accomplish by that means. But he was unwilling to incur the fault of having failed to take this precaution, as was determined by the orders of these islands—who firmly and steadfastly assisted the archbishop, aiding him to maintain the ecclesiastical immunity, which was running so great danger. The archbishop presented himself in the royal Audiencia, where his

arguments were examined in two meetings; and a disagreement [in the Audiencia] having resulted, the fiscal, who was the third, undertook to discuss the question. He declared against the archbishop, saying that the judge-conservator had used no fuerza. The latter continued to urge his censures against the archbishop, who, destitute of all aid, determined to surrender and withdraw the acts. He first made a protest before Diego de Rueda, royal notary and a familiar of the Holy Office, in regard to the fuerza that the governor and the judge-conservator were employing against him. When the governor learned of the protest that the archbishop had made, he had the notary, Diego de Rueda, arrested, through the agency of the judge-conservator, and locked him up in the castle of Santiago, after having taken from him his deposition as to the contents of the protest—for the governor had been informed that it was a defamatory libel against him. The notary declared that the protest of the archbishop contained no special clause that was prejudicial to anyone, but that it was directed only to the defense of his rights. After the arrest of the notary, the judge-conservator fulminated new censures against the archbishop, ordering him to annul the protest. The archbishop treated those censures as invalid, for the judge-conservator's jurisdiction did not extend to the trial of that question. He further replied that the said protest no longer remained in his possession, as it had been given to father Fray Diego Collado to keep. He contented himself with this reply, being unwilling again to attempt the remedy of having recourse to the Audiencia by a plea of fuerza, whence he knew that he would issue ill-despatched. The archbishop retired to the convent of St. Francis, where the governor went to see him, pretending that he wished to serve as intermediary between the archbishop and the judge-conservator, although it was clear that all the actions of the latter were regulated according to the governor's intentions, and were executed by his aid. At the end of his visit he asked the archbishop to give him the protest, pledging his word that he only desired to burn it, without reading it or showing it to any one. The archbishop recognized the purpose of his pretense, and reaffirmed the first reply that he had given the judge-conservator. In order to free himself for the time being from the importunities of the governor, it was necessary to give him some hope that he would make the efforts possible to get hold of the protest and send it to him. In a letter that he sent afterward to the governor, he wrote the following:

“After your Lordship showed me the kindness to come to console and favor me, the most diligent efforts possible were made in order to have the protest returned to me. But it is hammering on cold iron. What more can I do? Had my purpose been not to show it, I could have said that I had torn it up, or have alleged some other pretext, and would not have indicated the person to whom I gave it to keep, as I knew that there was an order to sequester my goods. Since it is impossible, sir, and it is not my fault, I do not accept the excuse which your Lordship gives me in your letter, in order to free yourself from showing me further kindness, and from making the effort to settle this matter as a governor and friend. Therefore, I petition your Lordship, since this matter rests with you, and is to be settled by you alone, and since you are all-powerful in this matter, that your Lordship do as you are able to do for one who has recourse to your protection; for I wish to remain in your Lordship’s protection, only bound to serve you as long as I live. May God preserve the life of your Lordship for long years. From this convent of St. Francis, November 24, 1635.

FRAY HERNANDO, ARCHBISHOP.”

That prelate wrote the letter with this humility and gentleness; but it was insufficient to cause the so ingenuous confession of the archbishop to be believed, although it was the truth.

On the other side, father Fray Francisco de Herrera, of the Order of Preachers, commissary of the Holy Office, made a demand, asking that the notary, Diego de Rueda, as one of his household, be given up to him. For that purpose he fulminated censures against the judge-conservator, demanding from him the prisoner, and ordering him to make no further search for the protest, as that was outside his jurisdiction. He was obeyed, and order was given to deliver the prisoner to him; but the governor refused to deliver him up. Consequently, the father commissary of the Holy Office sent two religious of St. Dominic to notify the governor by another act, similar to that sent to the judge. The governor not only did not obey it, but arrested the two religious and sent them to Cavite with an adjutant, and had them placed in the convent of San Telmo of their order. Afterward, when the governor found himself at variance with the tribunal of the Holy Office,

he began to work more clearly in the opposition that he had commenced, repeating many times that proposition of his which speaks of the ecclesiastical estate: "In order to curb the spirit of the obstinate and arrogant mule, take away its fodder." That was an impious comparison, and unworthy of a gentleman who was so good a Christian and so devout, and of whom some pens so well affected to him write so much, that already they pass on (as is generally said) to ennoble his actions, gilding his errors with the excellent gold of vigor and rhetoric. Some of them, however, refrain almost entirely from discussing this contention, which gave the Dutch of Batavia much matter for blasphemous talk.

Don Pedro de Monroy had retired outside the walls of the city, as he had already left the office of provisor. The governor ordered that he be not allowed to enter the gates of the city. Consequently, when he deemed it advisable to enter Manila to see the archbishop, he had to disguise himself in the habit of St. Francis; and went to enter through the gate of Santo Domingo, with a religious who accompanied him. The commander recognized him, and, together with the rest of the soldiers, surrounded him and tried to take him to the governor, as they had an order for it. They would have accomplished this, had not some religious of the convent of St. Dominic come up, who, although maltreated by the soldiers, removed Don Pedro Monroy from that danger, and placed him in their convent. Matters daily continued to grow worse, for the governor neglected no occasion, nor left any rock unturned in order to annoy the archbishop—now taking as his instrument the judge-conservator (who was continuing to accumulate acts against the archbishop), now arousing new causes for controversy. However, he was impelled in all this by the suggestion of a third party, and of late by Don Andrés Arias Xirón, who was the secular priest most opposed to the archbishop—both in having prevented the archbishopric from being given to him, as we have already related, and because he was the close friend and helper of the conservator, Don Fabián Santillán. Another and still more recent cause was, that in the visitation that the archbishop was then making in the chapel of Nuestra Señora de Guía, where the said Don Andrés was acting as cura—in which the natives had deposed various charges against him; and on account of their verbal process, as it appeared that he had threatened them, the archbishop had

ordered him by an act to leave his benefice within four and twenty hours, and to remain six leguas from it. Don Andrés Arias Xirón did not obey that order, and remained in Manila, where he had recourse to the royal Audiencia by a plea of fuerza, which was decided [to be such] by the only auditor, Don Marcos Zapata, who was not ignorant of the rules of the Council of Trent which forbid appeals in a trial arising from the visitation. On account of that decision of fuerza, the archbishop declared the auditor Zapata to be excommunicated; consequently, that official was also ready to work against the archbishop. All greatly blame that magistrate, because Don Sebastián de Corcuera found an aid and support in him. One would believe that the Holy Spirit talks with the governors and auditors of Filipinas more than with others, although these words and warnings are declared in the chapter of Wisdom: *Discite iudices finium terræ, prebete aures vos, qui continetis multitudines, et placetis vobis in turbis nationum; quoniam data est a Domino potestas vobis, et virtus ab Altissimo, qui interrogabit opera vestra, et cogitationes scrutabitur, quoniam cum essetis ministri regni illius, non recte judicastis, nec custodistis legem justitiæ, neque secundum voluntatem Dei ambulastis.*¹² Of such ministers and counselors, the holy king said that they who were confounded and ashamed should remove themselves far from him: *Avertantur statim erubescences, qui dicunt mihi, “Euge, euge!”* (Psalm lxix). But He must have chosen on this occasion that the passion of the governor should regard the flattery of that magistrate as to his favor, in order to excuse his own conduct. It may be that his error was for lack of his understanding and not of his will; and to judge of that pertains to the Supreme Tribunal.

At that time the Order of the Society having considered the disturbances which the judge-conservator had occasioned, full of repentance at having been the origin of troubles of so disagreeable publicity, in the attempt to check them for the sake of the future made the judge-conservator renounce his commission, and be absolved by the archbishop. This the latter did on January twenty-eighth, 1636. The governor pretended that he had been the mediator of that agreement. The archbishop nodded acquiescence and pretended to believe it, in order not to lose that occasion for peace. The governor went to the archiepiscopal house, and took the archbishop to the church in his own carriage, and there knelt down on his knees, begging

pardon from him. The good prelate gave him pardon very willingly, thinking that that was to be the end of all those past troubles. But the common enemy did not so permit, for he very soon relit the fire which had only been hidden under the ashes of those courteous exteriors.

Chapter XVII

Of the lamentable ending of the disputes between the governor and the archbishop; and how the latter was exiled to Mariveles.

Within a short time, the old wounds were reopened, and the archbishop was given new causes for anger in which it was impossible for him to employ dissimulation, as they were all concerning the administration of his office. The governor deprived the Order of St. Francis of the administration and chaplaincy of the royal hospital of Manila, which they had administered with great care, charity, and zeal; and appointed a lay administrator and a secular chaplain. The archbishop felt that greatly, and declined to give the new chaplain permission to administer the sacraments, on account of legitimate reasons which he had for this step. The latter had recourse to the Audiencia by plea of fuerza; and the auditor, Don Marcos Zapata, immediately declared that it had been committed. The archbishop protested, knowing by what had happened in the past the prejudice that the said auditor felt, and because one auditor with only the fiscal could not constitute so sovereign a tribunal. For the fiscal had not the royal appointment, but had only been appointed by the governor *ad interim*; for the plurality of votes which attest a correct decision and authorize the best opinion, according to the Divine sentence *Salus autem ubi multa consilia* (Proverbs, ch. 5), were lacking. This has been experienced on various occasions, on which only one auditor has been left in Manila, an arbiter following rather the dictates of his will than that of his understanding, which has the truth as its object.

At that same time, Don Francisco de Valdés having resigned the post of archdean, to which he had been presented by Don Juan Cerezo de

Salamanca, the governor appointed Don Andrés Arias Xirón to it on the eighteenth of April, and presented him to the archbishop, so that the latter might give him the collation. The prudent prelate grieved sorely over an occasion that could only with great difficulty terminate satisfactorily, as the said Don Andrés was then prohibited from being promoted to any dignity, because of the visitation in which he had been proclaimed as a criminal by many heavy charges, which demanded a rigorous sentence and deprivation of the benefice that he held; and it was impossible to give him the collation for so lofty a dignity according to the holy canons and council. The archbishop refused to commit a like act of injustice, whereupon Don Andrés Arias Xirón, aggrieved, interposed the appeal from fuerza, which the auditor Zapata did not fail to declare against the archbishop. He did this, and despatched a royal decree for it, which the archbishop refused to obey. The governor was very angry at not succeeding with his attempt, and because the archbishop had not given the canonical collation to Don Andrés Arias Xirón. That strife increasing in violence by means of the interlocutors, Don Andrés and the auditor, the declared enemies of the archbishop, assemblies and meetings were held in order to exile the archbishop from the kingdom, because he did not obey the royal decrees. In conclusion, they issued a decree for his exile, and notified the archbishop of it May 9, 1636.

The archbishop called a meeting of the orders, in order to consult them and get their advice in so urgent a case. All were of the opinion that the archbishop ought not to yield, since what they were trying to compel him to do was manifestly unjust. They exhorted him to be constant in defending the ecclesiastical immunity, and the observance of the holy canons; for that, in case he were exiled, he was suffering for defending his church as a good shepherd, and it was enough to acquire the aureola of a martyr. Upon this the archbishop took the resolution to suffer for his church, with a valor and constancy worthy of wonder. The party of the governor having learned this, and that the archbishop would not yield his right, the governor determined to execute what had been decided by what he called the royal Audiencia.

The evening of that same day, Friday, May 9, the governor summoned the auditor Zapata and the fiscal to a meeting. After the meeting they sent the

chief constable of that court with orders to execute the banishment of the archbishop. He was given such aid of soldiers as the governor deemed sufficient. The latter also sent other squads to the cathedral church, so that they might take their station in the sacristy of the most holy sacrament, so that it might not be taken out or destroyed. That order went forth and immediately the city learned of the impious imprisonment that was about to be executed on their shepherd. It caused great excitement and grief to all, and a great scandal among the natives of these islands, even among the pagans and Mahometans who frequent the islands for commerce; and not many wished to concur in so unjust a determination. The orders hastened to the archiepiscopal houses, where they found the archbishop with the warnings that they were about to arrest him, clad in his pontifical robes. He, also knowing that the most holy sacrament was being guarded in the cathedral, sent father Fray Juan de Piña, guardian of St. Francis, to his convent for the most holy sacrament. On that occasion it was placed in a lunette; and it was brought with all the propriety possible, accompanied by many religious carrying candles. When it had been brought, the father guardian placed it in the hands of the archbishop. He, bathed in tears, received it; and, with noteworthy courage, seated himself to await the agents of the execution. He sent his notaries to notify the governor and the auditor, Don Marcos Zapata, of censures; but the notaries, finding them assembled with the fiscal in the hall of meeting, had more respect for the human Majesty, whom they represented there in assembly, than the chief constable and his helpers had for the supreme majesty of majesties, Christ our Lord, whose sacrament was in the hands of the archbishop. Therefore the ecclesiastical notaries notified them at the doors. While doing this at one of the doors, it is said that the governor ordered a soldier to extinguish the lights by which they were reading, by waving his hat, which was done.

At that same time the chief constable and his helpers were in the archiepiscopal house, where the archbishop was found in the manner above described, surrounded and accompanied by all the orders except that of the Society of Jesus. The chief constable sent to advise the governor of the condition in which he had found the archbishop, whereupon the governor sent him orders that he should cause the religious to retire to their convents; and that, when the archbishop grew tired of holding the most holy

sacrament, he was to arrest him with the soldiers whom he had with him. That was intimated to the religious and lay priests who were about the archbishop; but they refused to obey it, fearing lest they incur the wrath of God if they abandoned the prince of the Church on such an occasion. Thus by common consent they remained to aid their afflicted prelate; relieving him at times by easing him of the weight of the lunette, by placing their hands on those of the tired old man, whose eyes were turned into two fountains of tears when he reflected on the acts of desecration that they were practicing on the Supreme Lord. The governor was so far from mitigating his anger in what he had commenced, that, in place of repenting and returning to himself, he took horse, although it was the middle of the night, and went to the archiepiscopal house; and, seated at the door, sent his orders to the executors of the commission. The first order was for them to eject forcibly all the priests who were with the archbishop, the adjutants striking the soldiers with the flat of their swords and giving them heavy blows because they did not execute their orders. Thereupon the religious, seeing that the poor soldiers were forced to do what they did not wish, allowed themselves to be seized and carried outside. The soldiers humbly begged their pardon, protesting that they were under orders. The governor's purpose was to wait until the archbishop, destitute of all human consolation, should surrender on account of his advanced age and his lack of nourishment, his watching and continual annoyance, and should relinquish the most holy sacrament, so that they could then seize him and make him enter the boat. That report circulated among the orders, and accordingly they all came in a body with lighted candles to attend to the recovery of the most holy sacrament. But the governor had already seized the entrances of the streets by means of soldiers, in order that they might not pass, and they accordingly returned to their convents. The city and the magistracy sent their commissaries to the archbishop, begging him to avoid compromising himself, which was equivalent to telling him to allow himself to be arrested and exiled. For, as these islands are one body which has only one head, it is the latter which attracts all wills to his own; for fear (which is very powerful here), or self-interest, has more place here than anywhere else in the world.

The afflicted shepherd seeing that “this was his hour of darkness,” and that the frightened sheep had abandoned him, ordered the interdict to be raised—the grieving bells publishing the feeling that many did not give vent to and others could not show, in order not to incur the anger of the passionate governor. The governor ordered the soldiers to disperse the religious by force, even if they had to take them into custody. The soldiers carried out the order with the violence necessary for so unjust a sentence, being instigated by the sword-blows and strokes of the adjutants. That having been seen by the priests, they pitied them so keenly that they preferred to have that punishment executed on them than on the poor soldiers. Some religious were seated beside the archbishop to see whether they would be allowed to aid him; but so many were the pushes and prods given them by the soldiers, that not only did they tear them away, but they fell down with the holy monstrance breaking the lunette in which was the holy host. This ought to be written with tears of blood. The father guardian of St. Francis and a secular priest hastened to put a strap about the archbishop’s neck and to fasten the lunette to him, so that he could support it, for his powers were now failing him. At that juncture, order was given to a soldier named Juan de Santa Ana (whom I knew, and who told me that event many times), to draw away the hand of the archbishop. He, assisted by a living faith, answered boldly that he would kill himself before he would commit such an act of sacrilege. Then drawing his sword, and placing the point in his breast, he fell upon it. By the permission of divine Providence, the sword doubled up in such a manner when the soldier fell upon it, that he was not wounded at all. That incident caused great surprise to all the bystanders; but the governor was so little moved by it that he ordered the soldier to be arrested, when he ought to have rewarded his heroic determination. At one o’clock at night, the archbishop was so greatly weakened and tired out from thirst, that he begged to be given a little water. They sent to consult with the governor as to what they were to do. The governor ordered that they should not allow it to be given him, explaining that the denial of the temporalities was understood not to allow water to be given him for his thirst, and that to do otherwise would be not to execute the royal law—as if so sovereign dispositions extended to such impieties. Advice was given to the convents, threatening the suspension of religious functions, in order that they should not forestall by celebrating the offices of the following day. The

archiepiscopal hall was cleared of the religious who were assisting the archbishop, the soldiers having already driven them away by blows. The soldiers stationed themselves with firearms in hand, and thus did they remain all the night without giving any nourishment to the archbishop, except what a pious Franciscan religious could give him by applying to his lips a wet cloth, under pretext of tightening the strap with which the most holy sacrament was fastened to the afflicted prelate's breast. And he did not receive any other nourishment for a day and a half, until they took him to the island of Mariveles. Saturday, the second [*sic*; *sc.* tenth] of May dawned, the most fatal day that these islands have seen. On that day the archbishop was so defeated that, seeing that he could make no further resistance for lack of strength, he ordered the most holy sacrament to be returned to the church with all possible reverence, and, bathed in tears, he laid aside the pontifical robe. Immediately he was seized by an adjutant and fifty soldiers with firearms. They led him from the archiepiscopal palace on foot, at five in the morning, and without other following than the troops who executed the tragedy. They did not need so great preparation for an old man of sixty, worn out by so much fatigue, hunger, and thirst. They took him on foot through those streets boasting of their victory, the fearful inhabitants thrusting their heads out of the most hidden windows, frightened by the despotic governor, to whom any commiseration that should be shown to the poor archbishop was regarded as a detestable crime. The soldiers took the archbishop to the gate on the river, called Santo Domingo, where the prelate, complying with the precept of Christ, shook off the dust from his shoes; and, bathed in tender tears, he threw five little stones at the ingrate walls of Manila. It was noted that one of them touched the leg of Don Pedro de Corcuera (sargento-mayor of the camp, and chief of that impious execution), where later in the war with Joló he received a ball, from which he died.

They put the archbishop aboard a champan of a ship-captain called Marcos Cameros, who would not allow one single mouthful of food to be placed on board. Setting sail, they carried the archbishop to the island of Mariveles, which is situated in the middle of the mouth of the bay. There they disembarked the exiled shepherd, for whose lodging they had provided a wretched little room, where he suffered many discomforts, too long to

relate; for it has not been my intention to enlarge upon this lamentable tragedy, in the narration of which I have omitted many circumstances which aggravate the execution [of his banishment]. For it is my intention not to exaggerate, but only to relate succinctly what happened; and, although eye-witnesses of everything are not lacking today, to guide myself by the most truthful relations, and chiefly by those which are found in a book containing sketches of the archbishops, which is kept in the cathedral church of Manila.¹³

The purpose of the governor and his followers having been obtained, as we have seen, they persuaded the ecclesiastical cabildo to take charge of the government, interpreting the archbishop's exile as a vacant see, thus opening the door to other disturbances, no less serious, which originated from this intrusion—in the very sight of the archbishop who was [still] within his diocese, and who had left a provisor in Manila, Doctor Don Francisco Fernandez de Ledo. For his forcible banishment and the deprivation of his secular revenues did not extend to his spiritual jurisdiction, which originated from the Roman pontiff. In case that the church had suffered a vacancy by the death of the archbishop, then the bishop of Cebú, Don Pedro de Arce, was to enter its government; for it belonged to him by virtue of the bull and royal decree mentioned in another place. The archbishop had already appointed the father master, Fray Francisco de Paula, of the Order of Preachers, to govern the archbishopric in the first place, and two others in the second, and hence they could not allege the condition of affairs that the law points out in the chapter *Si Episcopus: de supplenda negligencia Prælatorum*, in Case sixth. That happened afterward in Manila, in the exile of Archbishop Don Fray Felipe Pardo,¹⁴ of the Order of Preachers, who had appointed to his place of governor during his absence Don Fray Ginés de Barrientos, bishop of Troya; the cabildo refused to admit him, but [declared] that it was a case of a vacant see, and took charge of the government—which cost the dean, Master Don Miguel Ortiz de Covarrubias, and all the prebendaries, very dear.

The cabildo took charge of the government at the governor's command, and appointed Don Fray Francisco Zamudio, bishop-elect of Camarines (who

had come to Manila to negotiate concerning his bishopric), as provisor-general. He received the appointment under protest of *ad interim* until the bishop of Cebú should be advised, for the vacancy pertained to him in case that one were proclaimed. He absolved the governor, the auditor Zapata, and the others included in the excommunications of the archbishop, on the twentieth of May. It is said that when the cabildo were obliged to take charge of the government by the governor and auditor, they entered their protests; but the archbishop was greatly grieved over it when he heard of it, which with the many other sorrows [that he endured] made it remarkable that his life did not come to an end, since he was so aged and had borne so many hardships.

Chapter XVIII

Return of Archbishop Don Fray Hernando Guerrero from his exile in Mariveles; and the end of the relation commenced.

Stripped of all consolation, the archbishop, Don Hernando Guerrero, remained twenty-six days in the island of Mariveles, where he endured perforce privations, both because of his advanced age, and because of the dreariness of the island—which is very great, as it is nearly deserted, and contains only some few Indian huts. Those Indians have charge of scouting those seas, and of advising Manila of what they discover, by the greater or less number of fires which they light—in the manner that the Persians were wont to do, who gave advice by means of those fires, which they called *angaros*, as is mentioned by Bardayo in the first chapter of his *Argenis*. The climate [of Mariveles] is very unhealthful, and the location is not a pleasant one as the island is shut in on all sides by thick forests, and because of the continual beating of the sea. There lived the venerable shepherd, meditating on the ingratitude of his sheep, venting his feeling in gentle sighs, and relieving his afflicted breast with tears. Thus was he found by four prebendaries of the Manila cabildo who went to console him, and to propose to him certain matters in behalf of the governor, which we shall detail later.

The church at Manila remained during that time as a flock without a shepherd. All was confusion and disorder. The new provisor, the bishop of Camarines, had readily raised the interdicts and the suspension of religious functions. He ordered the bells to be chimed for the feast on Saturday, the eve of the festival of the Holy Ghost. The prelates of the orders, with the exception of him of the Society, thought that the provisor who had been intruded could not legitimately raise the interdict and the other censures. For no mention of this is made in the chapter *Alma Mater: de Sententia Excomunic.* in 6; and having held a conference in regard to this matter, with the university of Santo Tomás, which always maintained a firm attitude in defense of the immunity of the Church, they determined to close their churches, and to observe the orders imposed by their legitimate prelate. They did so until after the feast of Pentecost was over. The Audiencia summoned them to act in accordance with the cathedral, but they paid no attention to it until they had despatched a suitable person to the archbishop. The latter, fearful lest greater disturbances should originate, gave heed, as a true father, and sent an order for them to raise the interdict; and they did so on May 20.

The orders and the two universities held various meetings and consultations with the governor, when they saw that the troubles which had originated from the archbishop's exile were increasing, because of the acts of jurisdiction enacted by the provisor who had been intruded, invalid procedures in the administration of the sacraments, and scandals which had been occasioned to these new fields of Christendom. This last was not the point least worthy of consideration, since that precedent did more damage than was realized, both in the new fields of Christendom, and in the report of this matter among the foreign nations who surround these islands on all sides, for they note our actions carefully. They rendered various signed opinions for this; and they also drew up another, counseling the archbishop to yield certain things in order to avoid greater troubles which were indispensably necessary to restore the peace of that church, which was exposed to greater disturbances; and that, to assure his right, he should make a protest regarding it. They despatched the aforesaid prebendaries with this commission, who, on their arrival, laid the determination of the cabildo, orders, and universities before the archbishop, as well as the

decision of the Audiencia in regard to the recalling him from exile, if the archbishop would concede three points, to wit:

“That he would consider as lawful, and confirm, all the acts of jurisdiction performed by the bishop of Camarines.

That he would place in possession of their posts Don Andrés Arias Xirón as archdean, and also the chaplain of the royal hospital.

That he would not proceed in any ecclesiastical trial pertaining to the archiepiscopal government, without the advice of the counselor who would be assigned to him.”

The archbishop resented greatly the proposition of such points to him, and preferred to remain in exile, where he had greater quiet than in Manila; but considering the decision and advice of so erudite persons, which were sufficient to discharge his conscience, he agreed to all the points proposed—first having made a protest that he was doing this to relieve himself from molestation, and to obtain the peace of his church and repose for the consciences of his sheep, until the decision of the matter should come from the royal and supreme Council of the Indias, in whom it inhered.

The governor and Audiencia determined to restore Don Fray Hernando Guerrero to his church, and on June 6, 1636, they withdrew him from the island of Mariveles. He entered Manila amid the great rejoicing of all, who could not look enough at their beloved shepherd; and commenced to govern his church. But it was not with the peace that he ought to have had, for new contentions and new causes for anger arose daily with the governor, who was ever despotic in his actions.¹⁵ The archdean Don Andrés Arias Xirón took possession of his prebend, but God did not permit that he who had been the origin of so many disasters should obtain much; for in a short time he sickened with dropsy and other bad complications, and died in the flower of his age. The greatest evil was that he died impenitent, refusing to be absolved from the excommunication and censures by which he was bound, although the archbishop, as a pious shepherd, sent a priest to his house to persuade him to be absolved. The soldiers who took the archbishop into

exile all died within two years, by quick and sudden deaths. The auditor Zapata died suddenly, being found dead in his bed, although he had retired in perfect health. The governor lost his nephew, Don Pedro de Corcuera, whom he loved dearly; and another nephew, named Don Juan de Corcuera, perished while going as commander of the ship “Nuestra Señora de la Concepción,” which was dashed to pieces in the islands of the Ladrones (today the Marianas), where many people were lost, and where the governor lost a great quantity of riches, which his greed (which was great) had amassed during his term. At this same time, Don Pedro de Francia, brother-in-law of Don Pedro [de] Corcuera, died; and so that no branch of that house might be left, God took to himself Don Pedro de Francia, son of Don Pedro Corcuera and Doña Maria de Francia. The same year the governor received news of the death of his brother, Don Iñigo Hurtado de Corcuera. His entire government was fatal and unfortunate; and later, in his residencia for it, he suffered many troubles, for he was kept prisoner for five years in a castle, and all his property was confiscated. Misfortune followed him into all parts, for having returned to España, where he was corregidor of Córdoba, they tried to kill him, and he got out of it by the skin of his teeth. Finally, when he was governor of the Canarias, it is said that he died suddenly. I write here only the results; I shall not consider what so many disasters together demonstrate. I leave the generally-known things which these islands still bewail, since the universal knowledge of them frees me from it; and in the following chapter, another and better pen [will take it up.]¹⁶

But it does not seem to me fitting to neglect to mention in this place a testimony of what, it seems, Divine justice must have executed; so that we may conjecture from it how great an offense to the divine Majesty was the scandalous manner in which the exile of Archbishop Don Hernando Guerrero was carried out; so that we may know that if He displayed his temporal punishment in regard to what was pardonable and not guilty, how great will be the punishment which His Divine Majesty will mete out in His just tribunal to those men who were the cause and instrument of so sacrilegious and scandalous a desecration, unless they first hastened to atone for it by works of true penitence, in order to be deserving of His infinite mercy.

The many and horrifying earthquakes from which the city of Manila has suffered from its beginning until the present, have resulted in almost its destruction and depopulation—especially in those of 1645 and 1658, as we shall see later. But in the midst of these ruins, the houses which suffered most always preserved the principal walls, some even the first floor, and others more—although these were stripped of their covering, and, as it were, the skulls and shapeless skeleton which indicate the robust symmetry of that building's corpse. Only in the area and place where this lamentable tragedy occurred (namely, the archiepiscopal palace of that time) has there remained not only no wall, nor a vestige of its building, but not even the foundations. Neither were any stones found there, which tell that there was a house of human habitation. There is seen naught but an open space, which forms a square for some splendid houses owned now by Sargento-mayor Don Domingo Bermudez, alcalde-in-ordinary, who inherited it from his father-in-law, Don Francisco de Moya y Torres, chief constable of the Holy Office of the Inquisition. Whenever I pass by that place, this memorial of the Divine punishment presents itself to me.

The sardines were once as ordinary a food in Manila as in Coruña; but from the time of that lamentable exile, they have so abandoned those waters that one can catch them but seldom, and then it is a matter for surprise. And (in order to publish more fully that that [exile] was the cause), whenever any consecrated archbishop or bishop arrives at Manila, on those days some sardines are caught, and then they retire to continue their interdict.¹⁷ Pens have not been wanting to undertake as their employment the defense of Don Sebastián Hurtado de Corcuera, chiefly those from one order—to which he was very devoted until, as is said, they came to regard him as a saint. But they do their duty as thankful [for favors received], although it was not necessary for them to do so much that they should declare themselves his admirers. The worst is that in the year of 1683, Manila again relapsed into this scandalous sin with the exile and banishment of Don Fray Felipe Pardo, of the Order of Preachers. But I shall relate, in its proper place, the disastrous end that all those who were guilty in that affair suffered.

The common enemy of the human race was not content with the lamentable tragedies of which he made the Filipinas Islands the sad theater; on the

contrary, fearful that the peace which all desired might be established between the governor and the archbishop, he commenced to arouse new contentions. Although they did not result in scandalous outbreaks, they were sufficient to make the archbishop, Don Hernando Guerrero, live in the midst of continual warfare, the matters of controversy threatening to assume very quickly an evil aspect. Not the least important of these was that which even until the present has not ceased to result in disastrous effects—namely, the founding of the royal chapel for the military forces of Manila, which was founded by Don Sebastián Hurtado de Corcuera. Thus did he separate from the parochial right of the cura of the Spaniards all the soldiers, who constitute the majority of the people in these islands, and especially in the city of Manila. For that purpose he created twelve collegiates in the college of San José (which is in charge of the fathers of the Society of Jesús), with the title of royal chaplains; they were clad in blue cloaks, with sleeves of violet velvet, on which were wrought the royal arms; and for their support [was given] the encomienda of Calamianes. Taking two reals from the pay of each soldier every month, which is a very considerable sum, he applied five hundred pesos of it as a means of sustenance for the chief chaplain, and sums at the rate of two hundred pesos for the other chaplains. It has a chief sacristan who looks after its adornment, and its administration is in charge of either the master-of-camp or the sargento-mayor. The soldiers are buried there, and they pay well for it when they die. It has the advocacy of our Lady of the Annunciation, and there they celebrate other feasts during the year, by vote of the camp of Manila—such as, chiefly, the advocacy of the Immaculate Conception and the most holy sacrament, besides others which the governors add for their devotion. There is a sermon in this chapel during Lent on Wednesday and Friday mornings; to which the governor and royal Audiencia go.

That caused very great detriment to the right of the cura of the Spaniards, because of the division which it made of the soldiers; and it became necessary for the archbishop to sally out in defense of that point. As the governor was so desirous of the said foundation, there were debates of great heat on both sides; for the archbishop was unwilling to grant permission for that foundation, which would cause so much harm to the parochial right. But, recognizing that the break would only widen, he agreed to concede the

permission under certain limitations and obligations which he was able to impose, reserving the determination for his Holiness. Afterward, there being some difficulties in that permission, because it was opposed by the curas of the cathedral, as they said that the chief chaplains abused the permission, extending their functions more than was their right, they begged a declaration of that permission from Archbishop Don Hernando Guerrero. He gave it with the privilege that is observed today, and it is attested by the records which exist in the ecclesiastical archives, under date of January 5, 1640.

The archbishop tried to appoint a collector of the contributions for masses during that year of 1636; for one was lacking in the cathedral, from which arose certain troubles. The cabildo resisted him, refused to obey the act for the appointment of one, and denied that the archbishop had authority and jurisdiction for it. As an argument that he did not possess it, they declared that he had not presented the confirmation of his Holiness and the pallium, and the year in which he had taken oath to present it had passed. That caused the archbishop considerable anxiety, for the cabildo presented itself in the [Audiencia] session with a plea of fuerza, and the matter was declared against the archbishop. Various opinions were given in this matter by the universities and by erudite persons; and consequently, that suit lasted a long time, until, at the arrival of the ships from Nueva España, the pallium and the bulls of confirmation came to the archbishop. New disturbances were feared, in case the contrary should happen, and the method adopted for adjusting this matter was that the archbishop jointly with the cabildo should appoint the collector of the contributions for the masses, and that is still observed in the cathedral of Manila.

The archbishop had scarcely gotten out of that matter when he found himself involved in another of no less importance; for the governor, Don Sebastián Hurtado de Corcuera, wished to appoint a governor to the bishopric of Camarines, because of the death of its bishop, Don Fray Francisco Zamudio. That thrust gave the archbishop considerable anxiety, as he had experienced fully the despotic disposition of the governor. But he could do no less than oppose it, as it was a matter which concerned the ecclesiastical authority and the spiritual jurisdiction; and the archbishops

have always made the appointment in the vacancies that have occurred in these islands, as it pertains to them by their right as metropolitans. The governor threw himself with all his might into what he had commenced, and gave the bishop to understand that that occasion for dispute would end worse than the past; and he continued to arrange matters in so high-handed a way, that the archbishop feared what the governor threatened. But God permitted that that controversy be settled by the interposition of zealous and influential persons, who mollified the governor; and it was settled that the archbishop should name three subjects, so that the governor might appoint one of them. For that purpose the archbishop called meetings of learned men, and, having made a protest, appointed in the first place Doctor Hernando Paez Guerrero; in the second, Master Don Juan de Velez, who died bishop-elect of Cebú; and in the third, Licentiate Manuel Reaelo [*sic*; *sc.* Rafaelo] Macedo. The same thing happened afterward through the death of Bishop Don Fray Diego de Aduarte, of the Order of Preachers, a man of singular virtue, the bishop of Nueva Segovia. In his government, Canon Alonso de Vargas entered to govern, with the same form of choice as the first. That form of appointing governors for the vacancies of the bishops was usurped many years in these islands—although there has been sufficient opposition from the bishops at such an innovation and corruption—until the provision suitable to so essential a matter was made in the royal and supreme Council of the Indias, and in our own times a decree was received from the queen mother, that the archbishops alone should appoint rulers for the bishoprics, but the cabildo of Manila [should do this] when the see is vacant.

During all the time while Archbishop Don Fray Hernando Guerrero governed the church of Manila, he was exercising echoes of the etymology of his name in the contentions that he had with Governor Don Sebastián Hurtado de Corcuera;¹⁸ and had there not been a prelate in the church of Manila so zealous and vigilant in matters of ecclesiastical immunity, it would have been involved in other and greater difficulties. The archbishop commenced the visitation of his diocese as soon as he became free from the late storms; and he continued it through all the benefices of his clergy, until he reached the island of Mindoro. There he found himself in another danger, no less than those which he had experienced on land; for he was

attacked by six hostile galliots of the Mindanao enemy, which bore down upon the boat in which he was, near Naohan. Had not that boat been staunch and swift, the enemy would have captured and killed him—as is the usual custom of those Mahometan pirates, the enemy of our holy faith. It defended itself with the men aboard it, until it arrived at the land of Bacoo, where they had scarcely time to land and get into a place of safety; when, as the boat had remained in the sand, the pirates seized it, and captured many of the followers of the archbishop. They pillaged all the cargo aboard the boat, even the ornaments and the pontifical robe, all which was of much value. That blow caused great sorrow to that good prelate, for the Mindanaos killed most of the men whom they captured, and it was only after many difficulties that a few could be ransomed. The bishop became very ill with a serious sickness, from sorrow and his past troubles.¹⁹

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- 1 Gaspar de San Agustín, the author of the first part of the Augustinian history of the Philippines (Madrid, 1698), was one of the most prominent Augustinians who have ever been in the islands. He was born in Madrid in 1650, and professed in the convent of San Felipe el Real in 1667. On going to the islands he ministered at Lipa (1689–1692), Parañaque (1693, 1708, and 1719), Pásig (1695 and 1716), Malate (1698 and 1714), Tambobong (1702 and 1707), Tondo (1699, 1701, and 1710); and exercised the duties of procurator-general (1677 and 1686), provincial secretary (1686), definitor (1689 and 1711), visitor (1701), and commissary of the Holy Office. He died after a long and painful sickness, which deprived him of his sight, at the convent of San Pablo at Manila, in 1724. He was a graceful poet, and, besides his history and the materials for the present work, he left various writings, among them his famous *Compendio de la arte de la lengua tagala* (Manila, 1703). His letter on the nature of the Indians will be published later in this series. His history is said to be the most interesting of those on the Philippines. See Pérez's *Catálogo*, pp. 134–136.
 - 2 Casimiro Diaz was a native of Toledo, being born in 1693. He took his vows in the convent of San Felipe el Real in 1710, and after his arrival at the Philippines completed his literary studies. He was stationed in the missions at Magalang (1717), Mexico (1728), Aráyat (1734), Betis (1735), Minalin (1737), and Candaba (1740). He was procurator-general (1719), provincial secretary (1722), definitor (1725), presiding officer of the chapter (1731), qualifier of the Holy Office, chronicler of the Augustinian province in the islands, reader (1744), and conventual preacher. His death occurred in Manila in 1746, and he left behind many writings. See Pérez's *Catálogo*, pp. 222–224.
 - 3 The editor of Diaz's work is Fray Tirso López, who is still living at the Colegio de Filipinos in Valladolid. He was born at Cornombre, May 25, 1838, and took the Augustinian habit at Valladolid in 1855. He spent the years 1864–1866 in the Philippines, while most of the rest of his life has been passed at the above college, where he has filled various duties. He has several times refused an appointment as bishop, and is well known in certain circles as a writer, being a correspondent of the Royal Academy of History at Madrid. The editors of the present series are under many obligations to him for his kindly interest and aid. See Pérez's *Catálogo*, pp. 525–527.
 - 4 Juan Ramírez was a native of La Mancha; and, after going to the Philippines, was one of those who contributed most efficiently to the pacification of the Zambales in 1618, and in 1639 fought in the front rank against the Chinese insurgents in Manila. He was missionary in Lipa in 1621, in Taal in 1623, in Bay in 1626, in Taal for the second time in 1630; and definitor in 1632, and provincial in 1635, dying in 1641. See Pérez's *Catálogo*, p. 91.
 - 5 Teófilo Mascarós was born in Valencia, and professed in the province of Aragon, and became doctor and master of sacred theology in the university of Orihuela, and prior of the convent of

Mallorca. Upon his arrival in the islands, he became missionary in Malate in 1626 and 1629, in Pásig in 1632, in Hagonoy in 1638 and 1641; and was also prior of Bay and Manila, and definitor in 1635. He died while prior and missionary of the village of Bay (June 26, 1644). See Pérez's *Catálogo*, p. 101.

6 Andrés Verdugo was a native of La Mancha, and professed in the province of Castilla where he became reader of philosophy. Having been destined for the Tagál provinces, after having read theology and the canons in the convent of San Pablo at Manila, he became a missionary in the villages of Tambobong (1629), of San Pablo de los Montes (1630, 1638 and 1650), of Bulacan and Pásig (1641), of Taguig (1644), and of Bay (1656). Being elected prior in 1647, he resigned that office, and continued his ministry until 1653, when he was elected provincial. He died in Bay in 1656. See Pérez's *Catálogo*, pp. 99, 100.

7 Fray Diego Martinez was born in La Mancha, and professed in the province of Castilla in 1613. He was minister of Barbarán in 1626, of Passi in 1629 and 1632, of Mambúsao in 1635 and 1639, of Oton in 1641, of Dumalag in 1644, of Batan in 1648, of Dumangas in 1650, and of Panay in 1651 and 1653. His death occurred probably about the year 1656. See Pérez's *Catálogo*, p. 99.

8 Diego Collado, O.P., was a native of Miajadas, in Estremadura, and took his vows in the convent of Salamanca July 29, 1605. He labored for some years in Cagayán, and in 1619 was sent to Japan, where he became vicar-provincial. Recalled thence in 1622, he was sent to Spain as procurator, where he worked zealously for the order. In 1635 he returned to the islands with twenty-four religious, when he caused great disturbances in the province. Being at last abandoned by Corcuera, his schemes came to naught; and he was sent to Cagayán, where he remained until 1641, when he set out for Manila in order to return to Spain at the king's command, but was drowned at Cabcungan. He continued the history of Japan written by Orfanell, and printed it in 1632 at Madrid; and he also compiled and published a Japanese dictionary in 1631 at Rome. See *Reseña biográfica*, i, pp. 338, 339.

9 Diego de Ordax was born in León in 1598, and professed in the convent of Burgos in 1618. In 1626 he was missionary in Laglag, became subprior of Manila in 1629, prior of Santo Niño de Cebú in 1630, and commissary-procurator in the court of Spain in 1632. He returned to the islands in 1635, and in 1637 was appointed prior of Cebú for the second time and afterward definitor and missionary of Oton (1638), prior of Manila (1644 and 1656), and provincial (1647 and 1659). See Pérez's *Catálogo*, p. 103.

10 This interdict was imposed by only the local ecclesiastical authorities; but the period in which it occurred renders desirable and interesting a mention of the controversy (then fresh in men's minds) between Paul V and the Republic of Venice, in which the papal interdict on a state or

commonwealth was deprived (1606) of its power as a weapon of the papal authority. A full account of this episode, in which the chief figure was the celebrated Fra Paolo Sarpi, is given by Andrew D. White in his “Fra Paolo Sarpi,” in *Atlantic Monthly*, xciii (1904), pp. 45–54, 225–233. Cf. Ranke’s *Lives of the Popes* (Foster’s translation, London), ii, pp. 110–130, and iii, 123, 124; and Alzog’s *Universal Church History* (Pabisch and Byrne’s translation, Cincinnati, 1878), iii, pp. 365, 366.

11 The University of Mexico was founded in 1551 (some make it earlier), its endowment being begun with property left for that purpose by Mendoza, the first viceroy, and afterward increased by royal grants and private bequests. In the troublous times of the nineteenth century, the national university languished, and finally perished.

12 This quotation includes a portion of the second verse and all of the third, fourth, and fifth verses of the sixth chapter of the apocryphal book of Wisdom, and is as follows in English: “... Learn, ye that are judges of the ends of the earth.

Give ear, you that rule the people, and that please yourselves in multitudes of nations;

For power is given you by the Lord, and strength by the most High, who will examine your works, and search out your thoughts;

Because being ministers of his kingdom, you have not judged rightly, nor kept the law of justice, nor walked according to the will of God.”

13 Cf. La Concepción’s account of these controversies (*Hist. de Philipinas*, v, pp. 254–290). He says that Corcuera arrived in the islands at the height of the discussion in Manila over the maintenance of a fortified post at Zamboanga in Mindanao; that he was on intimate terms with the Jesuits, who were anxious for the benefit of their missions to have Zamboanga occupied; and that their influence led Corcuera to support that measure. La Concepción blames the Jesuits throughout the controversy with the archbishop; and his account is more detailed than Diaz’s. See also accounts by Murillo Velarde (*Hist. de Philipinas*, fol. 86–89), and Montero y Vidal (*Hist. Filipinas*, pp. 192–197).

14 The exile of Archbishop Felipe Pardo occurred March 13, 1683, and his restoration to his see, November 15, 1684. The matter aroused considerable controversy which extended over a number of years. The controversy was most bitter, and the manuscripts concerning it pro and con aggregate some tons, and are scattered in various archives. The episode will be noticed in its place in this series.

15 Murillo Velarde says (fol. 89, verso) that this occurred in 1637. Colin does not mention the controversy between the archbishop and governor; and most of the friar chroniclers omit it.

- 16 The following chapter consists of a short extract from book 1, chap. i, p. 4, of Baltasar de Santa Cruz's *Historia*, which is followed by a heavy and would-be learned discussion filled with classical allusions, by an auditor, Licentiate Salvador Gomez de Espinosa, of which Tirso López, the Spanish editor, says that it might have been omitted without any loss to Diaz's *History*.
- 17 This decrease and almost total disappearance of the sardines from the bay of Manila from those times, is easily explained without the necessity of considering it a miracle, by the great movement of coastwise trading vessels, which have come into those waters, from which as is known, several species of fish flee.—FRAY TIRSO LÓPEZ.
- 18 *Guerrero* means "warrior."
- 19 He died on July 1, 1641, aged seventy-five years. La Concepción cites (*Hist. de Philipinas*, v, pp. 301–303) the book of memoirs preserved in the Manila cathedral (mentioned by Diaz, *ante*. near the end of chap, xvii), for various particulars regarding Archbishop Guerrero's life and character.

Letter Written by a Citizen of Manila to an Absent Friend

I will try to give your Grace an accurate account of the changes that have occurred this year, and of the anxiety and unrest of this community, so that your Grace may have an adequate conception of the matter, and may judge it on its merits, since you have no reason to distrust him who relates it—a thing which would cast doubt on the relation itself. Such has actually been the case with a relation written by the Order of St. Dominic, which has been sent from this city to that of Zebu and other parts, whose author shows manifest prejudice and but little accuracy in what he relates. Laying aside then, all partiality, and as one who has been a witness of everything, although I had no part in it, I shall relate to your Grace all that has happened.

An artilleryman, named Francisco de Nava, seems to have been maintaining illicit relations with a slave-girl whom he owned, named Maria. That gave rise to troubles, and the artilleryman was placed in the house of brother Guerrero; and finally the slave-girl was taken away from him, and the archbishop, Don Fray Hernando Guerrero, had her sold. The artilleryman was very angry and vexed at that, and his love drew him so powerfully that he said that he wished to marry the slave-girl. She answered that she preferred to be the slave of another than his wife. For that reason, when the slave was very unguardedly following the coach of her mistress on Sunday, August nineteen, one thousand six hundred and thirty-five, that man, with deliberate purpose and overconfident, stealthily approached her in the principal street, near the cemetery of Sant Agustín; and, embracing her from behind, asked her whether she knew him. She answered in the affirmative, and he treacherously stabbed and killed her. He sought refuge in the convent of St. Augustine, where neither the sargento-mayor nor the master-of-camp, who surrounded the convent with soldiers, could find him. At a hazard, they prevented any religious from going out—an abuse contingent

on the military, which cannot be checked by a captain-general. Accordingly, the Order of St. Dominic did the governor an injury in their relation, by declaring that he had incurred excommunication on that account, since he had no share in it, but only ordered the soldiers not to allow the treacherous homicide to leave the church. A few days after that, when the matter had cooled down somewhat, an adjutant of the camp, one Don Juan de Frias, because of the reward that was offered, entered the convent at midday, where he found and seized the artilleryman. The cause was referred to the commander of artillery (for the artilleryman was under his command), in order that he might try it in the first instance; and he condemned the artilleryman to death. The latter appealed to his captain-general and the auditor-general of war. The cause was returned, as the appeal was considered out of order, for the captain-general was convinced of the treachery and treason of [the artilleryman]; whereupon the commander of artillery tried to execute the sentence of death.

The archbishop of this church of Manila excommunicated the commander of artillery; and his provisor, one Don Pedro de Monrroy, had two notifications served on the governor, although there was no reason for his so doing. Once the notification was made after ten o'clock at night, when the governor had already retired. Two clerics entered for that purpose through the midst of the body-guard. As the governor was already asleep, and his servants had retired, and the doors of their chambers were locked, they could not serve their notification at all; accordingly, they turned to go. Trying to depart by passing through the body-guard, by the way that they had entered, he who was stationed at the door would not suffer it—in accordance with a general order received many days previously to the effect that, although they should allow entrance into his house at night, they should not allow anyone to leave; as he judged such an order expedient for the proper government of his household. Consequently, the clerics who had entered could not leave; for, when they went back to the governor, they found him shut in his room and asleep, and when they returned to the guardroom, the soldiers were minded to observe their orders without any distinction of persons. Hence the clerics had to stay all night and until dawn on the stairway and in the corridors of the palace. On that account, certain persons also took opportunity to say, and not with any good intention, that

the governor had incurred excommunication—although he was so far from that, and this was so accidental a case that it could not have been foreseen in the order that was issued so many days previously. The relation of the fathers of St. Dominic charges that accident to the governor, unjustly and with prejudice.

During the execution of the sentence on the night of Thursday, September six, an interdict was imposed and the cessation of divine services ordered. The sentence was executed, and the artilleryman was hanged on the same spot where he had killed the slave-girl. The provisor was so carried away by passion that he tried to make (and it is even said that he did make) a report that they hanged the culprit in a sacred place—although the street was public, and [the hanging occurred] at the same place where the artilleryman had committed the homicide. Your Grace can see the so great want of logic [in this matter]; for if that were a sacred place, then the crime had been committed in it, and the artilleryman could not avail himself of the church as he was trying to do.

The governor wrote to the archbishop in terms of the greatest courtesy, requesting him to throw open the churches, and not to deprive this community of mass and consolation on a day of so great importance as was the nativity of our Lady, which came on the following Saturday; for, since the execution was already over, there was no remedy for the matter. The archbishop called a meeting of the religious of all the orders, who thought by that means to avenge themselves for the injuries which they imagined that they had received from the governor—those of St. Dominic, because he had divided the Parián treasury; those of St. Francis, because he had regulated the hospital expenses, which they were incurring to the so great detriment of the royal estate; and those of St. Augustine, because he had deprived them of some Sangley shops in Tondo—and for other private feelings of resentment. They carried the torch into that meeting, making the encounter between the governor and the archbishop a political matter; consequently, they expressed the opinion that the censures should not be raised under any circumstances. A religious of St. Dominic said that they ought to last for five hundred years, while another added “even to the end of the world.” Very indecorous was their speech regarding the person of the

governor, for they did not stop to consider that he represents the royal person by reason of his office. Only one Franciscan father, named Fray Bartolome Bermudez, and the two of the Society who were present—namely, the reverend fathers Luis de Pedrasa and Father Lorenzo Goreto,”¹ master in the morning classes²—were of the opinion that the censures should be raised. They even showed clearly that justice had been rightly exercised, since the treacherous murder had been committed so openly. Therefore, and because of other defects in what had been enacted, they proved that the censures did not bind the commander of artillery, or any one else. On this account the other religious gave much [opportunity for] merit to those of the Society, by uttering insulting words against them. From that time, they conceived so great an aversion for the fathers of the Society, that it was the beginning of the disturbances that afterward arose. The governor again requested the archbishop, for the second and third time, to raise the interdict and the cessation of divine service. But the latter was so far from complying, that he refused to answer the papers, and so the matter stood. But afterward, when we least expected it, in order to please the Recollects and allow them to celebrate their festival of St. Nicholas, the archbishop lifted the censures and absolved the commander of artillery, *ad cautelam*³. For the latter did not consider himself as excommunicated, nor even did learned men regard him as such. That was very apparent then, for, when he had appealed to the bishop of Camarines, the sentence was in his favor; and the bishop absolved him from the pecuniary fines which the archbishop had imposed. Thereupon that tempest was laid, the principal cause of which was the provisor, Don Pedro de Monroy; while those who increased its fury were the religious of St. Dominic, St. Francis, and St. Augustine. On that account, in order to prevent similar troubles that might arise in the future, the governor undertook to execute a royal decree, by the terms of which the said provisor had been proclaimed, in the time of Governor Don Alonso Fajardo, as banished from the kingdoms. The temporalities had been taken from him, as is clear from the authentic royal decree which was despatched for that purpose. Your Grace will notice the lack of accuracy in the other relation, since its author declares therein that that royal decree had been repealed, while in truth it was in full vigor and force. That is so true that there is no unprejudiced man in this city who does not know it. This year, as

I have heard reported, the original of that decree has been sent to his Majesty. The archbishop held various meetings with the religious, and they agreed to defend the said provisor to the death, as they said, if necessary. The governor, in order to remedy these troubles in so small a community, desisted from his purpose, and tried to conduct the matter along smoother channels. He offered the said provisor the chaplaincy-in-chief and vicariate of the island of Hermosa, in a letter of the following tenor:

“It is necessary for his Majesty’s service that your Grace go to serve in the island of Hermosa as chaplain-in-chief, and vicar of those presidios. [You will receive] three hundred pesos salary per year, the altar fees, and the fees from the confraternity of the soldiers, which has been lately instituted; and, with these and the pay, you will be able to live well. Thus will certain irreparable disadvantages, that might ensue if you do not accept this service for his Majesty, be avoided. And inasmuch as I have received letters from the said island of Hermosa this morning, in which the governor begs me to send him such a person very speedily, your Grace will make the decision to depart, so that this same champan may return to Cagayan, whence it and one other are to take fifty native soldiers, so that the two may go together. May our Lord preserve your Grace, as He is able. The palace; October eight, one thousand six hundred and thirty-five.

DON SEBASTIAN HURTADO DE CORCUERA”

Although the governor does not state the motive in this letter, his motive was to remove the occasion for disputes; and also because the commandant of the island of Hermosa, Francisco Hernandez, wrote him a letter, part of which is as follows:

“There is a religious in this island called Fray Lucas Garcia,⁴ of the Order of Preachers. He is judge-provisor; and I have so many debates with him at present, and he is so crazy to govern, that he is hurling many shafts at me, without heeding that I am serving him to my utmost in everything, and that I am endeavoring to aid him in all that arises. He is much given to suits and questions, even going so far as to prevent the ringing of the *animas*⁵ at night or the singing of the *alabado* hymn. It may be that in regard to the most

holy sacrament and the pure conception of our Lady the Virgin Mary, who was conceived without the taint of original sin, he does not wish that any mention be made of the Virgin, to say that she is immaculate. Lastly, sir, this matter demands a remedy, by the archbishop sending a cura as judge-provisor. That is very necessary, so that we may be able to go on and live as God orders. If this blessed religious be removed from his charge, he will change his habits, and we shall be left in peace and quiet—which, as I see, it would be very difficult to obtain in any other way. Can your Lordship believe that, if he had any reasonable ground [for his conduct], I would not ascertain it, in order to give account of the matter to your Lordship, or that still less would I allow dissensions so vexatious to exist? I am very sorry to inform your Lordship of this, but I cannot do otherwise; for it is not right that this religious should place these forts in the condition in which he left Cagayan. For with authority as judge-provisor, while my predecessor was exercising the duties of this government, he did his utmost to usurp the royal jurisdiction—arresting and punishing soldiers and other persons without asking the royal aid, or fulfilling his obligation and his Majesty's command. Will your Lordship be pleased to relieve this condition as the occasion demands, by sending a secular cura as judge-provisor with the suitable despatches, so that this blessed religious may not offer him any trouble. The island of Hermosa, October 13, 1635.

FRANCISCO HERNANDEZ”

The provisor, Don Pedro de Monrroy, answered the governor's letter as follows:

“In response to the honor which your Lordship does me in your letter by ordering me to make a decision, I say, sir, that I have but little health, as can be seen in my face; consequently, I do not dare to embark. Besides I am occupied with the duties of the offices which I am, at my prelate's behest, exercising at present. If I were quite well, I would ask my prelate for permission to go anywhere in order to give pleasure to your Lordship. May our Lord preserve your life for many years. Manila, October eight, one thousand six hundred and thirty-five. Your Lordship's chaplain,

LICENTIAATE DON PEDRO DE MONRROY”

The archbishop raised a great disturbance on account of this, declaring that the governor was a violator of the ecclesiastical immunity. He immediately summoned the two bishops of Zebu and Nueva Segovia (who were here) and the orders and the clerics to a meeting, by a letter of the following tenor.

But, before mentioning the letter, I wish to recount to your Grace certain actions of the governor, which, as the relation of the Dominicans asserts, obliged the archbishop to assemble the bishops and orders, and others; but which (as I suspected) happened after the meeting, so that your Grace may see how they are stirred up, and engaged on the side of evil. The first was, that the governor’s guard detained several priests by force one whole night, without allowing them to leave the palace. It has been seen above already that this happened by accident, and without the governor’s order. 2d, that he gave orders at the [city] gates for the soldiers not to allow any ecclesiastics to leave. The justification for that was, that it was rumored that several ecclesiastics were trying to take flight, and to carry with them a number of soldiers and sailors who were in the pay of his Majesty. That did in fact happen, for two religious, one secular, and more than thirty soldiers and seamen who had just been paid more than three thousand pesos from the royal treasury, deserted. [Third], that he did not allow the religious to enter or leave their convent. It has been already seen above that the occasion for the surrounding of the convent of St. Augustine was in order to prevent the escape of the treacherous fugitive. Consequently, all else that happened was the over-zeal of the soldiers, who take military orders very literally. [Fourth], that he tried to exile the provisor, Don Pedro de Monrroy, by virtue of an old royal decree, the execution of which had been repealed. It is outside of all truth to say that it was repealed; for it is certain and appears that it had full force and vigor, as I have said above. [Fifth], that he was persuaded that no one could excommunicate him but the supreme pontiff. This opinion is not so improbable, as I have heard discussed by men who know more than I. But Burguillos,⁶ a learned man of the Order of St. Francis, holds and supports it valiantly; and at the least the governor, by his membership in the habit of Alcantara, enjoys by a bull of Leo X the

privileges and immunities of the Cistercian religious;⁷ and, by another bull of Alexander III, the privileges of the knights of Santiago, who can be excommunicated only by the supreme pontiff or by his legate *a latere*.⁸ As for saying that the governor can exile from these islands any of his Majesty's vassals whom he wishes to, I do not know that it is said in so harsh terms. What I do know is that the royal patronage gives him authority, in punishing the seculars and ecclesiastics, to remove them when they undertake to meddle with what does not concern them. [In regard to the charge] that he prevents the soldiers from becoming religious, no such thing enters his mind. His order is that, before the soldiers embrace a religious life, they shall inform him of it, so that their accounts may first be examined, to ascertain whether they owe anything to the king, in order that it may be paid before they become religious⁹—as was ruled by Sixtus V in his bull. Here in Manila there is another thing which further justifies this action of the governor, namely, that many soldiers embrace a religious life with the sole intention of getting rid of their duties as soldiers; and then after a few months as novitiate, many vagabonds go out. In order to avoid that annoyance, it is well to have it appear and to have it noted in their accounts that they became religious, so that, if they leave that life, they may be compelled to serve the king. If this is not so, let the authors of the other relation tell [of any one] who has asked permission to become a religious who, if he is not indebted to the king, has not obtained his desires.

[Resuming my narrative], the formal letter, then, which the archbishop wrote to the father rector of the Society, Luis de Pedrasa, is as follows:

“The governor has today written a letter to the provisor, in which he says that it is fitting for the service of his Majesty for him to go to the island of Hermosa, to serve as chaplain-in-chief and vicar of those presidios—and this without any opportunity being afforded the provisor to ask my consent. It appears to me, Father Rector, that this is a very grave matter; and it seems best to call a council of the bishops and of all the orders, so that, we may decide that two of those at the meeting shall proceed to ascertain the authority possessed by the governor *in spiritualibus* [*i.e.*, “in spiritual matters”], in order that we may not continue day after day with these letters and these mandates. Since I advise you of the point which is to be discussed

in the meeting, I beg your Paternity to do me the favor to be present at it, and to bring with you the father confessor of the governor and two father readers tomorrow morning, Tuesday, at eight o'clock; for thus is it advisable for the service of our Lord and of His church, and that of his Majesty King Don Phelipe. Your Paternities are bound to follow the footsteps of the other and mendicant orders in matters so justifiable and for the common welfare; and I am confident that I shall receive your support. May our Lord preserve your Paternity for many years. From the [archiepiscopal] house, today, Monday, October, 1635.

FRAY HERNANDO, archbishop.”

The bishop of Nueva Segovia, Don Fray Diego Duarte, excused himself by saying that that measure calculated not to quiet but rather to disturb the citizens. The clergy excused themselves—one for illness, another for ill-health, a third because he could not attend, and a fourth because he did not wish to attend; and so no one went. Your Grace should note here the malice of the other relation; for although the bishop of Nueva Segovia and the ecclesiastical cabildo had excused themselves, that relation makes no mention except of the dean—saying that he could not attend, because of sickness—and of the fathers of the Society, in order to stigmatize their motives and to make them more odious. Although it is true that the latter excused themselves, they did so by a courteous letter, which was written for that purpose by their rector; and in order that your Grace may read it, and know exactly its contents, since from it originated the disputes that followed, I place it here.

“Most illustrious Sir:

“It appears that the more the Society endeavors to serve your most illustrious [Lordship], and your provisor, in striving for the peace of the community, and harmony and friendly relations between the ecclesiastical and secular leaders, in the same proportion do some (I know not whether with so good intention)—making, as is said, a poison from the antidote—endeavor to injure that peace. Hence I am unable to see what benefit our attendance can be, or what lack there will be if we fail to offer our opinion;

since whatever we say will be received in the manner that the so pious efforts that have been made during these last few days have been received. Therefore, I beg your Excellency, with due humility and respect, to be pleased to excuse us on this occasion, for the love of God our Lord; for other occasions on which we can serve your Excellency will not be wanting. May our Lord preserve and augment your person as we all, your chaplains, and I the least of them, desire.

LUIS DE PEDRAZA”

Some at the council read this letter, and the archbishop and religious were very angry at the absence of the members of the Society from the meeting. They paid no attention to the fact that the clergy and the bishop of Nueva Segovia were also absent. They couched their lances against only those of the Society; and the first thing done in the said meeting was to enact an act and resolution so harsh that it seems best not to mention it at all, but to copy it word for word, so that your Grace may judge what may be your pleasure, and whether it was only to express some resentment, as the other relation declares, or to disclose their passion by not telling the hatred that they felt. The act is as follows:

“In the city of Manila, on the ninth of October, one thousand six hundred and thirty-five, his Excellency the archbishop of Manila, and at his summons, the most reverend bishop of Zebu, and the prelates of the orders of St. Dominic, St. Francis, and St. Augustine, and the Recollect fathers of the last order, and the readers of all of the said orders, having assembled in the archiepiscopal palace, it was resolved that, inasmuch as the fathers of the Society of Jesus had been summoned to the said assembly, this and another time, by his Excellency, in order to communicate matters to them touching the service of God and of His Church, which his Excellency wished to execute with the advice of all for their better result; and since both times when they were summoned they excused themselves and in fact did not attend the said meeting, by which one can see that they separate themselves from the cause of the Church, and that they leave her deserted and abandoned in whatever pertains to them: therefore it was resolved in the said meeting, that from any one who separates from his mother in her

greatest trials and necessities, his brothers, the children of the Church, ought to separate themselves—namely, by not attending the functions of common interest that shall be held or celebrated in the convents and church of the Society of Jesus, such as are feasts, contests in debate and other things similar to these; and by not inviting them to those which are celebrated either in the cathedral church and parochial churches of this city, or in any other churches whatsoever, whether subject to his Excellency or to the prelates of the said orders. Also, from this time henceforth, his Excellency deprives them of the sermons [assigned to them] on the list of the said cathedral, and of all other sermons that they have or can have throughout his archbishopric, so that they can preach in none of the churches subject to his Excellency. His Excellency also resolved that no cleric of his archbishopric, of whatever rank or degree he be, either by himself or in the name of the communities which he represents, may or ought to go to the said functions celebrated in the convents or churches of the said Society. His Excellency also deprived them of the title of synodal examiners in all his archbishopric. The said archbishop promised that he would observe all the above until a decision should be made by another assembly of like character with this. And thus his most illustrious Lordship affixed his signature with the rest who attended the meeting,¹⁰ on the said day, month, and year.

FRAY HERNANDO, archbishop.

FRAY PEDRO, bishop of Santisimo Nombre de Jesus.

FRAY DOMINGO GONSALEZ

FRAY GERONIMO DEL SPIRITU SANTO

FRAY JUAN DE MONTEMAYOR

FRAY GASPAR DE SANTA MARIA¹¹

FRAY FRANCISCO DE HERRERA

FRAY ALONSO DE SAN JOAN

FRAY JOSEPH DE SANTA MARIA

FRAY ANTONIO GONSALEZ

FRAY VICENTE ARGENTE

FRAY ALONSO DE CARVAJAL

FRAY SEBASTIAN DE OQUENDO

FRAY DIEGO DE OCHOA

FRAY PEDRO DE SANTO THOMAS

FRAY MIGUEL DE SAN JUAN¹²

By order of his Excellency, the archbishop, my lord,

BACHELOR JOAN FULGENCIO, notary.”

But it is to be noted that although the above act is signed by so many, some of them afterward stated that they had been misled. For the Order of St. Augustine afterward renewed through its definitors its former friendship with the Society, saying that those who had signed had no authority to do so; and the bishop of Zebu, Don Fray Pedro de Arce, retracted it as a mistake, as your Grace will see by the enclosed document that he drew up.

“In consideration of a council called by Archbishop Don Fray Hernando Guerrero, on the ninth of this month of October—at which I was present, together with certain religious of the orders of St. Dominic, St. Francis, and the caked and discalced religious of St. Augustine—and of a paper that was drawn up against the Society of Jesus, in which the archbishop deprived them of the sermons [assigned to them] in the lists of the cathedral and of other secular churches subject to the said archbishop, as well as the other things that the said document contains because the fathers of the said Society of Jesus did not attend the said council: I signed the said paper at the meeting, on account of the relation that was made then in the absence of the said fathers of the Society. But afterward, having been informed of the truth, and that the fathers had very just reasons for not attending such meeting, I declare for the discharge of my conscience, that my opinion given then is null and void, and that the action taken in the said document is not just. On the contrary, I think that the said fathers of the Society are worthy of praise and reward for their great devotion, holy doctrine, and excellent method of procedure—of which it is not proper to deprive the faithful, by taking from them the fruit that is received from their sermons and admirable instruction everywhere. In order that this my sentiment and opinion may be apparent for all time, I affixed my name to this present document in Manila, October eighteen, one thousand six hundred and thirty-five.

Fray Pedro, bishop of Santissimo de Jesus.

His most reverend Lordship signed in my presence and I witness thereto, and know him.

JUAN SORIANO, notary-public.”

Following the decree enacted by the archbishop, another point was discussed in the assembly, which concerned the attempt of the governor to have Don Pedro de Monrroy go to the island of Hermosa as its chaplain. In this regard they resolved to offer effective opposition; and the archbishop, at the advice of the assembly, wrote the following letter to the governor:

“I have read the letter written by your Lordship to my provisor, and his answer, and the resolution of your Lordship to send him to the island of Hermosa. As I desire peace and harmony with your Lordship, I entreat you to receive his excuse, since it, and my need of his person, are well known. Besides this, I ask your Lordship to note that the appointment of a vicar, or the granting of ecclesiastical authority and jurisdiction, or the administration of sacraments, is the prerogative of the ecclesiastical prelates, and not of the civil government. Therefore, I request your Lordship to refrain from making similar appointments in this regard. I write all the above to your Lordship by the advice of the bishop of Zibu and of the orders, so that your Lordship may see that I am not moved by passion, but by reason and justice; and that I do not trust to my own opinion, but to that of many. I entreat your Lordship to form another like opinion in making your decisions, and with persons who are free to speak their minds to your Lordship. May our Lord preserve your Lordship and prosper you in His holy service. Today, Tuesday, October nine, six hundred and thirty-five.

FRAY HERNANDO, archbishop.”

The governor answered the above letter of the archbishop as follows:

“I do not think that your Lordship desires peace and harmony as you say, since you order me to receive the excuse of Don Pedro de Monrroy in what I ask from him, which is fitting to the service of his Majesty. I am doing it

with all peace, without desiring war, and without seeking war with anyone. Many can supply your Lordship's need of his person, who are better intentioned and more learned, in accordance with his Majesty's orders in his royal decree.

On the contrary, your Lordship has rather too much of Don Pedro de Monrroy than too little, for the quiet, harmony, and good government of your church.

I am not ignorant that the approval of ecclesiastical persons is reserved to the prelates in order that they may administer the sacraments; but the appointing of them belongs to the government by virtue of the royal patrimony, just as his Majesty appointed your Lordship bishop and archbishop, and as his Holiness approved and confirmed it. Consequently, I cannot, even though your Lordship orders it, abstain from appointing curas and vicars, choosing from three whom your Lordship ought to nominate, the person whom I shall consider most suitable. In the case of canons and dignidades of this holy church, governors of vacant bishoprics, and chaplains, superior and subordinate, of the soldiers, presidios, and galleons of his Majesty, I need no nomination by your Lordship, although they need your approval. If your Lordship writes me thus 'at the advice of the bishop of Zebu and of the orders, so that I may see that your Lordship is not moved by passion, but by reason and justice,' I am moved by passion in ordering that all who came to these islands at the king's cost or in his galleons, and who are his vassals, whatever be their rank and degree, shall serve him. And when I say that this is fitting for his royal service, only his Majesty can call me to account for it.

I value the advice given me by your Lordship that, when I make decisions, I take counsel with persons who are free to speak their mind to me. When I take counsel for the better service of God and the king, I look for the most learned men of good reputation, and many disinterested persons, so that they may not confuse me with so many different opinions. To them I do not declare my intention or determination, as is the general custom, until all have spoken; and then I conform to the opinion of those which I deem best.

May your Lordship understand this truth, and that I fear God more than the king and his vassals. May His Divine Majesty preserve your Lordship for many happy years. The palace; October nine, six hundred and thirty-five.

DON SEBASTIAN HURTADO DE CORCUERA”

The archbishop and the orders seeing that the members of the Society were not disturbed (which seems to have been their intention, to judge by the resolution of the assembly), the archbishop sent a notary, a few days afterward, to notify the superiors of the Society of an act, which I shall place here together with the reply of the father rector, Luis de Pedraza.

“We, Don Fray Hernando Guerrero, by the grace of God and the holy apostolic see archbishop of these Philipinas Islands, member of his Majesty’s Council, etc. Inasmuch as we ordered for just reasons that moved us thereto, in harmony with the rules of the holy Council of Trent (in chapter four, *De reformatione*, session twenty-four), that the religious fathers of the Society of Jesus be notified—the father-provincial, Joan de Bueras, the rector, Luis de Pedraza, and the other superiors of the said order who live in this city—not to preach outside of their convents in any part of all this archbishopric, or in camps, or guardhouses, by any manner of talk or preaching, or in any other manner: that order they shall observe to the letter, under penalty of major excommunication, *late sentencie, ipso facto incurenda una protina canonica monitione premisa*,¹³ and a fine of four thousand Castilian ducados for the Holy Crusade, to which we hold them immediately condemned if they do the contrary. Given in our archiepiscopal palace, in the city of Manila, October twenty-six, one thousand six hundred and thirty-five.

FRAY HERNANDO, archbishop.

By order of his Lordship: DIEGO BERNAL

“At the residence of the Society of Jesus in Manila, on the twenty-ninth day of the month of November [sc., October], one thousand six hundred and thirty-five, I read and announced the act contained in the other part [of this

document], exactly as is therein contained, to the father rector, Luis de Pedraza, in the presence of the witness Diego de Rueda, royal clerk, and the fathers Pedro de Prado, procurator-general, and Gregorio Bellin. In their presence, he desired me to give him an attested copy of the act, as a protection of his right, and they were witnesses of the entire proceeding. I attest this.

JUAN DE LA CUEVA MORAN, notary-public.

“Then immediately the said father Luis de Pedraza required me once, twice, and thrice, to set down the reply which will be declared, notwithstanding that the notification is set down. And, inasmuch as I am constrained by the said requisitions, I give it; and it is of the following tenor:

‘That in all things that were not a violation of their privileges, they were prompt to obey, since they were under that obligation; but if any demand were in violation of those privileges, then they would make use of the means afforded them by the law for their defense and which his Holiness granted them. He affixed his signature, in the presence of the above witnesses.

LUIS DE PEDRAZA

Before me.

JOAN DE LA CUEVA MORAN, notary-public.’”

The fathers of the Society thought that act was a manifest injury to their order and privileges, for three reasons. First, because they were deprived of preaching to all persons, with no exception, without there being other cause therefor than those which your Grace may infer from the document. Second, by commanding them with excommunication and pecuniary fines, a thing which is manifestly a violation of the immunity of the regulars. Third, because they were prohibited from giving instruction in the camps and guardhouses, which is a violation of a *Clementina*,¹⁴ as I am told, and to which no contrary decision has been rendered by the holy Council of Trent. The fathers of the Society attempted to maintain peace by all possible

ways, but they were unsuccessful; and they could find no route to that end. The past governor, Don Juan Cerezo [Salamanca] who was desirous of settling the matter, undertook to secure that end by writing to the archbishop the following letter:

“Our friendship, and the respect with which I always view the affairs of your Lordship, and my obligations, constrain me to represent affectionately to your Lordship, on the present occasion, the great danger that is being incurred in maintaining the provisor in his office, in hatred of him who represents to us the royal person, so that your Lordship may consider in time the scandalous end that is threatened. And although your Lordship will doubtless proceed, I must warn you through my experience of European affairs, heedfully, that the reasons that operate in this small presidio, which is surrounded by barbarians and hostile nations, have no place in populous cities. The governors base their defense on the public peace, in the attainment of which the prelates [should] always aid, without trying to examine the governor’s intention, or throwing obstacles in his path under pretext of ecclesiastical immunity; and although peace is composed of both estates, and it is the business of both to secure and maintain it, its prerogative belongs only to the royal jurisdiction.

“In order to repair these troubles, so that we can hope for great harmony in the future, I consider it as the only remedy, and the one most fitting for the authority of your Lordship, for Don Pedro de Monrroy to display his nobility of character, and resign himself of his own free will to the will of Don Sebastian, thus valuing his favor more than the comforts which he is now enjoying. If he so act, I am sure that it will open a free door for greater promotions [for him], and for the consolation of this community. Your Lordship, as a father, ought to pay attention to this without permitting the matter to be carried to a compulsory settlement, of which I have certain proofs. This opinion seemed good to father Fray Domingo Gonzalez—although, after having conferred with your Lordship, he replied to me that he does not find any secular who can fill the vacancy of the said Don Pedro de Monrroy. But I remember to have seen that your Lordship was inclined to the canon Don Pedro de Quesada. I have here been addressing your Lordship with tenderness and love; and you may believe that any action

contrary to this would be held as a great disservice by his Majesty—especially, as it is understood that the points of [ecclesiastical] government are reduced to assemblies of theologians, your Lordship being their counselor. May God our Lord preserve your Lordship. From my residence.

DON JUAN ÇEREZO [DE SALAMANCA]”

Don Juan de Cerezo was not content with this letter, but, being constrained by his excellent desires, wrote another letter of the following tenor:

“As no beginning has been made in procuring the desired peace, I shall charge myself to treat of it, as it concerns so deeply the licentiate, Don Pedro de Monrroy, to whom I remain a true friend; and at the pace at which the matter is being matured it must be that some little devil has been unchained, and that he is defrauding all the gains. But, nevertheless, as all this cause is for the service of our Lord, I am confident that your Lordship and all the orders will favor it. I am awaiting joyful news this afternoon, in order to be able to commence openly to be the mediator of harmony which, it is represented to me, this community will hereafter enjoy. And should that harmony unfortunately be not attained, I rely, in everything, upon this assembly. At least will your Lordship be pleased to give such direction to it, by your great prudence, that these matters may not be further disturbed. May God preserve your Lordship, as He is able, and as I desire. From my residence, October 12, 1635.

DON JUAN ÇEREZO SALAMANCA”

The dean of this holy church, Don Miguel Garçetas, also did on his part what he could to stay this storm; and he with three other dignidades went about among the four orders, to talk to their superiors in order that they might aid with their advice, so that the affair of Don Pedro de Monrroy might be directed to the satisfaction of the governor, since he had so good an intention; and, at the same time, so that they might annul the resolution taken against the Society in the meeting above mentioned. Each one in private promised mountains of gold. They met with the archbishop; and the bishop of Nueva Segovia and some seculars having attended that meeting,

they were not allowed to take part in it, because others thought that they were on the side of the Society, and that they were inclined to support the governor's decision. In that assembly not only did its members not revoke the resolution, as each one had promised, but they confirmed it and refused to give satisfaction to the governor in regard to Don Pedro de Monrroy.

Immediately the obstinacy and stubbornness of the participants in the meeting was learned; and those who had tried to act as angels of peace felt it keenly, especially Don Juan Cerezo. As he had exerted himself most in striving for peace, his grief at seeing that his good desire had not been obtained was greatest. Therefore he wrote the following letter to the archbishop:

“By your Lordship's letter I have learned the opinions of the religious who attended the meeting of last night. Of the purpose that animates them and their hearts, may God judge. With this outcome I retire from these matters, and my only desire is that they come out right. I meddled in the affair because I thought it expedient and desirable to procure, by honorable means, the restoration of your Lordship's liberty of the ordinary jurisdiction. That was injured and enslaved, the moment when it was subject to the hindrance of not being able to alter anything without a fresh intervention of the orders, and of being obliged to temporize with them so much as your Lordship indicates; for the person and dignity of the archbishop of Manila are of great importance, and his feelings of anger should be of less duration, so that he should not be compelled to chide the quarrels of others with his crozier.

“I petition your Lordship to keep this in mind, for I say it through my love as a son of your Lordship, as a corrective for the present and a warning for the future; and the greatest happiness exists when the two heads of the state are in harmony. May God direct it, as He is able, and preserve your Lordship, as I desire. From my residence, October 19, 1635.

DON JUAN ÇEREZO [SALAMANCA]”

The fathers of the Society, seeing that the peace measures had been useless, and that the doors to any suitable settlement were tightly closed on them on the part of the archbishop and the religious who were their opponents; and that two days afterward they had notified the rector of the Society of the first act, they had notified the minister of Santa Cruz of another (that place being a mission of the Society), in order that he should not instruct certain Indians, a right which the preceding prelate had given to the Society.¹⁵ It was rumored that the archbishop was trying to deprive them of the confessional. Daily new troubles were feared, and the fathers of the Society were compelled to appoint a judge-conservator; and one was in fact appointed on the second of November, 1635. This was Don Fabian de Santillan y Cavilanes, schoolmaster of this holy metropolitan church. He was not serving *ad interim*, as the other relation declares, but held that office in regular appointment, and had held it for several years. He was the son of a treasurer of the royal exchequer. Alonso Baesa del Rio was assigned as his notary, a notary-public and a man of vast experience and skill in papers. The judge-conservator ordered the archbishop, under penalty of major excommunication and a fine of four thousand ducados for the Holy Crusade, to repeal the acts passed against the Society, as they were manifestly injurious. Before he was notified of this act, the secretary read to him his appointment as judge-conservator made on behalf of the Society. This is apparent by the identical acts, which I have seen. I advise your Grace of this so that you may have accurate information on this point; for it is stated and restated often, in the other relation, that the archbishop was not notified legally before they notified him of the act of the judge-conservator. He was notified, for it is certain that the first document read to him by the secretary was the appointment as judge-conservator, as above stated. Later, the same secretary read to him the bull for judge-conservators, and that of Gregory XIII, in which he concedes authority to the fathers of the Society to preach anywhere. The secretary entering the archbishop's hall with the documents, the latter asked him what he had, and he answered that they were the bulls. "But why?" added the archbishop; and Fray Antonio Gonsalez, who was in his company, said: "He has been tired, for we have already seen them in the collection of bulls." If this is so, I am surprised that the hostile relation states that the act of the judge-conservator was null and

void, as he did not first exhibit the briefs (of which no notice was taken) to the archbishop. The latter's procurators also were not bashful, and were so bold as to allege the same in public session of the Audiencia. But they were convinced by the secretary that he read the acts, whereupon an auditor declared: "We must pay heed to this, and not to the new falsehoods that they bring."

Next day the archbishop presented himself with a plea of fuerza, during prison inspection, before the auditor Don Alvaro de Mesa y Lugo [*sic; sc. Zapata?*]; and as there was no other auditor, he issued the usual order. On Tuesday, the sixth of the same month, recourse was had to the royal Audiencia, on behalf of both the archbishop and the Society, to examine the records. The royal Audiencia, seeing that the order issued during the prison inspection was not sufficient, but defective, issued another and new one, and nothing further was discussed in that meeting of the Audiencia. Next day, Wednesday, November seven, the records were brought. The archbishop was represented by the father prior of St. Augustine, Fray Juan de Montemayor, and the father reader, Fray Diego de Ochoa, of the same order; the father definitor of the Recollects, Fray Pedro Barreto; the father guardian of St. Francis, Fray Juan de Pina; and Bachelor Fulgencio de Ribera, a secular, and the deacon and servant of the archbishop. The Society was represented by Father Diego de Bobadilla,¹⁶ and Father Lorenzo Goreto, masters of theology. The latter, before all else, declared that they had no quarrel with the holy orders, and that in consequence the fathers had nothing to do there. But the others replied that they had been authorized by the archbishop. The royal Audiencia ordered the authorization to be read. It made mention only of the father reader, Fray Diego de Ochoa, father Fray Pedro Barreto, and the bachelor Fulgencio de Ribera. Thereupon, they ordered from the room the father prior of St. Augustine, and the father guardian of St. Francis, who went out somewhat shamefacedly. The secretary read the records, but was interrupted at every step by the reader Fray Diego de Ochoa, which resulted in some animosity. After the reading, the president asked the representatives of the archbishop whether they had anything to state. The bachelor Fulgencio de Ribera took the floor, and said in few words that the judge-conservator was not legitimately appointed, for there were no manifest injuries in the case. Then the president invited the

two religious who had remained [to speak]. They said that those of the Society should state their case first, and accordingly the latter were given the floor—Father Diego de Bobadilla first, and then Father Lorenzo Goreto. They proved in the judgment of those of us who were present (and it so seemed to me, although not much is obtained from these things) that the acts which I have mentioned are manifest injuries; and that, consequently, the judge-conservator was legally appointed. In order that your Grace may understand more of what was declared, I am sending you a summary of the allegation made by the fathers of the Society, which one of them communicated to me, and I enclose it herewith. Hence I shall not go into greater detail here, by mentioning what I have heard erudite men say in reply to certain arguments by which the other relation tries to prove that the enactments of the judge-conservator were null and void. I shall only say a word, if I remember it, on three or four points which the relation heaps together, but which are of small moment. It declares that the judge exceeded his authority in not giving the archbishop more than one hour's time-limit in which to read the bulls and to withdraw the act, while in reality twenty-four hours were granted him; and when the secretary, Alonso Baesa del Rio, went to notify the archbishop of the act, to his offer that he could easily obtain more time from the judge, answer was made by Diego Bernal, who was the secretary of the archbishop, that they had time enough, and that no more was necessary, as they had read the bulls often enough. The point was not in this, but in the fact that the judge-conservator could not command the archbishop to withdraw the act that he had made against the Society. By that one may see the calumny in alleging that the time was insufficient to withdraw the act. The relation states that it was a dispute over jurisdiction, and that consequently, according to the ruling of the Council of Trent, judge-arbitrators were to be appointed. That is an error; for there was no contest over jurisdiction, but only that the judge-conservator, as the delegate of the supreme pontiff, ordered the archbishop to withdraw an act manifestly injurious to the Society. The relation declares that the bulls were authorized by the same judge-conservator and his secretary. That is true, but how did that cause any nullification? For the judge did not feign briefs, or say that the one that he presented was the original one, but that it was a faithful copy of the original, which the Society had showed him. Therein he obeyed the behests of the supreme pontiff, in order that such copies might

have legality and authority. When the fathers of the Society had finished their statement, the president told the father reader Fray Diego de Ochoa, and the father definitor Fray Pedro Barreto, to make what further statements they had to make. But they, changing color, and being uneasy, answered clearly and frankly that they had nothing more to say, as they had not come prepared for it. I confess to your Grace that we who were present were put to the blush at seeing so shameful a thing; and we asked, since they had not come prepared, why they had come and why they had received the archbishop's authorization. They requested that audience be granted them the next day, and, although that is contrary to common practice, it was conceded to them, so that they could at no time say that they had not presented their side of the matter, and that they were without defense. That was so clear and manifest a victory for the fathers of the Society, and before the tribunal, the officials, and the great crowd which was present, that I am surprised how those of the other side dared to utter a word. They returned to the conflict on the following Thursday; and other religious besides the two above mentioned and the secular, were summoned. Those who came newly were father Fray Antonio Gonzalez, vicar-provincial of St. Dominic; Fray Diego Collado, of the same order; and father Fray Pedro de Herrera, of St. Augustine: on entering the Audiencia, they presented their authority without being requested to do so—fearing to encounter any such jest as had happened to the others the day previous, for lack of authority. The father reader Fray Diego de Ochoa spoke first in this Audiencia, in a loud voice and with many exclamations, and casting opprobrium on the person of the judge-conservator. Then the father definitor Fray Pedro Barreto spoke. He read a short paper that he had written, saying that he had not been able to commit it to memory. He was followed by father Fray Antonio Gonzalez, who alleged a very trifling defect in the bull. After him Fray Diego Collado spoke. He said that he was the confessor of the president of Castilla when the bishop of Cordoba had a similar suit with the orders in España. Father Fray Pedro de Herrera gave his opinion last. All of them together consumed more than one and one-half hours. The fathers of the Society answered, Father Diego de Bobadilla first, and then Father Lorenzo Goreto. Such was their reply that, to all of us who were present, it seemed that they had proved their case, and it is sure that they showed the act to be a manifest injury: first, because they had been ordered not to preach outside of their

churches, under pain of excommunication and pecuniary fines; second, because the archbishop, through his anger toward only one of the Society, had forbidden all of them in his archbishopric to preach. The controversy then hinged on [the question] whether the prelate may prohibit some of the Society, for just causes (which he said that he had, but did not express), from preaching in camps and guardhouses. The friars said that he could, and their whole argument consisted of what the Council [of Trent] says, according to what they alleged—making fuerza out of those words, *contradicente episcopo* [i.e., “the bishop opposing”], and giving as explanation that the prelate may by his own authority oppose and forbid the regulars to preach, even in their own churches. Thence they inferred that the archbishop had not laid on the fathers of the Society all that he could. Those of the Society answered this at length, and showed by several books which they brought to the Audiencia that that phrase *contradicente episcopo*, ought not to be understood in that manner, but according to a certain Clementina which, if I am not mistaken, is that of *De sepulturis*, and begins with *Dudum*. As this was the point of all their controversy, I refer you to the statement that is enclosed herewith. But I am unable to conjecture why the other relation wastes so much paper, and becomes wearisome, by bringing in so many statements to prove that the religious may not preach in the churches of others without the permission of their owners, since the Society never claimed anything else, nor were their statements intended to prove it. And believe me, your Grace, on this second day no less glory fell to the Society than on the first. I have related this point so extensively, as some prejudiced persons have stated that the adherents of the archbishop silenced the fathers of the Society.

The gentlemen of the royal Audiencia remained in the hall, and on voting on the point of fuerza they were divided. Thereupon, his Majesty’s fiscal was appointed, as that pertains to him by law. His vote, it appears, was cast in favor of the fathers of the Society. Consequently, it was declared that the judge-conservator had not used fuerza toward the archbishop, and that he should proceed with his commission. Some persons were not lacking who tried to suspend the proceedings and declare them null and void, because the archbishop’s representatives were not notified that it was because the auditors’ opinions were discordant that his Majesty’s fiscal had been

appointed judge. They did not take note that this matter of making notifications and summons is an act of superiority and jurisdiction; and that, as the royal Audiencia does not hold that in ecclesiastical matters, it does not employ such acts, and only declares whether the ecclesiastical judge practices fuerza or no—and this not as judge of the ecclesiastical estate, but as a political governor who desires peace in his country. The other and contradictory relation also tries to prove the proceedings null because, before the royal Audiencia declared that the judge-conservator was not committing fuerza, the procurators of the archbishop drew up a petition which they presented to the president, in which they challenged the auditor Zapata. But he who regards this as nullification, proves that he is but little accustomed to the manner of procedure of the Audiencia; for in the first place the petition was not presented in time, and second, it was not signed by a lawyer—an essential lack, as that is contrary to his Majesty's orders for what is to be done in such cases of challenging a judge, and especially so superior a judge as an auditor.

As the judge-conservator was declared by the Audiencia to be legal, he proceeded, constraining the archbishop with censures so that he should furnish an official statement of the acts issued against the Society. He did so, sending the original act already mentioned, the original [record of the] meeting that he held with the religious, and the act that was issued ordering the fathers of the Society not to minister to the Indians of Santa Cruz. Within a few days the matter was well on the way to a conclusion and settlement, when it was discovered that the archbishop and some of the said three orders of St. Dominic, St. Francis, and St. Augustine, had held a meeting, and under color of a protest had issued a defamatory libel, in which they linked the same judge-conservator, the Society of Jesus, the governor, and the royal Audiencia, because these had declared against their will. This document was a matter of common talk and notoriety, not only because it was declared by many of the townspeople, who had heard it from those who had been present at the meeting (and as there were so many of them it could not be kept secret); but also, as soon as it was requested, the archbishop told the father rector, Luis de Pedrasa, that he would not give up such a paper, even if he were deprived of the archbishopric; and father Fray Pedro de Herrera, his procurator, said that they would not give it even if

they were hanged. The father provincial of St. Francis asked Adjutant Juan de Vega Mexia, why he demanded such a paper, for it was not well for the Society, or their judge-conservator, or the governor, or the royal Audiencia to see it. This tone increased the reports of the townspeople, and the constant rumor that that protest was a defamatory libel and contained grievous things about many persons. It was authenticated by a royal clerk named Diego de Rueda, who is also a familiar of the Holy Office. The judge-conservator arrested him, and took his confession, in which, although he did not tell openly all that the protest contained, he made known sufficient of it so that one could get light on the matter. The judge-conservator petitioned the governor for the aid of the civil arm, and on Friday, November 16, arrested the clerk by its help. The commissary of the Holy Office, Fray Francisco de Herrera, of the Order of St. Dominic, came out to demand his familiar from the judge-conservator. The judge answered that he had already taken his statement; that, although he had arrested him so that he might declare more, the man was no longer necessary to him; and that it did not concern him, and they should demand the familiar from the governor, who had him. The father commissary answered that the reply of the judge was not satisfactory, and that his familiar should be handed over to him. The judge answered that in writing, as follows:

“In the city of Manila, November twenty-three, one thousand six hundred and thirty-five. Don Fabian de Santillan y Gavilanes, schoolmaster of the holy cathedral church of this said city, apostolic judge-conservator of the Order of the Society of Jesus, etc., declared that [he makes this declaration] inasmuch as the reverend father preacher Fray Francisco de Herrera, of the Order of St. Dominic, commissary of the Holy Inquisition in these islands, sent him an oral message by the accountant, Alonso Baesa del Rio, notary-public and apostolic notary of this tribunal, yesterday, Thursday, between six and seven in the morning, asking to have Diego de Rueda sent to him (as he said that he had arrested him), for a certain declaration that he had need of making before the said father commissary. To that message the said judge-conservator also responded orally, saying that although he had arrested the said Diego de Rueda, because of what pertained to his office as judge-conservator, it was two days since he had finished with him, and that the said Diego de Rueda was no longer held prisoner at his account.

Therefore, he should go to Don Sebastian Hurtado de Corcuera, governor and captain-general of these islands, to ask for him. Nevertheless, after his declaration that he was not holding the said Diego de Rueda a prisoner, the said father commissary, by an act that he issued today, ordered the said judge-conservator, under penalties and censures, to deliver the said Diego de Rueda within two hours, and he was notified of it at the hour of nine in the morning. The judge-conservator made the same answer in writing that he had given orally to the said apostolic notary, and more fully (although the said [oral] reply was sufficient). At the hour of ten in the morning he wrote a letter to the said father commissary, sending it by Adjutant Juan de Vega Mexia, in which he offered to the commissary to draw up a document requiring, exhorting, and notifying the said governor and captain-general of these islands that, in what pertained to this court of the said apostolic judge conservator, inasmuch as the latter had no longer anything to do with the said Diego de Rueda, the governor should set him free and send him to the said father commissary. The latter answered in writing through the said adjutant, Juan de Vega Mexia, that the said governor declared that it was not his Lordship, but the said judge-conservator, who had arrested the said Diego de Rueda. And after the said reply, and for greater satisfaction, and so that his obedience, as an obedient son of the Church to the mandates of the Holy Inquisition may be recognized, the judge-conservator thereupon petitions and supplicates—and in a necessary case, requires, exhorts, and charges—Don Sebastian Hurtado de Corcuera, governor and captain-general of these islands, in what pertains to this court of the said apostolic judge-conservator, inasmuch as the latter no longer has anything to do with the said Diego de Rueda, to free that man and send him to the father commissary, as the latter has ordered and commanded the said apostolic judge-conservator, under penalties and censures. Thus did he enact, and affixed his signature. The schoolmaster,

DON FABIAN DE SANTILLAN Y GAVILANES

By his order:

ALONSO BAEZA DEL RRIO,
notary-public and apostolic notary.”

After receiving this reply, the father commissary left the judge, and requested the governor to give him his familiar. His Lordship answered him that the said familiar had transgressed in the exercise of his office by having authenticated, as a royal notary, a defamatory libel; and that the punishment for that devolved upon the royal jurisdiction, according to the agreement in the new compilation [of laws]. The governor sent Diego de Rueda under arrest to the fort of Cabite, whereupon the father commissary had the governor notified of the following act through a youthful friar called Fray Ignacio Muñoz, and another who accompanied him:

“In the city of Manila, on the twenty-sixth of the month of November, one thousand six hundred and thirty-five, the reverend father Fray Francisco de Herrera, commissary of the Holy Office in these islands, declared that he is at present engaged in a cause pertaining to the tribunal of the Inquisition, in regard to a protest which is reported to be a defamatory libel against the holy Order of the Society of Jesus, and other persons occupying places of dignity. The principal witness in it is Alférez Diego de Rueda; and, for lack of him, the service and execution of the Holy Office in investigating this cause is suspended and prevented. Inasmuch as the pontiff Pius Fifth, and other pontiffs order in very strict terms that the causes of the Inquisition take precedence over all others, and that all causes cease and be superseded until the Holy Office concludes its business: therefore the said commissary ordered (and he did so order) Governor Don Sebastian Hurtado de Corcuera, who says in his letters that he has arrested the said Diego de Rueda for having become an apostolic notary when he was a royal notary, for the purpose of authenticating the protest that is said to be a libel—an offense which by being committed in connection with this cause, belongs by law to the Inquisition, and to no other tribunal, as it is in regard to what is said to be a defamatory libel against the said order and persons; and gives him a time-limit of thirty hours within which to present Diego de Rueda at the Holy Office, under penalty of major excommunication and a fine of five thousand ducados for the expenses of this tribunal. And, under the same penalties, he orders the said governor not to make any further effort to demand or inquire about the said protest, since if it is, as is asserted, a defamatory libel, it belongs to no other judge, but only to the Holy Office; and the governor shall not molest the said prisoner until the Holy Office has

entirely concluded its cause. And he thus decreed in this act, which he ordered and signed.

FRAY FRANCISCO DE HERRERA

Before me:

FRAY IGNACIO MUÑOZ, notary.”

The friar commenced to read his act, and, at the commencement of the reading, the governor asked the friar to hand it to him. Seeing that this was the beginning of disturbances in the community, he ordered an adjutant to conduct those friars courteously to their convent at the port of Cabite, and charge their superior to retain them there and look after them well; and that they should not disturb the peace of the community for him, nor talk with the freedom and levity that they had displayed to him. The fathers of St. Dominic took occasion from that to utter innumerable evil reports about the governor, so that there was no place where they did not murmur aloud about him. Father Fray Sebastian de Oquendo of the Order of St. Dominic, in especial, went one morning to the auditor-general of war, Manuel Suarez, with a bull which he declared had been promulgated by Pius V; and having read it, he declared that the governor was excommunicated for preventing the exercise of the Inquisition's authority (although the governor declared that he did not prevent it but that he was maintaining, as he ought, the royal jurisdiction); that he was deposed, that he was not governor, and could not act as such; and that the senior auditor should immediately assume the government, and arrest Don Sebastian and place him in a fort. The auditor-general referred all the above to the governor; and, as a confirmation of this and other rumors that were current through the city, the same fathers of St. Dominic brought a friar from Cabite, named Fray Francisco Pinelo,¹⁷ a man of talent and eloquent in the pulpit, in order that he might preach on the second Sunday of Advent, December 9, 1635. He did in fact preach [on that day], and before beginning his sermon, he said that he had called and invited the people to read a bull that he declared was given by Pius V, and was translated from Latin into Romance, in which his Holiness regards those who prevent the exercise of the Holy Inquisition's authority as

infamous, and incapable of holding offices and dignities, and as *ipso facto* deposed from them. The said father asserted all the above with such tones and manner, and at such a time, that it was clearly seen that he meant it for the governor; and that he was scoffing at him as an infamous person, and as one deposed from the government of these islands, because he had sent to Cabite the two friars who had been sent to him. He began his sermon after that, and it was throughout a satire on the Society, on the judge-conservator, and on the governor and the royal Audiencia. He said of the fathers of the Society that they were the cats of the Church, and a damnable and corruptible milk, who were trying by their deceits to influence other religious not to go to Japon. He added that such as they were members that had been lopped off from the Church; and that by their shrewdness and political methods they were insinuating themselves into everything. Of the judge-conservator he said that one would believe him a canon of London rather than of the cathedral of Manila; that the Jesuits had made him a pope or popelet, and that through him they had undertaken to give them [i.e., the other orders] pap;¹⁸ that he was a gambler, and that he had lost some thousands of pesos, which I know is not the case. Of the governor, the preacher said that he was a Pilate, and even much worse; since Pilate had refused to intervene in the death of Christ, while the governor was trying to take part in the controversies with the archbishop; he also compared him to Herod. He talked very venomously about an auditor, and, although he did not name him, it was just as if he had done so, for one could plainly infer of whom he was speaking. He characterized him as unjust and vicious, and all without other foundation than his having declared that the judge-conservator was legal, contrary to what the fathers of St. Dominic claimed. The muttering and commotion among the audience were very marked. It is a fact that many of us think that the preacher had no other aim or motive than to disturb and rouse the crowd so that there should be an uprising, as there had been in Nueva España. And as I have already begun this matter of sermons, and so that I may not afterward interrupt the thread of my discourse, I shall say somewhat here to your Grace of the many disorders that have happened in this direction.

On the day of St. Lucy, December 13, in the convent of the Recollects of St. Augustine, father Fray Andres del Spiritu Santo preached. I was present,

and his whole sermon was a satire against the judge-conservator, the fathers of the Society, and the governor. He said many evil things of them, all of which I do not remember in detail, except that he said, by mistake, of the fathers of the Society that they were Hippocrates; and then, immediately correcting himself, that they were hypocrites and arrogant fellows, and that it was the Society not of Jesus, but of the devil. He characterized the judge-conservator as a vicious fellow. The same father preached on the afternoon of Palm Sunday, in his convent. He said of the governor that he was not setting [a good] example in having founded the royal chapel in the palace, where he hears preaching, because he does not go out to their churches to hear these things. He said also that the governor was obstinate because he did not humiliate himself before the archbishop, as it was Holy Week and the season of the jubilee. The worthy father did not consider in the midst of his zeal what the governor has done for the archbishop, and how he has aided him. He added that the governor did not understand the law of the Christians, as he had said (according to the preacher's statement) that he could not be excommunicated. That scandalized the hearers, and was the motive for many of the city to declare (as I hear) that these sermons kindled the fire that raged, and were the cause of these revolutions.

On Sunday, the third day of Lent, February 24, 1636, at the publication of the ordinary edict, the whole city gathered in the cathedral, where I was present. The father guardian of St. Francis, Fray Juan de Piña, preached. He mentioned in the pulpit a balance that the accountant Juan Bautista de Zubiaga had brought forward against the fathers of St. Francis (who have had charge of the royal hospitals), of more than thirty thousand pesos. Inasmuch as soldiers without weapons have not been received in the hospital for many years, and a great number of men have died in it, and there is no account of what has been done with those arms, they amount, when appraised at low prices, to over thirty thousand pesos. The preacher declared that he had reason to make a greater charge and declare a larger balance against the king of España. The charge was that Fray Francisco Ximenez conquered Oran; and that one of their friars, named Zumarraga,¹⁹ pacified Nueva España. Thus a great part of his sermon was taken up in indecorously contending and taking issue with the king of España. On the Wednesday following, February 27, the same preacher delivering a sermon

in the same cathedral church, returned to the same balance, and treated the said computer of accounts, Juan Bautista de Cubiaga, with great contumely. He called him a Gascon devil, disguised as a Viscayan or Navarrese, who getting a smattering of accounts, gave out that he was an accountant, in order to come to give him a beating. And this he said amid the laughter and commotion of the audience.

On one Friday in Lent, the fifteenth of March, I was present at the convent of St. Augustine; Fray Diego de Ochoa of the same order came out to preach. At the beginning, he read a notice which said that Father Lorenzo Goreto would preach on the following Tuesday at the church of the Society of Jesus, on the good thief.²⁰ He added that that feast of the thief was very suitable for the Society, characterizing its members as thieves. Later in the course of his sermon, he brought in the balance which, as I have told your Grace, the accountant Juan Bautista de Zubiaga presented against the Franciscan fathers concerning the hospitals. He declared it to be an Inquisition case, and that, if that holy tribunal did not take cognizance of it, he himself would seize him. This he said with loud words and a menacing aspect. And, so that your Grace may have a good laugh, I will tell you his argument for saying that it was an Inquisition case—namely, that the pontiff had seen in dreams St. Francis and St. Dominic with their shoulders holding up the church of San Giovanni in Laterano, which was about to fall—a sign that their sons must keep the Church of God upright by means of their glorious labors, as if for that reason no one of the said orders could do anything wrong. Besides the fact that your Grace will see that this vision is not of the Divine attestation—although it pertains to Christian piety to believe it, as so many others—I would never finish if I should try to tell your Grace the disorder that has reigned in the pulpits all this year. I only tell, in general, what occurred this past Lent, and even since Advent. I and many others have gone through curiosity to hear the preachers of St. Dominic, St. Francis, and the Recollects of St. Augustine. Most of the sermons have consisted of satires against the governor, the Audiencia, the judge-conservator, and the fathers of the Society of Jesus; and in utterances so extravagant that they caused a great scandal, and in things ridiculous and unworthy of the pulpit. The latter they made a professor's chair for the

avenging of their passions, instead of one for teaching the doctrine of Christ. Your Grace can see what fruit the audience would get from it.

Returning to our narrative, the fathers of St. Dominic were not content with saying the above-mentioned things in and out of the pulpits, but they incited a petition to the dean of this holy church, Don Miguel Garçetas, who, as the archbishop was excommunicated by the judge-conservator, was exercising the office of provisor and vicar-general in it; they asked him to declare the governor to be excommunicated. For I cannot tell your Grace the fear which seized the religious orders in this matter, that they must place the governor on the excommunicated list; and how many actions that he had committed for which, as they said, he had incurred excommunication—so much so, that in a paper that appeared afterward, there was mention of twenty-five excommunications that he had, in their opinion, incurred; and I do not know whether there are any more in the law. With that petition they presented a paper proving that the governor was excommunicated, and speaking indecorously of him, saying that he was a mean and foolish gentleman. The dean, who is a discreet man and aged, was quite far from assenting to the request made of him, as he saw that they were uneasy and their disturbance was superfluous.

The judge-conservator afflicted the archbishop with new censures and penalties to get him to hand over the protest, but the latter would agree to do so under no considerations. He declared that he had given it some few days before to Fray Diego Collado of the Order of St. Dominic, and that he could not get it back from him. The archbishop did not consider himself as excommunicated, although he had been declared as such. Neither did the religious consider him as such, but persuaded him that he could say mass, and he did so. The religious went in and out of his archiepiscopal palace as before, holding meetings and causing trouble in the community. Therefore, measures were taken to establish some sentinels at the archbishop's door, so that so many religious might not enter to disturb him; but the fathers of the Society interceded with good results, so that the sentinels should be removed. That was done immediately. The archbishop left his house on the twelfth of November and retired to [the convent of] St. Francis. On the eighteenth, the four provincials of the said four orders went to consult the

governor. He told them not to overturn the community as they were doing. All the efforts possible were made and various means were taken to get hold of the protest, since it was fundamental to the conclusion of the peace which was desired. The archbishop wrote the following letter to the governor from the convent of St. Francis:

“Sir:

“Since your Lordship did me the kindness to come to console me and show me favor, I have made the most strenuous efforts in the world to have the protest returned to me; but it is hammering on cold iron. What can I do? For if my intent had been not to show it, I could say that I had torn it up, or could have alleged some other pretext; and I would not have mentioned the person to whom I gave it to keep, as I knew that there was an order to sequester his²¹ property. Since, sir, it is impossible, and it is not my fault, I do not accept the excuse that your Lordship gives me in your letter, in order to free yourself from showing me favor and undertaking to act, settle this affair as governor and friend. Therefore, I petition your Lordship,²² as you can do for one who avails himself of your protection; for I desire ever to remain in your Lordship’s favor, and only bound to serve you all the days of my life. May our Lord preserve your Lordship’s life for long years. From this convent of St. Francis, November 24, 1635.

FRAY HERNANDO, archbishop.”

The governor responded as follows to the above letter:

“Most thoroughly do I believe what your Lordship says in your letter in regard to the efforts made to get hold of the protest, and that your Lordship does not have it. But it is an exasperating and serious thing that Father Collado, or whoever else has it, should display this tenacious obstinacy; and that so many efforts, so many mediators, and so much argument are not sufficient to get it. It is certain, sir, that so great obstinacy in a subordinate ought not to be overlooked; for it is hindering good men so that we cannot go farther in this matter, until we have subdued that disobedience, which is unworthy of so religious a person—especially since I have given my word

to burn it in the presence of your Lordship, without letting any person see it except Diego de Rueda, so that he may acknowledge before witnesses whether it is the paper which he wrote or authenticated. All these considerations, and many others which occur to me, almost render it impossible for me to serve your Lordship. On the other hand, your Lordship's present need of my service constrains me more; and as Don Sebastian de Corcuera, I am doing more, I judge, in charging myself with these affairs than I would do in concluding them had I all the authority that your Lordship mentions.

Now, sir, that I may move in the matter with more security, it will be necessary, since there is no other remedy, to compel Diego de Rueda to declare to me, and attest as a notary, the contents of the protest; and in order to cause him to do so, even though he resist, I shall have to make use of the means, however harsh, that I shall find available. May God direct the matter, and may He guide me in all things so that I may be successful in serving your Lordship. Given at the palace, this day, Sunday.

DON SEBASTIAN HURTADO DE CORCUERA”

In order to bring about that settlement, the governor went, November 20, to see the archbishop, whom he consoled; and he offered to do all in his power in favor of his Lordship. The next day the same governor called a meeting of the gentlemen of the royal Audiencia, his Majesty's fiscal, and all the learned jurists in Manila. They agreed that this matter could not be settled so long as the protest did not make its appearance. In accordance with that decision, the governor wrote the following letter to the archbishop:

“From the time when I went last evening to pay my respects to your Lordship, I have thought of nothing else excepting how I might manage to serve you. With that purpose, I had the four advocates of the royal Audiencia summoned, and others—ecclesiastics, jurists, and theologians. On meeting them, I set before them my great desire for peace and for the quiet and comfort of your Lordship. I had them read the letters that your Lordship wrote me, the efforts that had been commenced, and the papers given me yesterday by the father readers of St. Augustine. After discussing

them, little credit was given to the statement of father Fray Pedro de Herrera and to the mandate of father Fray Antonio Gonzalez; for both of them are accomplices. Moreover, it was not well for them that the people should see them meddling in a matter that is so unrighteous and one so unbecoming to their profession. [I told those who were assembled] that, accordingly, they should protect these papers, so that neither the mandate of father Fray Antonio should bind father Fray Diego Collado or any other of his religious, or the statement of the said father Fray Pedro de Herrera have any effect. For it was considered also that the latter had been issued nine days after the incident [of Rueda's arrest] had occurred; and more especially was noted the obstinacy of father Fray Diego Collado in refusing to return to your Lordship the paper or protest that had been made. For these reasons all unanimously, without one dissenting voice, were of the opinion that your Lordship should make new and more strenuous efforts to secure and surrender the said protest on account of the difficulties that so evidently result from secreting it. And since, sir, it contains nothing that can tarnish the reputation of the Order of the Society, or that can be of importance to any other, I would judge it impossible that there can be any agreement, or that the cause can be concluded to the pleasure and satisfaction of your Lordship, except by handing over the said paper—with the promise that I hereby give, as a gentleman, that if it be handed over to me, I shall only allow the notary to see the signature, so that he may attest that it is the document that he authenticated; and then immediately, in the presence of him who hands it to me, or in the pretence of your Lordship (for which purpose I shall go to your residence), I shall burn it so that nothing of it can remain. It has also seemed best for me to ask the judge-conservator to grant your Lordship four or six days more than the time-limit that he has assigned; and I shall do that immediately, so that your Lordship may have more time to see that that religious may not ruin the whole affair, and that he may hand over the paper. And in case that he always prove obstinate, I shall immediately refrain from meddling in this matter, either for or against your Lordship. I beg you to pardon me for having made this resolution, in accordance with the opinion of so many erudite and well-intentioned men. And, even had they not given it, I would have made it of my own accord, after hearing what the sargento-mayor has just told me of the religious of St. Dominic, who have broken into the guardhouse at one of the gates of the

wall, defying the soldiers stationed there, and forcibly bringing inside Don Pedro Monrroy—contrary to the order that I had given that he was not to be allowed to enter, since he is not provisor, and has nothing to do inside the walls. And if these disorderly acts are committed while I am seeking means and methods of doing your Lordship a service, by which I may aid you in paying the condemnations that have been ordered, I am freed from the obligation of having anything to do with these matters, either pro or con. On the contrary I shall inform the king our sovereign of the efforts made on my part; and all the community will have understood them and will know that your Lordship, taking counsel of the three orders, neither desires nor tries to secure peace. I beg your Lordship's pardon for speaking so boldly, and rest assured that there is not, nor will there be, more than I have said here. May God preserve your Lordship for happy years. Given at the palace, November 21, 1635.

DON SEBASTIAN HURTADO DE CORCUERA”

Since the above letter makes mention of the forcing of the guardhouse, I shall narrate to your Grace what occurred. Don Pedro de Monrroy, since he was not provisor, left the city. The governor, fearing that if he returned hither, the matter would be more unsettled than ever, left orders at the city gates that Don Pedro should not be allowed to enter, should he make the attempt. But on November 21—on the same day and at the same hour when the governor was with the archbishop in the convent of St. Francis, trying to settle the matter—the said Don Pedro Monrroy, clad as a Franciscan friar, with another Franciscan friar as companion, attempted to enter by a gate near the convent of St. Dominic, at the time of the Ave Marias. A great number of religious went out of the convent to receive him. The commandant at the gate, one Alférez Don Francisco de Ribera, recognized him; he seized him, and called out to his soldiers to take their arms, and prevent Don Pedro's entrance. But there were so many friars of St. Dominic, who charged down and defended him by fighting with their fists, that the soldiers could not use their weapons or prevent his entrance. Consequently, forcing the guardhouse, they took him into the city. The governor felt just anger at this. He ordered the commandant and soldiers to be arrested, and he was about to garrote the commandant and punish the

soldiers for not having obeyed his order. They exculpated themselves quite sufficiently in the report that they made of having done their utmost, but that the fury of the religious gave them no time to do any more. The governor in great anger wrote to the father vicar-provincial of St. Dominic, Fray Antonio Gonsalez, regarding the matter; and the latter responded very coolly that his religious had not done such a thing, and that he had proof and information to the contrary. The father vicar added that Don Pedro de Monrroy had entered the city in obedience to the summons of the Inquisition. For your Grace must suppose that as the friars saw the matter was ending ill, and as their passion against the fathers of the Society was so great, they endeavored by all means to make it a case of Inquisition against them. Therefore, on November 19, the father commissary sent for a copy of the act of the judge-conservator, in which the latter ordered the archbishop to produce the protest or defamatory libel, under penalty of suspension; that act was affixed to the archbishop's door, as he was not at home, and as he could not be found to notify him. Father Fray Francisco de Paula²³ acted as notary on this occasion. He ordered a writing-desk to be placed in the street, and, with great pomp and clatter, had the said act removed, and copied it on the writing-desk. Next morning the father commissary sent another friar, named Fray Ignacio Muñoz,²⁴ to act as notary to summon the judge, Don Fabian de Santillan; he did it in so clamorous a manner, and at such a time, that people thought he was trying to place some stain on the said judge. The latter, in order to purge himself from it, asked the father commissary for an official statement stating that he had not been summoned for any crime, but only to be told that the trial of the said protest did not pertain to him. At nine o'clock in the morning of the twenty-third of the same month of November, two lay brothers of the same Order of St. Dominic, also in the capacity of notaries, went to the judge-conservator, who was at [the convent of] the Society, to notify him that he must surrender Diego de Rueda. And because the doorkeeper of the Society told them to wait a moment, they began to cry aloud and to attest by witnesses that they were being prevented from attending to the affairs of the Inquisition. On the twenty-sixth of the same month, another notification was made to the same judge, asking for Diego de Rueda, and ordering that he be sent to demand the protest. Many other notifications were served on him through the agency of Fray Antonio

Espexo²⁵ of the same order. From this your Grace will observe that they had a different notary for each day; this is a matter on which I may reflect much, and I even imagine that the inquisitors of Mexico would not be pleased with so great a variety of notaries for one commissary—some being lay brothers and others ordained priests, some youths and others of greater age—and usually but little restrained. To show that, I will only tell your Grace of one thing that one of those notaries, Fray Ignácio de Muñoz, said, when going one day to a garden with another friar of his order, Fray Pedro de Ledo,²⁶ and with the collegiates of Santo Thomas: “I shall not stop until I see all the Theatins [*i.e.*, Jesuits] put to the knife.” What a fine disposition is that, your Grace, and what a good inclination in a notary of so holy, upright, and dispassionate a tribunal as is that of the holy Inquisition! Finally, the father commissary asked the judge-conservator to surrender to him an information that he had brought against Don Pedro de Monrroy, because he had said that Lutero and Calvino [*i.e.*, Luther and Calvin] and other heretics had not done so much harm to the Church of God as had the fathers of the Society. The judge gave him the original, but kept a copy, which the father commissary also sent to get from him. The judge refused to give it to him, saying that he could not give it up, and that it was necessary to adduce in the cause; and that although it pertained to the father commissary, as far as it was a mischievous statement, yet it pertained to the judge himself, so far as it was an injury against the Society, of whom he was the conservator. The father commissary notified him, besides, that he himself would send to demand the protest or defamatory libel, since, being such, it pertained to the Inquisition to try it. The judge answered him that it did not pertain exclusively to the Inquisition, and that he had begun to try that cause, as it concerned the principal cause. The father commissary served many different notifications on the judge, in which it could be plainly seen that he was trying to embarrass the affair, so that it should not proceed further. Accordingly, the judge notified the commissary, or rather, father Fray Francisco de Herrera, not to lay obstacles in the path of his apostolic jurisdiction, and to cause him no hindrance in it. In order to conclude this part of the matter, I shall cite here the answer given by the judge-conservator to an act by the father commissary; it is as follows:

“I, Don Fabian de Santillan y Gavilanes, schoolmaster of the holy cathedral church of this city, apostolic judge-conservator for the observance and immunity of the privileges, rights, and actions, of the Order of the Society of Jesus, etc., declare that, having examined the reply of the reverend father Fray Francisco de Herrera, commissary of the Holy Office of the Inquisition, given to the act issued by myself on the twenty-eighth of the present month and year, he says therein that he is not trying and never has tried to disturb the peace, or anything that the said judge-conservator could do in its defense; but only to take cognizance of what pertains to the Holy Office of the Inquisition in order to fulfil his obligation (to which pertains all that of which he has been notified), and to obtain the papers regarding the said causes, according to the terms of the briefs of the supreme pontiffs, so that no paper shall remain in possession of any judge, notary, or any other person; and that the said judge-conservator has no brief to oppose to this, nor can he have such. As for the chief order in the said my act, it is not that the said reverend father commissary should not disturb the peace, nor do all that which he may do in defense of it, but that he restrain himself from hindering and disturbing, in any manner, the exercise of my apostolic jurisdiction, which I am actually exercising; and, especially, that he do not ask for papers which do not pertain to him, but to my court and to the cause that I have in hand. Such are the papers that the said reverend father commissary asks from me; for the originals of those which belong to the cause of Don Pedro de Monrroy I have delivered without waiting to have them asked from me, as I have mentioned in the said my act—only because in a certain manner they may belong to the said tribunal of the holy Inquisition. But they belong principally to my court, and to the cause that I have in hand; for the words spoken by the said Don Pedro de Monrroy are especially injurious and insulting to the said Society of Jesus and its religious. It is necessary for this reason that an authenticated copy of the papers which I delivered to the said reverend father commissary remain in the records of this cause, in order that I may not fail in my duty and jurisdiction, and that I may give a good account to his Holiness of the affairs under my charge. As for the assertion that the briefs of the supreme pontiffs order that the said tribunal of the Holy Office shall obtain all the papers (both original and copies) touching the causes that pertain to the Holy Office, and that no paper remain in possession of any judge, notary, or

any other person—that is understood, as is apparent from the said briefs, to mean the causes which belong strictly to the said tribunal of the Holy Office, and to no other court. Likewise, those which are asked from me belong—inasmuch as they contain injurious and insulting words against the said Society, whose apostolic judge-conservator I am—peculiarly and chiefly to my court; and if I handed them over I would be greatly delinquent in the obligations of my office, and I would cease to be a judge-conservator of the said Society of Jesus. Neither can I be ordered to refrain from requesting the protest or paper that I am asking from the archbishop of Manila, Don Fray Hernando Guerrero; for it contains affronts and insults uttered recently against the said Society of Jesus, and against my jurisdiction, and the acts that I have pronounced. And supposing that it could also pertain to the said tribunal of the Holy Office to try the defamatory libels against religious persons, it has not hitherto been understood that the exclusive trial of such causes has pertained to it. And since this cause is at least *mixtifori*;²⁷ and since I am actually trying this cause as apostolic judge-conservator, and consequently, with exclusive apostolic authority, without anyone having the power to take it from my hands, except his Holiness (whose delegate I am, and to whom only I am immediately subject); and since, for all this [authority], it is unnecessary for me to produce any other brief except the apostolic authority and jurisdiction of judge-conservator which I hold and which I am exercising; and since with less justification can the said reverend father commissary restrain me from asking the said paper or protest from the said archbishop, and make me leave it to the said reverend father commissary—first, because he has a part in this affair, as he was present and signed the first act of the said archbishop against the said Society of Jesus on the ninth of October of this present year, together with certain religious of his order, whose signatures I have in my possession (that act having been the foundation and origin of all the insults received by the said Society of Jesus, and the reason whereby they were incited to appoint me their judge-conservator); and second, because, the said archbishop having made the said protest or defamatory libel, the said reverend father commissary cannot lawfully demand it, for the said archbishop is not his subordinate, while I, forsooth, can ask it as being his legitimate apostolic judge, and moreover I can constrain him with

fines and censures against his obstinacy and disobedience to the apostolic mandates; hence the said reverend father commissary's command that I leave to him the demand for the said protest or defamatory libel, and that I refrain from asking for it, means that I should allow him to exceed the authority of his commission, and that I refrain from fulfilling mine: therefore I order the said reverend father commissary to observe and obey the act of which he was notified yesterday, the twenty-eighth, exactly as is therein contained, without exceeding it in any point, under the penalties and censures therein contained, to which I regard him as immediately liable in their fullest measure if he does the contrary. By this act, I decree and order, and affix my signature. If the said father commissary should not appear so that this notification may be served by the notary who shall make it, the latter shall serve it at the doors of the college of Santo Thomas, where the said father commissary is rector and where he lives; and the notary shall affix a copy of this act to the doors so that he may consider it as completely a damage and injury as if the notification were made and read to him in person. And the notary shall establish this act by an attestation. Given in Manila, November twenty-nine, one thousand six hundred and thirty-five. The schoolmaster,

DON FABIAN SANTILLAN Y GAVILANES

By his order:

DIEGO DE ALDAVE, apostolic notary."

"In the city of Manila, on the twenty-ninth of November, one thousand six hundred and thirty-five, about half-past eleven in the morning, more or less, I, the present notary, read and announced the act on this folio to the reverend father Fray Francisco de Herrera, of the Order of St. Dominic, and commissary of the tribunal of the holy Inquisition of these islands, in his own person, exactly according to its contents. Having heard it, he said that it was impossible to notify him of the said act on the said day, as it was a holy day; and that I should accordingly return on the first workday, when he would answer in due form and at greater length. In accordance with my orders in the said act, I affixed a copy of it, signed by the hand of the said

judge, and authenticated by me the present notary, to the gates of the college of Santo Thomas, where the said reverend father commissary lives, in the presence of fathers Fray Sebastian de Oquendo and Fray Andres Gomez de Espexo and other persons. Witnesses present were Juan Ortiz de Sossa, Benito de Cañeda, Francisco Correa, and Juan Garcia de Nava, soldiers of the company of Captain Pedro de la Mata. I attest it.

DIEGO DE ALDAVE, apostolic notary”

At this juncture all the community was thrown into an uproar by certain religious, who showed the hate that they had toward the Society—to such an extent, that on the day of the Presentation, November 21 (which is the chief day of the holy Misericordia of this city, which the orders always attend), not any of them went except those of the Society. The others refused to meet with them although they had been invited—a matter that scandalized us not a little. As often as possible, the same religious uttered innumerable evil and infamous things against the fathers of the Society, which the latter passed by, silencing their suffering. The orders discussed innumerable innovations, all apparently in order to make confusion. As it pertains to the governor to preserve peace, he one day (namely, November 27) had the superiors of the orders of St. Dominic, St. Francis, St. Augustine, and the Recollects, summoned to the royal Audiencia. He summoned also the father commissary of the Holy Office, but he refused to attend, and sent no excuse. The others attended. They were told in the royal Audiencia that they must quiet their friars, so that they might not continue to stir up the community. The governor ordered their superiors to banish from the city those who were ringleaders in this—namely, Fray Francisco de Paula, and Fray Sebastian de Oquenda, of the Order of St. Dominic; and two others of the Order of St. Augustine. The superiors would, however, under no considerations obey. On the contrary, on St. Andrew’s day, the thirtieth of November, while celebrating the feast of the apostle, who is the patron saint of this city, in [the church of] Santa Potenciana, the master Don Juan de Ledo ascended the pulpit to preach. A notice was given to him [to read] which stated that father Fray Francisco de Paula would preach on the following Sunday in his convent of St. Dominic. That was a very ill-considered act, since it was equal to giving the governor and the royal

Audiencia a slap in the face, not paying any attention to what they had ordered in his Majesty's name—all of which the governor prudently overlooked, in order to avoid other annoyances.

At this time the despatch of the galleons which were to take the reënforcements to Maluco was being discussed. The religious enticed a pilot, named Francisco Domingues, who had been honored and favored by the governor by being made captain of infantry, and who had been appointed pilot of the flagship, to flee with some of them by way of Yndia. The governor learned of it, and was obliged to arrest the said pilot, and to order at the city gates that two religious of the Order of St. Dominic, namely, Fray Francisco Pinelo and Fray Diego Collado—who were the ones who had planned that escape—should not be allowed to pass through them. Then that order also began to say that the governor was incurring a thousand excommunications, not stopping to consider that he who has charge of this city and these islands is bound to preserve them and watch over them, and to give the proper military orders that he considers necessary; and that he could not prevent that loss, except by not allowing those religious to leave the walls. By another method, other religious stirred up a goodly number of sailors, and as many soldiers; and they, having already received money for the journey to Maluco in the galleons which were about to sail, fled in a champan by way of Yndia. There was in this affair a cleric named Don Francisco Montero, who had been expelled from the priesthood, and who was a restless man. He carried papers and authority from the archbishop. There was also a French Recollect friar, named Fray Nicolas de Tolentino, who was angered at his order because they did not elect him provincial in accordance with his claims. A friar of St. Dominic went also. It was said that he was going on to España with grievous complaints against the governor, the royal Audiencia, and the fathers of the Society. But much greater can be the complaints of the governor of him because he had committed so unreasonable an act, and one so much to the disservice of his Majesty, in taking away the men who were to aid his royal service in the royal fleet.

The judge-conservator weighed down the archbishop with censures, to make him give up the protest or libel. He had declared him

excommunicated and suspended; but the archbishop refused to surrender the protest, while the judge-conservator did not cease to demand it. While matters were in this condition, at the petition of the fathers of the Society the governor took hold of affairs, in order to settle them. He called a council of four lawyers—the best in Manila—among whom was his Majesty's fiscal. The father provincial and the father rector of the Society were at the meeting, and also the judge-conservator. The lawyers read the opinion which they had studied over for several days; and all agreed that the judge-conservator could remove the suspension that he had imposed on the archbishop, in order to obtain from him the said protest or libel, as they said that the said suspension was comminatory. For the same reason, they declared that the pecuniary fines could be moderated or completely withdrawn. The fathers of the Society, although they were the offended parties, took the part of the archbishop and supported the opinion of the lawyers; they made every effort that the archbishop might come well out of the affair, and they managed so well that I promise your Grace that the settlement of this matter is wholly due to them. The judge-conservator only was somewhat harsh, and would agree to none of all this; for he thought that it could not be done, according to the counsel that he had received from some learned men. But the governor had the prudence and wisdom to smooth over all difficulties, and finally, the archbishop was absolved, January 28, 636, from the censures and penalties. The governor went in person to his house for him and took him in his carriage to the cathedral, giving him the right-hand side, notwithstanding the ruling of the royal decree that orders that he shall not give it. He took him as far as the choir, where, seating the archbishop in his chair, and bending his knee to him, he kissed his hand, which he had already done in the archbishop's house. The governor paid from his own pocket more than one thousand pesos, in costs and expenses of the suit. Great was the happiness at the conclusion of these suits, and all the orders assembled. Father Juan Antonio Sana, of the Society of Jesus, preached at the feast of the dedication of the church, celebrated that day in the cathedral. The archbishop was full of expressions of thanks for what had been done for him, but that happiness was of little duration. For as the archbishop had at his side and at his ear certain religious who, it is to be believed, did not desire peace, but, on the contrary, did their utmost so that it might not exist between the leaders of the community, and were

taking the archbishop as a means to oppose the governor, and, as it were, to avenge themselves on the latter for injuries that they thought that they had received from him; from that so many were the angry feelings that arose, that they led to the last rupture; but, before going on to relate that, I shall relate some matters of less moment that happened.

A few years ago, a surgeon came to this country, named Francisco Garçia, who had been exiled by the viceroy of Nueva España for certain libels and crimes; and he was ordered to come to these islands, to serve at the will of the governor. The latter having need of him to go with the galleons which, I have already said, were to go to Maluco with the reënforcements, he was fitted out for the expedition. But he took refuge in [the convent of] St. Dominic, alleging that he was a familiar of the Holy Office. From that occurrence also arose a thousand lies against the governor, declaring that he tried to take the surgeon from his retreat—as if the church can be of any avail to a soldier, so that he need not go to serve in the post where his captain orders him. And if the fact that he was a familiar of the Holy Office (which was not proved), did not avail him in Mexico, in the opinion of the inquisitors, to exempt him from coming here under condemnation, it is a token that those gentlemen did not wish that plea to be of any use to him in Filipinas so that the sentence should not be executed upon him. However, a few days after he had taken refuge, the said Francisco Garçia came to a better resolution, and, leaving the church, delivered himself to the governor. The latter received him kindly, and told him that he need not go in the said galleons. But a few months after, as the hospital of the port of Cabite had been put in order, so that the soldiers and sailors might have a place of retreat in their illnesses, Francisco Garçia was detailed as the physician of that hospital, with a salary of one peso per day—which was not a bad stipend. But, that he might not obey his orders, the archbishop ordained the said Francisco Garçia on Tuesday, April 20, with the tonsure and with minor orders; and he, garbed in very reverend fashion as a cleric, began to walk through the city in sight of the governor—to whom those orders meant to give a slap in the face, although he passed it by. In truth, sir, I cannot see that they could be of any use, since, for one to enjoy the clerical privilege, it is necessary that one be already ordained when the crime is committed; but without that, then it matters but little whether he is ordained, according to

what I have read in some authors. Your Grace will ask, then, why the archbishop ordained him and did not think of that. I answer that even as he ordained him, he ordained a few years ago, a Portuguese physician who was living in this city, who went to the city of Macan, one Licentiate Pereira. I have heard that he was twice married in Portugal, and that one wife was a widow. Such a one as this did the archbishop ordain in Pampanga, *extra tempora*²⁸ in the three days of a feast, proceeding from the two degrees that he lacked, namely, those of subdeacon and priest. According to the account that I have heard given by learned men, there were more than twelve irregularities, all of which the archbishop passed by, without its being proved that there should be any dispensation, or without considering that there can be no dispensation here in this case—a matter that was considered by many men, both the learned and the ignorant.

The governor thought that there was a great waste of the royal revenue, which was not carefully spent, in the royal Spanish hospital of this city of Manila, and that the sick were not well cared for. In order to remedy both these evils, the governor conceived the idea of appointing a chaplain in the said hospital, and of ordering the fathers of St. Francis, who had it in charge, to leave it. Although the Franciscans objected, they finally left the hospital; for there was no royal decree ordering that the hospital should be given into the care of those religious—since, although the governor asked for such a decree, it was never shown to him. Many of the religious of the same order, zealous for its welfare, wrote to the governor that it was advisable for their own order that the friars be withdrawn from the hospital. What machinations did they not begin to set in motion because of this deed! What councils did they not hold with the archbishop! What excommunications did they not heap on the governor! The newly-appointed chaplain went to the archbishop to get leave to administer the sacraments in the said hospital, but the archbishop steadily refused to give it; nor without that would he consider examining the chaplain, as the latter wished. The archbishop said that, if there had to be a chaplain, he must be appointed through an open competition—although there is a decree of his Majesty against this, ruling that the choice of chaplains pertains to the governor alone, and that the person chosen shall go afterward to the ordinary, so that the latter may give him a license to administer the sacraments. There was

more in this than the key of the most holy sacrament at that hospital. The archbishop interposed, and had the said chaplain ordered, under penalty of major excommunication, not to administer the sacraments or say mass in the said hospital, so that the hospital remained many days without succor. The governor sent his Majesty's fiscal to bring the archbishop to reason, but he could not do it. And although the royal Audiencia, whither recourse was had on the plea of fuerza, declared that he had committed that offense, not for that would the archbishop soften or change his mind.

At that time a general visitation of the clergy was ordered, and it is wonderful to see along what rough lines the archbishop conducted it, and what harsh methods he took, so that the remedy was worse than the disease; he placed the clerics in irons among the negroes and vile people, and that not for serious causes. That was a thing that tended to produce contempt for the priestly estate; and its effect was that all the clergy, as a body, became thoroughly disgusted, and viewed their prelate and shepherd not as a father, but as a severe judge, who treated them very harshly in his language—behavior which they greatly resented. I will relate to your Grace one instance of this. I attended the cathedral of this city on Holy Thursday, March 20. I saw on the platform (where the oils had been blessed that morning) that the said archbishop was clad in his pontifical robes, and that he had been given the towel for the washing of the feet. The twelve clerics whose feet he was to wash were already barefoot, the gospel had been said, everything was ready, and there were many people before him. It happened that, because some Indian singers and some one of the clergy were absent, the archbishop began to scold, saying that it was a most shameless act for anyone to be absent from the cathedral during that ceremony. Then he began to disrobe himself in great wrath and fury, also removing his pontifical ornaments in his anger, and throwing on one side his miter (which fell to the ground), and his towel to the other side. Thus did he continue to lay aside the rest, and with all haste he went to his own house—leaving the priests barefooted, and without washing their feet; and all those present, thunderstruck and amazed, and even scandalized at the sight of so great fury and wrath in a prelate, and during a ceremony that demanded so great humility.

But to return to our governor; there was no action, however insignificant it may have been, that they did not for it cast calumny on him. The archbishop and religious drew up a paper with twenty-one questions, which the archbishop put to the superiors of the religious, in the form of cases of conscience. The questions were prepared with such skill that, with the reply that would be given to them, they would present weapons against the governor. They proceeded to set down on a paper whatever he did, even in matters of the political government, in order to write to his Majesty. That paper certainly twisted the truth, in many of its statements; and it contained more than sixty or seventy sections. One of the religious who were concerned in it gave it to the governor. Just consider, your Grace, what a tax on his patience this would be, and how it would wound him! Furthermore, the paper ended with twenty-five excommunications which the governor was said to have incurred. Everything was quite ready for the greatest kind of a rupture.

The archbishop went to visit La Hermita, a district where Master Don Andres Arias Xiron was cura. It was well known that the archbishop had a prejudice against him, on account of various matters that had occurred between the two, chiefly because Don Andres was an intimate friend of the judge-conservator, Don Fabian Santillan. His Lordship was very harsh with the affairs of the said Don Andres Xiron; and on Saturday, April 26, after the Ave Marias, he ordered him to be notified of an act by which the archbishop commanded that within fourteen hours he be taken before a fiscal at a village outside Manila, called Calompite. Don Andres tried to answer that act, but they would not allow him to do so; nor would they give him a copy of the act, which he requested. He claimed that the notification was null and void, because it was made at night; but no attention was paid to that. Seeing that the whole affair was being conducted with violence, very early on the morning of Sunday, April 22, he presented a petition, appealing from the said act and claiming the royal aid against fuerza, for which he made representations in the royal Audiencia. The latter declared on the following Monday that the archbishop had employed fuerza against the said Don Andres Xiron; and notified the said archbishop of that declaration. On Tuesday, the twenty-fourth of the same month, at three in the afternoon, the archbishop notified Licentiate Marcos de Zapata y Galves

—the only auditor of this royal Audiencia, because of the death of the others—that he should consider himself as publicly excommunicated, because he had meddled in ecclesiastical affairs; and notices to that effect were placed on the churches. Upon receiving that notification of excommunication, the auditor Marcos Zapata de Galves made a spirited reply; he alleged the invalid points in the act (which were many), and finally, for greater advantage, appealed to and threatened the royal aid against fuerza. The master Don Andres Arias Xiron, inasmuch as he had hidden, was not found, in order to be notified of another excommunication; but he was placed on the lists as publicly excommunicated. On the following Wednesday, April 30, the governor, the auditor Marcos Zapata, his Majesty's fiscal, and three advocates of the royal Audiencia—namely, Doctor Luis Arias de Mora, Licentiate Nicolas Antonio de Omaña, and the auditor Manuel Suarez—met in the royal Audiencia. The auditor Marcos Zapata set forth the manifest violence shown him by the archbishop. The lawyers were sworn so that they might serve as judges, and they so acted. The auditor Marcos Zapata leaving the hall, they judged that fuerza was employed against him. Without doubt it was so, for the auditor Marcos Zapata had not sinned further than in admitting Don Andres Xiron into the royal Audiencia on his appeal from fuerza. If that were a sin, so also was it to admit the said archbishop, when, in his suit with the judge-conservator, he appeared before the royal Audiencia with a plea of fuerza. And if Don Andres Xiron incurred excommunication for having thus presented himself, the archbishop likewise incurred it when he appeared there. But no consideration was given to this, and the point of fuerza is a stale one in España, and consequently it was not discussed. The archbishop was notified of a royal provision issued by Don Phelipe, by which he was ordered to absolve the auditor Marcos Zapata. The archbishop obeyed it, and that afternoon he sent Master Juan Velez to absolve him. That was done *ad cautelam*; for in truth he did not consider himself as excommunicated, nor did the learned jurists so consider him.

Not only was the master Don Andres Xiron not absolved, but new acts were passed against him and new penalties imposed on him. All this was to prevent his presentation, that the governor had made, for the post of archdeacon of this metropolitan church, because of the resignation of the

said post by Don Francisco de Baldes. The archbishop refused to accept the said master Don Andres Xiron, as he asserted that he was his mortal enemy, and for that purpose he threw out all the rest [of the governor's nominations]. He had the prebendaries of the cathedral notified not to accept Don Andres, under penalty of excommunication, and notified Don Francisco de Baldes to assist in the choir as before, since he was the archdeacon—telling him that his resignation had been invalid, as it had been made through the governor and not through the ordinary, before whom the resignation of any ecclesiastical benefice must be made; but the good man did not heed the archbishop and those who were aiding him. Although it is true, and a matter that has been settled by law, that the resignation from an ecclesiastical benefice in which the incumbent has been canonically installed must be presented only through the ordinary, yet Don Francisco de Baldes did not hold the post of archdeacon *in titulum*, but only in charge, and until his Majesty should appoint another. Therefore, the resignation from it was governed by the same rule as the resignation from other chaplaincies of the king, who was the one to appoint other incumbents to them. It is not necessary that those who hold these should make their resignation before the ordinary; and this, it seems, is the practice. For the same object of preventing that presentation, the archbishop exiled Don Andres Xiron, and announced that he was excommunicated. But his Majesty likewise orders in a royal decree that, when the governors should present any persons as prebendaries, the archbishops should accept them, unless they had some objection to offer to them; but that if any exception were made, then such were not to be accepted—with the proviso that the exception must be proved, and, if it should not be proved, then they must pay damages to the one presented. Therefore, the archbishop came forward for this purpose, and entered several exceptions before the royal Audiencia against the said master Don Andres Xiron. The latter manfully repelled these accusations, and purged himself from them all; for at the outset, in reply to a formal accusation with evidence that he had caused a miscarriage, some years before, by ordering a pregnant Indian woman to be whipped, the said master Don Andres Xiron came forward with another report made by the same judge, in which the witnesses who had sworn against him retracted their oaths, and declared that they had been induced by others to swear; whereupon the judge declared him free from that calumny. Further, on the

part of the archbishop, they accused the master Don Andres Xiron of an act of simony; but he gave the lie to that, as salt dissolves in water, by means of authentic documents and reports. They opposed him with other things of less account, but these were not proved, nor was there any witness of them, nor were the accusations completed; they could, therefore, prove of no harm to him, and he did not have to clear himself. Consequently, the royal Audiencia declared that the archbishop had not proved his exceptions to the master Don Andres Xiron, who must be admitted into the archdeaconate, according to the royal patronage. But the archbishop refused to admit him. Hence the royal Audiencia despatched a royal decree, issued by Don Phelipe, ordering that Don Andres be admitted, under penalty of [losing] the temporalities and of banishment from the kingdoms. The archbishop was tied to what the religious who sided with him incited him to, as will be seen from the following letter which he wrote to the master Don Joan de Toledo, his provisor, who counseled him to obey the royal decree, as that was advisable in order to avoid trouble; and that, if he did not obey, without doubt his exile from the kingdoms would be an assured fact. The letter is as follows:

“All that those gentlemen have enacted is in violation of the royal patronage, and contrary to [the precepts of] God and justice; and, although it comes in the name of the king, I am not under obligations to obey it, since men so governed by passion have made it. It is less harmful that I go into exile, and that I suffer, than that so evil a priest enter the cathedral contrary to the will of his Majesty—who, even for but one of the exceptions that I have made, is unwilling that the canonical institution be given to him. It is a piece of nonsense to assert that the cabildo must take charge of the government, for I am not excommunicated or suspended. Already I have appointed governors for the archbishop, and I pray your Grace not to give me any counsel in such things, for I do not wish it. It will seem an admirable thing, in Roma and in Madrid, that an archbishop should be exiled in behalf of Don Andres Arias Xiron, who is a person of great importance in this community. If I shall go, I shall leave the city, so that they shall come to seek me; and they must not think that I shall do through fear what is wrong. Rather will I die twenty deaths. Such is my resolve, and I shall not change it. Accordingly, your Grace may advise them to prepare

immediately a ship in which to embark me. I shall not fail to have persons who will go with me, and God will defend so just a cause and will not permit so great evils and tyrannies, for these acts have no other name. Perhaps God is permitting this in order that some one or some persons may pay for their evil acts—which God allows, but not forever. All the community will judge whether those actions are justified, and they will write to his Majesty; since those actions stand out so clearly. May our Lord preserve your Grace many years. From La Hermita, Friday, May 9, 1636.

FRAY HERNANDO, archbishop.

“In regard to your Grace saying that the king, as sovereign, is able to give the prebends to whom he likes, even to natives, your Grace could not have reflected when you wrote that; since his Majesty, being so Christian and Catholic, is not one to waste the ecclesiastical property, for the purpose of giving it to unworthy men. And you, your Grace, do not you venture to write such words, for they are ill-sounding. I shall not go without forbidding the saying of mass, and without hurling a curse, in the name of God and of the Church, on the circumstances and persons who have caused my exile.”

As the archbishop refused to obey the royal decrees, the royal Audiencia had him notified by an act on the morning of May 9, at nine o’clock, that the temporalities were taken from him, and that he was declared an exile from these kingdoms. Then began the trouble. The archbishop summoned the religious of all the orders, and notified the father rector of the Society to go to a meeting with the rest of the religious. The latter excused himself, for reasons that your Grace will see in the following letter written to the archbishop:

“Most illustrious sir:

“Licentiate Don Bartolome de Cañedo, coming from outside, has just now notified me, at half-past six o’clock, to go to a meeting which your most illustrious Lordship is holding with the religious of our fathers St. Dominic, St. Francis, and St. Nicholas [*i.e.*, the Recollects], who drew up against the

Society of Jesus the paper and resolution that your Lordship knows of, and which has not as yet been revoked—as we understand ought to have been done before the matter went so far as closing the doors of the church on us, as happened in Cabite. Consequently, so long as the said paper remains in force and is not revoked, your Lordship can well understand that we are legitimately excused from such meetings, although never from serving your most illustrious Lordship very willingly and lovingly.”

The resolution made in the meeting with the religious was, that under no circumstances would the archbishop obey the royal decrees, besides other disorderly things, which continued to happen, and which I shall relate in their order.

In the afternoon of that same Friday, the archbishop sent the monstrance with the most holy sacrament to the convent of St. Francis, whence it was carried irreverently in his sleeve by a friar, and taken to the house of the archbishop. The latter, at nightfall, sent two clerics who had taken the minor orders, to excommunicate the governor and Auditor Marcos Zapata; the latter, together with his Majesty’s fiscal, were assembled in the tribunal of the royal Audiencia. Seeing things in so great confusion, they ordered the clerical notaries to enter. The latter, upon reaching the tribunal, with wisdom and prudence did not dare to give notice of anything. In order not to lose any time, which was fast fleeting, they went first to the doors of the auditor Marcos Zapata, and commenced to read the excommunication by the light of a torch. But a soldier, who happened to be passing along the street, gave the torch a flick with his hat, and extinguished it. They were unable to proceed with the reading, and accordingly went to give an account of events to the archbishop, who was at home with the most holy sacrament and a great number of religious of all the orders—except those of the Society, who were not summoned and who did not go. The archbishop ordered the said excommunication against the governor and Auditor Marcos Zapata to be read at the door of the master-of-camp, Don Lorenzo Olaso. They were read, and great bills were posted on the church doors, which read as follows:

“Don Sebastian Hurtado de Corcuera, governor and captain-general of these islands, and the senior auditor, Marcos Zapata de Galves, will be considered publicly excommunicated, because they prevent the exercise of ecclesiastical justice and the general visitation that is being made by his Excellency Don Fray Hernando Guerrero, archbishop of these islands. No person shall dare to remove or destroy this paper, under penalty of major excommunication, *late sententie, ipso facto incurrando una protina canónica monitione premissa*, and a fine of one thousand Castilian ducados for the Holy Crusade, for those who violate the commands herein contained, which penalties they shall be regarded as having forthwith incurred. Given in Manila, on the ninth day of the month of May, one thousand six hundred and thirty-six.

FRAY HERNANDO, archbishop.

Before me:

FRANCISCO DE LA ROCA, notary.”

I am told that an act was issued by the archbishop for the purpose of announcing to the said master-of-camp that he was not to obey the governor, as the latter was publicly excommunicated. But I have been unable to assure myself of the truth of that statement, and consequently, I do not mention it, except with the doubt that surrounds it. But, if it were a fact, let your Grace consider whether that were an act of mutiny or no.

The governor had sent a company of soldiers under command of an adjutant of the camp, and the chief constable of the Audiencia, Captain Bartolome Tenorio, with orders to execute the royal decrees and to expel the archbishop from these kingdoms. The latter was clad in his surplice, stole, and cope, and was holding the most holy sacrament in his hands. He was surrounded by the said religious and by a number of seculars. The chief constable disliked that execution exceedingly, but he was ordered to carry it out under severe penalties, as it pertained to his duty. But, since the archbishop had the most holy sacrament in his hands, he could not do so; accordingly, the governor ordered it to be done when he should lay the

sacrament aside. Three times did he send to order the religious, in his Majesty's name, to leave that place, and not to cause that disturbance and scandal, but they refused to obey. Hence the soldiers took them away by main force—first requesting them with great courtesy to go away of their own free will; and, if not, to give them leave to obey the orders of their superior officers. But the religious asserted that they would not obey, and that, if they were garroted by the soldiers, they would be martyrs. The said chief constable declared that, if he did not obey his orders, he would lose his head, and several thousand ducados which had been imposed upon him as a penalty. A religious replied to him: "If your Grace should die for this matter, we of all the orders will give you our signed statement that you have died as a martyr." The father guardian of St. Francis, Fray Juan de Piña, showed himself to be a great prater—now crying out about the most holy sacrament, now threatening the soldiers with the wrath of God, now exhorting the archbishop to stand firm; and it is even asserted that the said father, appearing at the balcony, commenced to call loudly to the inhabitants to come to the aid of their archbishop. That appears probable to me, since a religious of St. Dominic, after the confusion was over, remarked to a resident of Manila, as if chiding him, that the citizens of Manila were worthless, since they had not hastened on that occasion to the aid of their archbishop. The inhabitants answered as follows: "Father, we are faithful vassals to the king, and not traitors." There was a religious who went to the archbishop and told him to be steadfast, saying that, since the governor was excommunicated, most of the infantry would declare in the archbishop's favor. While the soldiers were busied in clearing the hall from the religious, it was seen that the whole convent of St. Francis was coming in a close procession with lighted candles in their hands. The soldiers went to meet them, and prevented them from passing farther, but forced them to return to their convent. Thus can your Grace see that all the actions of those fathers at that time were for the purpose of creating confusion and stirring up the people.

The city seeing that the disturbance was increasing, assembled at that time in the cabildo houses, and sent commissaries to consult with the archbishop on the part of the city, and to protest against the disturbances and mischief. The commissaries were the castellan, Don Fernando de Ayala, and General

Don Joan Claudio, and I think that there were two others. Bearing before them the maces of the city, they talked with the archbishop, who was clad in his pontifical robes, and held the most holy sacrament in his hands. But they got nothing out of the archbishop; and taking, by way of testimony, the protest that had been made to him, they retired.

Now at that time, namely, at the hour of ten at night, the interdict having been rung at the cathedral, and all the orders, without any exception, having followed it, and ringing the interdict (as they were obliged to do, in order to follow the metropolitan church), the uproar caused the governor some anxiety. He went out with an escort of soldiers, and gave orders that no one be allowed to go to the house of the archbishop, in order that there might be no greater concourse of the people. The soldiers began to remove the religious and seculars who surrounded the archbishop, by violence, for they refused to go willingly. On going to take away a secular who had hold of the lunette of the monstrance, the most holy sacrament fell to the ground, causing a great scandal. The father guardian of St. Francis began to call out, and beat himself and fell to the ground. With that the infantry, scandalized, began to be more gentle. There was one soldier who drew his sword, and turned it on himself, crying: "It is finished." Although he did not kill himself, he was grievously wounded. Thus wounded, they took him away for treatment, and at the same time arrested him as a rioter. Some praised that soldier's act, but I think that the devil would have laid hold of him as of Judas, had he died.

That affair had occupied all of Friday until twelve o'clock; and all that time the bells were ringing the interdict, and the city was in a great uproar and confusion, which was caused by the religious. Their purpose seems to have been no other than to arouse the people; and beyond all doubt they would have succeeded in it, had not the fidelity of this city been so great, the infantry so numerous, and the military discipline so strict. Saturday, May 10, was already dawning; and, at one o'clock at night, the archbishop ordered a suspension of divine services, of which all the orders and the other churches were warned. Thereupon the bells stopped ringing, and the inhabitants were allowed to snatch a little sleep. By this time most of the people had been driven from the hall where the archbishop was, some of

those who accompanied him leaving him, for he remained steadfast with the most holy sacrament. But now, tired out and overcome, it dropped from his hands; although he again took it whenever he saw any soldier entering; until in the morning, a Franciscan friar came and put about his neck a reliquary with a bead of St. Joanna, as if the most holy sacrament—the lunette of which they fastened with a ribbon to his neck, after removing it from the base of the monstrance—were not more efficacious. But as that could not endure, at last the archbishop grew tired and laid aside the most holy sacrament. They returned it to the convent of St. Francis, whence it had been taken, with the same irreverence. The archbishop divested himself of the stole and cope, whereupon the infantry took him outside the city, and embarked him in a champan which was prepared at a port called St. Dominic. With an escort of an adjutant and twelve soldiers, he was taken to the island of Mariveles, opposite and in sight of this city, so that they might await the order there, and prepare a ship and the necessary supplies to convey him outside these kingdoms.

The ecclesiastical cabildo assumed the powers of the government, and assembled, and authorized the bishop of Camarines, Don Fray Francisco de Zamudio, to act as provisor until the bishop of Zebu, Don Fray Pedro de Arze, should be notified, to whom the government of this archbishopric belongs by a bull of Paul V. However, it was learned that he did not care to come to assume the government because of his ill health and age; in such case, the government would pertain legitimately to the said bishop of Camarines. He absolved the governor and the auditor Zapata from the censures *ad cautelam*, for there were innumerable invalidities in the censures, as they did not observe the citations and legal terms. He raised the interdict and the suspension of church services; and at twelve o'clock at night, at the end of Saturday and the beginning of the Sunday of the [feast of the] Holy Ghost, the cathedral bells were chimed. All the other bells of the orders followed suit; and in the morning the churches were opened, and the divine offices celebrated. Thus passed the three days of the feast, while Fray Antonio Gonzalez preached in his convent of St. Dominic, uttering a thousand choice things against the governor.

The governor had appointed Fray Francisco de Paula of the Order of St. Dominic, a father of St. Augustine, and a Recollect father as governors of the archbishopric. Father Fray Francisco de Paula, who had been named in the first place, went to the dean, Don Miguel Garsetas, and other prebendaries of the cabildo, with his paper, in order to have them admit him as governor. But they did not do so, and it appears that they were right; for it is a common judgment of theologians and those versed in canonical law that no mendicant religious can be a provisor or governor of a bishopric; and there is an express prohibition in law to the Friars Minor of St. Francis.

After the feast of the Holy Ghost, on the following Wednesday, May 14, it appears that the three orders of St. Dominic, St. Francis, and the Recollects, determined to observe the interdict and the suspension of divine services. Consequently, they did not open their churches; and, although they opened them later, the altars were draped in mourning, and they did not say mass. On the contrary, they gave out that it was a mortal sin to hear it, for the interdict and the prohibition to say mass could not be raised. These were observed so strictly that the religious did not ring their bells at the Ave Marias or at the Animas, as usual, as if that were a prohibited action. That shows that it was not devotion but fear, as the other Portuguese said.²⁹ But I ask those fathers, if it could not be removed, why did they ring their bells at midnight on Saturday, and why, during the three days of the feast of the Holy Ghost, the doors of their churches were open while they said mass, and celebrated the other divine offices? For to say that that feast is privileged by law, like Corpus Christi day, was correctly stated when there is only an interdict, but not when there is a suspension of mass—as is the common opinion of the doctors and the general practice. Thus that is demonstrated; besides which, if the cathedral and the other secular churches have lifted the interdict and the suspension of divine services, the religious were obliged to follow the action of the mother-church, according to a Clementina that has been cited to me. Thus the fathers of St. Augustine and those of the Society acted very prudently, in concurring with the cathedral.

The royal Audiencia, seeing the schism, and that some of the orders were observing the interdict and suspension of mass, while others did not observe them, called a meeting, on the afternoon of May 14, of the superiors of the

orders. They charged the superiors not to disturb the community, and that all should conform to the mother-church, according to their obligations, in harmony with the said Clementina. But there was nothing that they heeded less than this; and hence proceeded with their interdict and suspension of mass. The most amusing thing was that they did as they pleased, observing it when they chose to, and not observing it when it did not suit them. On the afternoon of the eve of St. Bernardine, the fathers of St. Francis rang their bells; and on the morning of the following day they celebrated solemn mass and had a sermon. A trustworthy person assured me that during that period one of the Dominican fathers went daily to say mass at the house of an influential woman, very devoted to him, one Doña Constanza, or that they admitted her into their church to hear it. But perhaps those fathers had a privilege of observing the interdict and suspension from mass *ad libitum*, and toward what persons they pleased; for at that same time, they condemned to sin and cast into hell the other fathers who said mass. But that your Grace may not be surprised that that difference should exist between distinct orders, you must know that there was a difference of opinion among those of the same Order of St. Dominic. For father Fray Diego Collado, superior and vicar-general of the new congregation of San Pablo—who by the aid of the secular arm had already taken possession of the convents assigned him by his general, namely, those of the Parián, Binondoc, the hospital, and Cabite—drew up for his general a document which proved that the orders ought to conform to the mother-church and raise the interdict and the suspension from mass, as the mother-church had raised them. He sent that paper to the fathers of his order at Manila, telling them that, so that they should not imagine that he was trying to oppose and contradict them in everything, he was conforming with them for two or three days, and was keeping the interdict and suspension from mass; but that now he was thinking of doing so no longer, but of conforming with the cathedral. Hence from that moment he ordered the bells to be chimed in all his convents, and the divine offices celebrated. However, finally, at noon of Tuesday, May 20, the three orders of St. Dominic, St. Francis, and the Recollects rang their bells most joyously; for until then they had observed the interdict and suspension from mass. Some of them being asked why they rang their bells, replied that the archbishop sent them permission from the island of Maribebes, where he was detained, to raise the interdict and the

suspension from mass. Surely, sir, I do not understand this, nor do I understand those fathers, nor do I know what they are desiring and attempting in affairs of this sort.

The archbishop remained in the said island of Maribeles with the adjutant and soldiers above mentioned, awaiting his despatch. Three prebendaries of the cathedral—namely, the precentor, Don Gregorio Ruiz Descalona, the canon, Don Juan de Ledo, and the canon, Don Pedro de Quesada—asked permission of the governor to take him some refreshment, and to go to visit him in his trouble. The permission that they asked was given them, and they went. While they were there, the prior of the Indian village of Maribeles, a Recollect friar, arrived. With him occurred the quarrel that your Grace will gather from the following letter written from the island of Maribeles to the governor by the adjutant, Don Diego de Herrera.

“Sir:

“The prior of Maribeles made great efforts to come to this island to see the archbishop; but I did not allow him to come until your Lordship sent the order by the prebendaries. Notwithstanding the order sent by your Lordship, had I known the intent of that religious, I would not have allowed him to come. He came here at eight o’clock on Tuesday evening. The first thing that he did was to ask the infantry why they subjected themselves to the mandates of a man, and did not obey the mandates of God. I was angered, and told him not to talk like that, and that the members of his order are commanded, under penalty of obedience, to perform certain duties; and that we in our turn are like religious, and are under penalty of our life and of [being denounced as] traitors. The prior said that, if the religious were garroted, his Holiness would publish them as martyrs. Then he began to cry out to the archbishop not to subject himself to anyone, for if he submitted now, he would be ordered on the following day to put his head in the stocks. Then the precentor and the others took part in the discussion, and began to treat him as he deserved. They summoned me to tell the archbishop not to be guided by what that father told him, and that I might cause his Lordship to see how ill he was advised, and that submission was not damaging to his Lordship (for the decree was issued in the name of the king, our sovereign),

and the troubles that he could cause. Your Lordship will not care to know more, than that the prebendaries brought a letter from a religious of St. Dominic for the archbishop. It said that he should refrain from executing the [governor's] mandate, and that all would follow him, even should not a single order be left in that city. The precentor opened it, and on seeing its contents tore it to pieces. He will relate everything to your Lordship. The reason that these gentlemen have not gone to that city is that, in the first order given me by your Lordship, I am ordered not to allow the archbishop to write to the government; and in this letter that these gentlemen brought me, your Lordship does not order me to allow him to write, but that I allow them to talk and communicate to him as much as they wish. Consequently, I have done that. The archbishop gave two powers of attorney begging that the execution of the royal decrees that have been issued against him be suspended in the royal Audiencia, saying that he is ready to obey and observe them. These were given to the precentor, to Don Pedro de Quesada, to father Fray Francisco de Paula, and to the Recollect definitor, as your Lordship will see when they are presented. There is nothing else to write your Lordship, except that may God preserve your Lordship long years in more important stations. From this island, today, Wednesday, May 14, 1636. Your Lordship's most humble servant,

DON DIEGO DE HERRERA”

The said prebendaries consoled the archbishop, whom they found repentant over his disobedience of the royal decrees. Accordingly, he granted them authority to present themselves in the royal Audiencia, to make in his name declaration to the effect that he would obey the royal decrees, and to ask that they should not proceed farther in exiling him from these kingdoms. The prebendaries came to Manila, and petitioned in the royal Audiencia in the said archbishop's name, he offering to obey the royal decrees. A copy of the petition was given to his Majesty's fiscal, and his answer was that the archbishop could be brought back to the kingdoms by the one who had exiled him from them.

Wednesday, May 21, the governor called a meeting of lawyers; and, according to what I have been told, most of them delivered as their opinion

that the archbishop, although exiled, could still remain governor of the archbishopric, but no mendicant religious could act thus, as they were prohibited by law. And since there was no one left but religious, it was as if he had not left them; and the cabildo and the bishop of Camarines, to whom the cabildo gave their votes, were governing legally. Other matters were discussed in that meeting, of which I shall take no notice.

Monday, the twenty-fifth of the same month of May, the archbishop's agents brought forward another petition, urging his restoration more forcibly, and offering to obey the royal decrees—especially by admitting Don Andres Arias Xiron to the arch deaconship and to the chaplaincy of the royal hospital for its administration, which had been the cause of the suits and quarrels. The royal Audiencia received his promise, and ordered him to return to his archbishopric. Then the royal Audiencia having reported to the governor, who was in Cabite, the governor replied, congratulating them on their decision. Accordingly, he signed, very willingly and gladly, the decree which the Audiencia had despatched for that restoration. The decree was sent to the island of Maribeles, where the archbishop was; and at the same time an order was given to the adjutant and soldiers to bring the archbishop back to Manila. They did so, and he entered his archiepiscopal house on the morning of Friday, June 6. There he was visited by all the orders, and many other people, and great happiness reigned at seeing the end of those suits. May God grant that the peace last. May He preserve your Grace, as this your true friend and servant³⁰ desires. Manila, June 15, 1636.

¹ Lorenzo Goreto was born at Ferrara, November 1, 1592, and entered his novitiate at Rome, December 8, 1608. He went to the Philippines (1622), and labored in the Visayan missions, where he died June 17, 1638. Murillo Velarde says that he was master of theology in Manila, and that he was a very learned man. See his *Hist. Philipinas*, fol. 102 verso-103; and Sommervogel's *Bibliothèque*.

Luis de Pedraza was a native of Baeza, Spain, and entered the Jesuit order in the province of Andalusia. He was a prominent laborer in the Visayan missions, and held important posts in the college of Manila. Later, he went to Mindanao, and died at Zamboanga, October 22, 1639. (Murillo Velarde, *Hist. Philipinas*, fol. 107.)

² *Maestro de prima*: *prima* was the name applied to the first three hours of the day, the term being extended to universities and studies, indicating the lessons that came during that period, or the professor who gave his lectures during that period.

³ *i.e.*, "as a precautionary measure."

⁴ Lucas García, who belonged to the mission of 1615, performed missionary duties in Cagayan, and was also vicar of Fotel, of Maquilá, and jointly rector of Santo Tomas, and procurator-general. He was later vicar of Gattoron, of Fotel, of Tocolana, and of Lallo-c, and also served in the province of Cagayan for a number of years. He was also definitor several times, and vicar-provincial in Cagayan. In 1633 and 1635 he was vicar-provincial in Formosa, being also vicar of Nuestra Señora del Rosario, at Tanchui. After thirty-six years' labor in the Indias, he died at Lallo-c about 1651. See *Reseña biográfica*, i, p. 349.

⁵ The ringing of bells at a certain hour (usually sunset), which admonishes the faithful to pray for the souls in purgatory. The *alabado* meant a hymn sung in praise of the sacrament when it was placed within the tabernacle.

⁶ The only Burguillos mentioned by Huerta is Pedro, a lay brother connected with the Japanese missions, who died at Manila in 1615—apparently therefore, not the one mentioned in our text.

⁷ The Cistercian Order was founded by St. Robert, the son of a gentleman of Champagne, who had taken the Benedictine habit, at Cistercium (the modern Cîteaux) in 1098, and professed the rule of St. Benedict. The rule was very austere, but despite various reforms, it gradually became relaxed and approached the observance of other orders. The Trappists are an offshoot of this order. See Addis and Arnold's *Catholic Dictionary*, pp. 186–188.

⁸ An ambassador (generally a cardinal or bishop) sent by the pope to a foreign prince, with full powers.

9 The following royal decree on this subject was issued in 1637: “Inasmuch as I have been informed that many soldiers and sailors who are in my service in the Filipinas Islands are becoming, and have become, religious, while indebted in large sums of maravedis to my royal treasury for pay which has been advanced to them; and that, after having been for some years in the orders, they leave them and wander about as vagabonds with the utmost freedom, and refuse to reënter my service: desiring to apply a corrective to such delinquencies, and the matter having been conferred over in my royal Council of the Yndias, I have considered it fitting to issue the present. By it I request my very reverend archbishop in Christ, the father of the metropolitan church of the city of Manila, and charge the venerable and devout fathers-provincial and other superiors of all the orders in the territory of his archbishopric, to note that they are to inform my governor of the said islands whenever such cases shall occur to the prejudice of my treasury, and that the culprits be punished as is fitting. No one may take the vows of religion without first satisfying the amount that he shall thus owe. In order that the contents of this my decree may be well known to all, I order my governor and captain-general of the said Filipinas Islands to publish it in all the necessary places, and to send a copy of it to the provincials of the orders throughout the said islands, in order that they may give to its fulfilment the earnest attention to which they are obliged; for such is my will. Madrid, December 23, 1637.”

The copy of this decree existing in the Archivo general de Indias at Sevilla—with pressmark, “Audiencia de Filipinas; registros de oficio; reales ordenes dirigidas á las autoridades del distrito de dicha Audiencia; años 1635 á 1672; est. 105, caj. 2, leg. 2, lib. 4”—bears the following endorsement in the margin: “In order that no soldier or sailor in the Filipinas Islands who may be indebted to the royal treasury may take the vows of religion without first satisfying the amount of his debt.”

10 *Dominicans*.—Domingo Gonzalez came to the islands in 1602; for several years he was an instructor in theology in the cathedral of Manila, and afterward spent five years as a missionary in Cagayan. Returning then to Manila, he was rector of the college of Santo Tomás, provincial of his order (chosen in 1633, and again in 1644), and commissary-general of the Inquisition for sixteen years. He died November 5, 1647, at Manila, at the age of seventy-three.

Francisco de Herrera came with the mission of 1598. He filled numerous important offices in the order—among them, those of provincial (1629–33), rector of Santo Tomás, and commissary-general of the Inquisition. He died at Manila, August 9, 1644.

Antonio Gonzalez accompanied the mission of 1632, and at first was an instructor in Santo Tomás; but early in 1636 he went to Japan, where he suffered martyrdom, September 24, 1637.

Sebastian Oquendo also began his labors in the Philippines as instructor at the college in Manila; he afterward held various offices in the convent there, but died at Méjico in 1651. (All these notices are

obtained from *Reseña biográfica*, vol. i.)

Augustinians.—Juan de Montemayor came to Manila in 1613. He held important posts in the order, and was minister in several Indian villages; and died at Manila in 1638.

Alonso Carbajal arrived at the islands in 1618. Among the posts of honor which he held was that of provincial (1644), and more than once he declined a bishopric offered to him. He also spent several years in missionary labors, among the Pampangans and Visayans, and died therein (1654).

Diego de Ochoa had just come (1635) to the Filipinas mission; he ministered in several villages in Luzón, and died in 1648. (These notices are obtained from Pérez's *Catálogo*.)

Franciscans.—Gerónimo del Espiritu Santo came to Manila in 1633, and in the following year became vicar-provincial. He accompanied the sisters of St. Clare to Macao (1634), who founded there a convent of their order. From January, 1635, to June, 1637, Fray Gerónimo was minister-provincial; he then retired to Sampaloc, and in 1638 departed for Mexico. The ship was wrecked on the Marianas, and this priest, refusing to save his life while he could console the dying, perished with the rest, September 21, 1638.

Jose de Santa Maria began his labors in the Philippines as early as 1621, and seems to have been a missionary among the Indians from 1626 to 1637. He was minister provincial during the first half of 1638; and died at Manila in 1645.

Vicente Argent arrived at Manila in 1630. In alternating periods of his life he was a missionary among the Indians, and an official of his order at Manila; from January, 1643, to January, 1646, he was minister provincial. In 1656 he sailed for Mexico, but died at sea, before reaching Acapulco. (These notices are obtained from Huerta's *Estado*.)

11 Another copy of this episcopal decree (found in one of Corcuera's letters dated June 30, 1636) gives the name as here, but adds, "(I mean Santa Monica)"—an error of Corcuera's transcriber.

12 These last two names, with Fray Gaspar de Santa Maria and Fray Alonso de San Joan above, are apparently those of Recollect priests; but there is no available information regarding them.

13 *i.e.*, "by the very act, immediately incurring canonical censure, already imposed."

14 A reference to the canons of Clement V, which are contained in the collection called *Clementinas*, published by John XXII.

15 Reference is here made to a long and vexatious controversy over the spiritual jurisdiction of Santa Cruz and Quiapo, between the Jesuits and the diocesan authorities; it was settled in favor of the Society, but not until 1678. See Murillo Velarde's account of this dispute, in his *Historia*, fol. 89 verso-91. Cf. Colin's *Labor evangélica* (ed. 1663), p. 813; and La Concepción's *Hist. Philipinas*,

pp. 281, 286. Santa Cruz is on the shore of the Pasig River opposite Manila; above it lies Quiapo, and below it Binondo (an island formed by two bayous from the Pasig). As previous documents have often mentioned, Binondo was inhabited chiefly by the Chinese, as also was Santa Cruz.

16 Diego de Bobadilla was born at Madrid, September 19, 1590; and at the age of sixteen entered the Jesuit order. He came to the Philippines in 1615, and spent fifteen years as an instructor in the Jesuit college at Manila, and five years as its rector. In 1637 he went to Rome as procurator for his order, and returned in 1643 with a band of forty-two missionaries. Again he became rector of the college, and in 1646 was elected provincial. While making an official visitation of the Mindanao missions, he died at Carigara, February 26, 1648. See Murillo Velarde's sketch of his life, *Hist. Philipinas*, fol. 159, 160.

17 Francisco Pinelo, who had been prior of the Dominican convent at Tabora, Portugal, came to the Philippines in 1632, where for some time he was vicar of San Telmo at Cavite. Afterward he went to Europe on business of the order—part of which was to secure the dissolution of the Congregation of St. Paul, formed by Fray Diego Collado, in 1636, with the Dominicans who came then with Corcuera (who were called *Barbones*; see Diaz's account *ante*, p. 161). Pinelo remained in Spain, dying in the convent at Segovia, January 23, 1643. See *Reseña biográfica*, i, pp. 391, 420.

18 There is an evident play on words in this passage. The original reads: "*Que le auian hecho papa ó papilla y que con el les auian querido dar papillas.*" "*Papilla*" is the diminutive of "*papa*"—meaning "pope," or "pap"; and the phrase *dar papilla* is used to mean "deceiving by insidious caresses."

19 Referring to Juan de Zumárraga, guardian of the Franciscan convent at Abrojo, Mexico; who was appointed (December 12, 1527) the first bishop of the new diocese of Mexico, and protector of the Indians. He filled these offices ably, although his energy and zeal made him numerous enemies. He was made archbishop when the diocese of Mexico was raised to an archdiocese (by papal bull of July 8, 1547); but on account of his great age he declined the honor, and died (June 3, 1548) a few days after those documents arrived, being eighty years old. A cloud upon his memory is the ruthless and vandalic destruction, under his direction, of the Aztec images, manuscripts, and other records, both public and private, for which his agents made close search, not only in the City of Mexico but in all the larger cities and towns—a cruel and irreparable loss to scholars and historians. See Bancroft's *History of Mexico*, ii, pp. 297–300, 556–559.

20 Apparently alluding to the penitent thief who was crucified with Christ.

21 *Secuestrarle*, in MS.; but compare the same letter in Diaz's narration, *ante*, where the word is *secuestrarme* ("sequester my" property).

- 22 A line is omitted here by transcriber; see Diaz's copy, as above.
- 23 Francisco de Paula, a native of Segovia, arrived at Manila in 1618, where he ministered to the Chinese, and afterward gave instruction in the college of Santo Tomás for sixteen years. He filled numerous important posts—among them that of provincial (twice), and commissary-general of the Inquisition; and not long before his death he had been appointed bishop of Nueva Cáceres. He died at Manila, April 5, 1664, at the age of sixty-seven.
- 24 The only friar of this name who is mentioned in *Reseña biográfica* came to the islands with the mission of 1635; "he returned at once to España, summoned by his Majesty to take charge of the chair of mathematics at the court, with a stipend of one thousand ducados a year."
- 25 Antonio Gomez de Espejo was born in Manila, in 1604; and made his profession in the Dominican order, at the age of twenty-one. He ministered in various Indian villages in Luzón; and in 1678 died, at Lallo-c.
- 26 Pedro Fernandez de Ledo, a native of Mexico, made his profession as a Dominican friar in 1625, at the age of seventeen. He was one of the faculty at Santo Tomás until 1651, when he was chosen prior, and afterward provincial. Ledo died at Manila, October 15, 1662; soon afterward, his appointment to a bishopric was received there.
- 27 Applied to a crime that may be tried either in ecclesiastical or secular courts.
- 28 Dispensation for receiving orders outside the time specified by the church.
- 29 Perhaps some allusion to a well-known proverb or saying.
- 30 There is no direct clue to the authorship of this document; but it was evidently written by a lawyer, and one who sided with the Jesuits and the governor. It is possible that this was Fabian de Santillan, appointed by that order as judge-conservator; it would be very natural for him, from prudential motives, to mention himself in the third person in the letter, knowing that it would almost certainly be read by others than his correspondent.

Request for Jesuit Missionaries

Sire:

The Order of the Society of Jesus is serving your Majesty with great love, without ever refusing to do what is asked from them in your royal name—not only as chaplains for the galleons, but for the forts, the missions, and whatever else is entrusted to them. They do not object when it is necessary to decrease their stipends somewhat; for they are vassals in both good and ill treatment. They do not receive members in these islands, for those who are of excellent ability are very rare; and, as your Majesty knows, they readily dismiss those who do not walk on the highway and heed the royal law.¹ For this reason your Majesty's governor is relieved in his conscience, whenever he asks for any member of that order, to occupy him in your royal service; for the governor has no need of investigating or inquiring into the qualifications of the religious given him, for the superior has considered them thoroughly, and they know the intention to change them when advisable. This relief for the governor is not enjoyed with all [the orders]. Consequently, I petition your Majesty, in all humility and reverence, to be pleased to have these islands furnished with subjects of this order from España, to the number that your Majesty can send from it, and fewer from the other orders. Your Majesty will be served, and God our Lord also. I assure your Majesty, as a good vassal, that neither prepossession nor prejudice influences me to make this report, but the belief that I am thereby discharging the obligations of my conscience. May our Lord preserve the Catholic person of your Majesty in its greatness, as is needful to Christendom. Cavite, June 19, 1636. Your Majesty's vassal kisses your feet,

SEBASTIAN HURTADO DE CORCUERA

¹ There is here a play on words, the text reading, *que no andan Por El camino R^l y derecho*. *Derecho* has a now obsolete meaning, “road,” or “path.”

Letter from the Bishop of Nueva Caceres to Felipe IV

Sire:

We vassals and servants of your Majesty, who behold ourselves so far from your presence and in so remote districts in these Filipinas Islands, are ever desirous of knowing of your Majesty's health, which may God our Lord give you for many years; and in much greater troubles we declare with the holy king Josias: *Cum ignoremus quid agne debeamus hoc solum residuum havemus ut oculos nostros dirigamus*, etc. This remedy alone is left us, namely, to turn our eyes toward your Majesty, as to our natural lord and sovereign; indeed there is great need that your Majesty apply with your powerful hand that remedy that is necessary in the affairs in these islands that are happening with the archbishop of this city of Manila, and the orders of St. Dominic, St. Francis, and the Recollects of St. Augustine. They, irritated because Don Sevastian Hurtado de Corcuera, who is now governing these islands, has restrained them and limited their excesses, have united with the said archbishop, and have endeavored to impair his [*i.e.*, the governor's] Christian actions directed to the service of God our Lord and of your Majesty, and the increase of your royal treasury. They preach in the pulpit things unworthy of that place, trying to seduce the citizens, both in that place and in their houses, irritating them and making them restless, and disturbing the peace and quiet of the community. They cause innumerable scandals, by reporting which I might enlarge this letter to great details. In fact, Sire, they are trying to make themselves masters of the spiritual and temporal. In all the provinces of these islands they live so absolute masters of all things that they do not recognize your Majesty. For they say openly in their missions that they are kings and popes. They hold the Indians so subject, and have such control of the wills of the alcaldes-mayor in their districts that the latter neither administer justice nor can do more than the religious wish. And if, perchance, they exceed that, the

religious impeach them, and try to discredit them. They live without God, without king, and without law. For them there are neither bulls of his Holiness nor decrees of your Majesty, nor Council of Trent or of Mexico; nor do they recognize any bishop; for, even in regard to the administration of sacraments, they say that the bishop is not their prelate. Without his consent they confess and marry, although they are not curas. In short, they live as they please, and there is no further law than their own wills. They are more notorious traders than those who are traders by profession. Their only efforts are to increase their convents, taking away from the bishops the benefices and patrimonies which your Majesty has given them. In such condition do they keep these islands that I have considered it advisable to come to this city and to leave my bishopric of Caçeres. I am resolved not to return to it, while there should be any discalced Recollect Franciscan friars, for their life is not that of religious. Those sheep are at my account; and I can but poorly instruct them, if whatever I build for them in one part is destroyed for them in another. They [*i.e.*, the friars] are a mischief-making folk; and although I know that Don Fray Hernando Guerrero does not possess the talent that he ought to have for the position which he occupies, I consider it beyond doubt that if the friars had not perverted him by their ambition and haughtiness, he would not have committed so many blunders, nor would he have given cause that through them the royal Audiencia of your Majesty would pronounce him an exile from your kingdoms, banishing him for some days to an island six leguas from Manila. But as the governor has learned that his sin was one of ignorance, and that he was carried away so greatly by the prejudices of the orders, who have advised him to what has not been for his good, the governor has contrived to have the said royal Audiencia, in the exercise of kindness and clemency, return the archbishop to his church—as, in fact, has been done. It was the act of a Christian gentleman; for not only has he not paid any attention to the annoyances that they have caused him, but, just as if he had received many acts of kindness from the said archbishop, he has given him prudent counsels, directed to his peace and to the service of God and of your Majesty. I fear lest they will prove of no use to him, for the religious are disturbing and disquieting him.

In order to visit the friars of my bishopric, which the religious there would not permit, it was needful to seek the aid of your Majesty from your governor. He gave me a dozen soldiers with a corporal, so that they might guard my person; and yet the friars refused to let me visit them *de moribus et vita*¹—saying that they knew of no royal decrees, bulls of his Holiness, or decrees of councils, that treat of the matter, and they shut the doors of the churches against me. Let your Majesty judge whether I have courage to return to my bishopric, among such people. They have tried to kill me, and God does not oblige me to go there, since I know what they will do, and that such a course would place me in danger. So many lawless acts in men who say that they profess religion are worthy of correction. This is hoped from your Majesty as soon as possible; for, if it be delayed long, I doubt whether these islands can be saved. For there is no measure that the governor enacts for your Majesty's service that they do not resist and oppose *in toto*. The most effective method that I find for cutting roots that produce so evil fruit is to deprive the religious of their missions, and send virtuous seculars to serve these in their stead. May God put His hand to the work, so that so many disorders may be driven out. May He preserve your Majesty in your greatness for the many years that Christendom needs. Manila, June 20, 1636. Your Majesty's humble chaplain and servant, who kisses your hands,

FRAY FRANCISCO, bishop of Cazerres.²

¹ That is, to inspect their morals and mode of life.

² Fray Francisco Zamudio, an Augustinian by profession, was a native of Mechoacán, Mexico. Little information about him is available; but Pérez says that Zamudio was in Manila in 1594, and died in 1636—an event which, according to Delgado (*Hist. de Filipinas*, p. 178), occurred in 1639. Diaz's mention of it, however (pp. 197–198, *ante*), would imply that the earlier date was the correct one. Pérez does not mention the fact that Zamudio became a bishop.

List of Prominent Ecclesiastics in Manila and the Islands

Memorial on the state of the ecclesiastical cabildo of this cathedral of Manila, and the dignities which are subject to his Majesty's appointment; and the persons who are serving them in the meantime by appointment of the governor, and their qualifications, origin, and ages.

The dean is named Don Miguel Garsetas. He is a native of Toledo, and came to these islands more than thirty-eight years ago. He is not a graduate. He was given the deanery, to serve *ad interim* after the death of Licentiate Francisco Gomez Arellano, and your Majesty favored him with a confirmation thereof. He is more than sixty years of age.

The archdeaconry was held from your Majesty by Don Alonso Garcia de Leon; and at his death the governor gave it to Juan M^{re} to serve it *ad interim*. On the death of this said person it was given to Don Francisco Valdes, who likewise served it *ad interim*. He is a secular ecclesiastic. He placed his resignation in the hands of Governor Don Sebastian Hurtado de Corcuera because—I would rather not admit it—of a very serious simony; as it has now been well established that Master Don Andres Arias Giron, claimant of the said archdeaconry, promised the said Don Francisco de Valdes five hundred pesos of income to make the said resignation, as he did. Thereupon the said governor gave the appointment as archdeacon to the said Don Andres Arias Giron, on account of the latter's illegal negotiations and gifts—on which account I came to be exiled from the kingdom, and fined two thousand ducados, because I would not give the collation inside of an hour. He was excommunicated and posted on the bulletin,¹ as a result of his visitation which I conducted; and there were many very ugly accusations to prove against him, which had been brought up in court. He has now admitted that he is not archdeacon, because the collation was given him by a judge thrust into that office, for I had left my vicar-general and

two ecclesiastical governors whom I had appointed. He sent, while on his deathbed, asking me to give him the collation for the said archdeaconry; but I did not do so because it is not expedient, according to the opinion of learned men. From this it follows that the stipend from the royal treasury ought not to be paid him; and, if it is collected, your Majesty may command that it be returned from his property to the royal treasury.

The office of precentor was held for your Majesty by an honored secular ecclesiastic named Santiago de Castro, who died a number of years ago. Since that time it has been served *ad interim* by four others, with appointments from the governors. He who serves it at present (likewise *ad interim*) is named Master Don Gregorio Ruiz de Escalona, who came to this country with his father (who was your Majesty's treasurer) as a boy, and studied in these islands, graduating as a master of arts. He is a good student, and is thirty-two years of age.

The office of school-master was, on the death of the man who held it, given by your Majesty to a secular ecclesiastic, Don Alonso de Campos, who was in Nueva España and had lived many years in these islands. Although authority was sent for the members of the cabildo to take possession for him, they would not give it to him because in the foundation of the church it was decreed that candidates for these dignities must be graduates. Although the said Don Alonso de Campos procured a decree from your Majesty dispensing with the said act of foundation for this time, the cabildo would not receive him even then, although he sent a second power of attorney. They accepted a man who is filling the office by appointment from the governor of these islands, who is named Don Fabian de Santillan. Not only is he not graduated, but he is ignorant and lawless; and for his excesses while a canon *ad interim*, he was excommunicated, and kept out of the cabildo for four months. Although he has no qualifications for the dignity, and is serving merely *ad interim*, contrary to the fundamental rule of the church, he was accepted as judge-conservator by the fathers of the Society, and proceeded in the manner of which I have advised your Majesty. He is a creole of this country, and his ancestors came to serve Governor Don Francisco Tello, formerly of these islands. He is only present in the choir on rare occasions; and he it is who causes all the hard feelings,

misunderstandings, and quarrels in the cabildo, losing the respect of all its members, as well as mine. He is about thirty-four years old, more or less.

The treasurership was held for your Majesty by Thomas de Guimarano, and on his death the governor gave it to Don Juan de Achoteguy Olaso, as a favor, for he is an uncle of the master-of-camp. He is serving *ad interim*, contrary to the fundamental rule of the church; for he is not only not graduated, but hardly knows Latin, and has no ability which would make him capable of being a dignitary, or even for being a member of the cabildo. He came from España with his nephew, the master-of-camp. He must be about thirty-four years of age, more or less.

The first canonry is held for your Majesty by Juan de Miranda Salazar, through the death of Don Juan Valentin. He has served in the church more than thirteen years, and is a very good singer. He is not a graduate, although he knows Latin and has studied, having been for some years steward of the cathedral; and he has acquitted himself very well. He is a native of Nueva España, and came to this country as a boy. He is about fifty years old.

The second canonry, on the death of the man who held it, was given by your Majesty's favor to Don Francisco de Valdes, who would not accept it, as he was serving *ad interim* in the dignity of archdeacon, which he held for some years. He is the secular ecclesiastic who resigned the said archdeaconry to the governor, as I have said above, for the reasons mentioned. This canonry is being served by him *ad interim* through nomination by the former governor, Don Juan Cerezo, who came to govern *ad interim*. He is not a graduate, although he knows Latin, and is an honored and exemplary ecclesiastic. He was this year made steward of this cathedral, and is acting satisfactorily. He is fifty-six years old.

The third canonry was held for your Majesty by Doctor Juan M^{re} Briseño, and on account of his death two or three have served it *ad interim*. At present it is being served likewise in the same manner, through appointment by Don Sebastian Hurtado de Corcuera, by Bachelor Don Pedro de Quesada, son of the auditor Quesada, who died in Mexico. He came to this city with his brother Don Juan de Quesada, fiscal of your Majesty. He is a

canonical lawyer, and for this reason I have appointed him as our provisor and vicar-general. He is about thirty-two years of age.

The fourth canonry, which was served by Thomas de Guimarano, and was left vacant when your Majesty favored him with the treasurership, was last year discontinued, in accordance with what your Majesty ordered me by his royal decree.

The first racion that your Majesty has confirmed and granted arrived last year for Master Don Gregorio Ruiz de Escalona. He did not use it, as he is serving the precentorship *ad interim*, as I have said above. The said racion is being served *ad interim* by Pablo Rodriguez, a fine singer, who has served in this church many years, and is of great service here. He is a Portuguese, and is about sixty years old.

The second entire racion your Majesty had granted to Juan de Miranda Salazar, and it became vacant when he was promoted to the canonry, as I have said above. At present it is being served *ad interim* by Bachelor Diego de Gastetu, who came from Nueva España in search of his father (who is in this city, and is a regidor here). He has studied here, and is about twenty-nine years of age.

The first media-racion has never been filled by your Majesty, and the governors have made appointments to it. It has been held by many different persons, and at present is served *ad interim* by Bachelor Luis de La Calle, who is ordained as reader on the gospel side [*del evangelio*]. He was born in this city, of an honorable family, and graduated as a bachelor of arts. He is a virtuous and exemplary youth, and serves punctually in the cathedral. He is twenty-three years of age.

The second media-racion has been served by many persons, with the governors' appointments, and at present is served *ad interim* by Pedro Flanio, who came to this country as a soldier, studied in the college of the Society, and is already a priest and bachelor of arts. He is about thirty-five years of age.

FRAY HERNANDO, archbishop of Manila.

Memorial on the honored and able ecclesiastics in these islands, furnished in case your Majesty should be pleased to have removed from the cathedral those who are serving ad interim contrary to its fundamental rule, and who have not qualifications, so that your Majesty may name others in their places.

Licentiate Don Pedro de Monrroy, a learned man and an exemplary gentleman, is known to be from Badajoz. In the time of my predecessor he was provisor and vicar-general, and commissary of the crusade for four years, acquitting himself very well. During my time he has been provisor and vicar-general one year, and would have been that still if Governor Don Sebastian Hurtado de Corcuera had not disturbed him; for there is no one of more ability, or longer in service, or more fit for the said office, and for any dignity of the cathedral whatsoever.

Doctor Juan Ochoa de Arriola is a very learned ecclesiastic, and an excellent preacher. In his graduation as doctor, he made very evident his great competency and ability. He obtained the curacy of the port of Cavite (which is one of the best hereabout) in a competitive examination, in which he was opposed by very learned men and masters. He might honor the cathedral with his person and learning, if your Majesty would grant him the favor.

Master Don Juan Fernandez de Ledo is a learned man and a good preacher. He served the canonry *ad interim* in the cathedral, and it was taken from him last year because the one which he was serving happened to be the one which was suppressed. Last year he was provisor and vicar-general, and deserves that your Majesty should honor him with a place in the cathedral.

Master Juan de Velez is a learned man and a very good preacher. He is at present proprietary curate of the cathedral, which place he obtained in competition.

Master Francisco Martinez de Paz is a learned, virtuous, and exemplary man, and knows the language of the Tagal natives of this province. He

lately obtained the living of Lobo and Galban in competition, as he is a good minister.

Master Pablo de Avalos is a learned and exemplary man. He last year obtained in competition the benefice of Santo Thomas, which is an allotment of Tagal Indians, as he knows their language very well.

Licentiate Don Juan de los Cobos is a learned and exemplary man, who has been six years governor of the bishopric of Nueva Caceres, *sede vacante*, where he acquitted himself well, and is today chaplain of the royal college of Santa Potenciana.

Licentiate Manuel Rabelo is a learned man, and is a very good preacher in Spanish and in three native languages, each different from the other. He has the benefice of the district of Tabuco, as he is as well acquainted with the Tagal language as are the Indians themselves; and he is loved by them, because he treats them with gentleness.

Licentiate Juan de Arguijo Plata has long been versed in canon law, and had experience in this country; he has been for many years the fiscal-promoter of this archbishopric, and has been so often before.

Bachelor Amaro Diaz is a very virtuous and exemplary ecclesiastic, well liked by all, and trustworthy in any office.

Bachelor Diego Donoso, chaplain of this royal Audiencia, is a learned man and well liked.

Licentiate Don Bartolome de Cañedo is master crossbearer.

Master Josef Cabral is a learned man, a preacher, and well versed in the Tagal language. He has the benefice of the district of Balayan, which he obtained in competition. He is much liked by the Indians, as he treats them with love and gentleness.

FRAY HERNANDO, archbishop of Manila.

The year 1636. Memorial of the dignities and other prebends of the cabildo of this cathedral of Manila; and of those which are confirmed in order to be served ad interim.

The dean is named Don Miguel Garzetas. He came to these islands thirty-eight years ago, and is more than sixty-six years old. He is a graduate in no branch of learning. He is a good ecclesiastic, and is present in the choir whenever his health permits. He has your Majesty's confirmation for the said dignity. At present he has enjoyed it ten years, more or less.

The archdeacon is named Master Don Andres Arias Giron. He has been the stone of offense in this city, through his empty pretensions, trusting to the fact that he has thirty thousand pesos, which he acquired—quite unscrupulously, as is publicly known—in profits from Indians where he held benefices. He is a creole of this country, thirty-four years of age. Although he has the title of master of arts, it was given to him more through his schemes than for his learning. He has been an evil example with his licentious mode of life, for he is of kin with the Biscayans, who have the most power in this country. About two months ago the governor gave him the appointment of archdeacon, although the dignity was not vacant. They exiled me from the kingdom and condemned me to two thousand ducados fine, because I would not give the collation, he being at the time excommunicated. It was given to him by an unauthorized judge, while I was exiled and had left governors for the archbishopric. I am certain that the master of the schools, who is investigating it for the cabildo, will inform your Majesty of this in a very distorted way; for he is a great friend to the said Don Andres Giron, and gave him entertainment and presents when he exercised the duties of judge-conservator, and they did not leave each other's side. He cannot enjoy the income which your Majesty gives him from your royal treasury with a good conscience, for I have not given him canonical investiture; nor can it be given or confirmed, conformably to clause seven of the royal act of patronage; for he is guilty of many grave misdeeds, which will be presented in the royal Council. Rather, he is deserving of punishment; for he brought this commonwealth to the verge of ruin, as will appear from the relations and other information.

The precentor is named Master Don Gregorio Ruiz de Escalona. He is a learned and exemplary man, a son of your Majesty's treasurer, Juan Ruiz de Escalona, who died, and brother of the treasurer who now fills the place, Don Baltasar de Escalona. He is thirty-three years of age, and came from España while a boy, with his parents. He has served in this cathedral for ten years as a medio-rationero, an entire canon, and master of school. At present he has been precentor for about a year and a half, all the time *ad interim*, until this year the confirmation of the prebend which he held arrived. He is a good preacher and has ability; and your Majesty should favor him with some of the dignities for his virtue, learning, and exemplary life.

The schoolmaster is named Don Fabian de Santillan. He is a creole of this country, and is thirty-six years of age, more or less. While he was chaplain to Don Juan Niño de Tavora, formerly governor of these islands, a canonry became vacant and was given to him. He has studied no branch of learning, except Latin; and if he knew that well it would not be so bad. While he was a canon he was suspended from the cabildo for four months, on account of his licentious life and evil example. He has lost the respect of the dignitaries on every hand, for his arrogance. He was given the said dignity a year and a half ago, by the intercession of Licentiate Marcos Zapata de Galvez, the auditor, as the latter was under obligation to his relatives and sisters—contrary to the fundamental rule of the church, which commands that they should be graduated. He exercised the office of judge-conservator, in which he insulted me, and posted me on the corners as excommunicated within twenty-four hours. He had not been recognized as judge, nor presented papers for it, as will appear from the information which was sent in regard to this.

The treasurer is named Don Juan de Achotequi y Olasso. He is the uncle of the master-of-camp, and is ignorant and of little ability. He was given the said dignity contrary to the fundamental rule of the church, which commands that he should be a graduate. He came from España about ten years ago, and is about thirty-six years of age. He merits no dignity. He has no confirmation from your Majesty, having enjoyed the place three years, and having been first canon.

The first canon, who has served longest in the church, is named Juan de Miranda Salazar, who came from Mexico while he was a boy. He has studied nothing but Latin. He was a prebendary several years, and for nine years has been a canon. This year he received the confirmation of your Majesty. He is a very good singer, and exemplary of life; he has been many years steward of the cathedral, and has attended to this very well. As having served so long in the said church, he deserves that your Majesty should favor him. He is forty-four years old.

The second canon is named Don Pedro de Quesada. He is a graduate in canon and civil law. He came from Mexico with his brother Doctor Don Juan de Quesada, who was fiscal of the Audiencia about seven years ago. He is about thirty-four years of age, more or less, and has served the said canonry more than six years. He is a learned man, and might be favored with some dignity. He has no confirmation.

The third canon is named Pedro de Rivera. He is more than sixty years old. Don Juan Cereço, who came as governor *ad interim*, brought him with him as his chaplain, and when he was done with that office, gave him the canonry. He has not had it confirmed, as he has not enjoyed it much more than two years. He signs himself “Bachelor,” although this is a misrepresentation.

The fourth canon is named Master Don Juan Fernandez de Ledo. He came when a boy from Nueva España, and is a learned man and a good preacher. At present he is exercising the duties of provisor; and his father, Doctor Don Juan Fernandez de Ledo, holds the office of fiscal in the royal Audiencia *ad interim*, owing to the death of the proprietor. He is thirty years old, and was given the canonry a little more than a year and a half ago. It is not confirmed.

The first racionero is named Pablo Rodriguez. He is a Portuguese, and has been many years in this city. He is a very good singer, and serves very well in the choir. He is about seventy years old, and has enjoyed the racion more than seventeen years, without its being confirmed.

The second racionero is named Diego de Veas [*sic*]. He came to this country as a soldier, about nine years ago, and is about twenty-eight years of age. He is a bachelor of arts, and was given the racion about a year ago by an exchange which he made with the man who held it.

The first medio-racionero is named Pedro Flanio. He came as a sailor to this country fourteen years ago, and is about thirty-four years of age. He is a bachelor of arts, and has held the media-racion for a little more than two years. It is not confirmed.

The second medio-racionero is named Luis de la Calle. He is a creole of this country, and is ordained as reader on the epistle side. He is graduated a bachelor of arts, and is a virtuous and exemplary youth. He exchanged with the person who held this media-racion, for a chaplaincy. He is twenty-two years of age, and has served a little more than two months.

Memorial of the deserving and honored ecclesiastics in this city, besides those mentioned by the cabildo, so that your Majesty may be informed in regard to them and can favor them. They are as follows:

Licentiate Don Pedro de Monroy, a lawyer, was provisor and sub-delegate of the crusade for four years, in the time of our predecessor, Don Fray Miguel Garcia. When I entered into the government last year, as he was the most worthy I gave him the office of provisor and vicar-general—which he was obliged to leave because of Governor Don Sebastian Hurtado de Corcuera; for that gentleman was anxious for it, and we had a great many disputes over it. He ordered that Don Pedro should not be allowed to go in or come out through the gates of the city; and the judge-conservator made some accusations against him which obliged him to conceal himself and retire, later, to the convent of the Dominicans, entering disguised, in the habit of a Franciscan. He is a very exemplary clergyman, of good life. My predecessor informed your Majesty of his abilities and excellent conduct. It would greatly please me if your Majesty would order by a royal decree that he be restored to the office of provisor and vicar-general, which [he holds] by my consecration (which is the only one adequate for the said office), and as there is no one else who can fill his place in these islands. I do not dare to

do this, for the governor would oppose it, and we would have many disputes; and Don Pedro has suffered many hardships for defending the immunity of the church.

This city contains another grave and learned ecclesiastic, who is called Licentiate Don Francisco Montero Saavedra, who has been visitor for several bishoprics, and cura of the cathedral of Cebu. I sent him to Goa in the month of December past with two other religious, in his own boat, in order to give an account to his Holiness and to your Majesty of the grievances and affronts which have been offered me by the judge-conservator who was appointed by the fathers of the Society. He must have already arrived at your court, and deserves that your Majesty should favor him for his great ability, and for the trouble which he has taken in returning [to Europe] for the affairs of the church.

The third is named Master Juan de Veles, who is curate of this cathedral of Manila. He is a learned man and a good preacher, and exemplary in his mode of life. For two years he has been judge of wills and chaplaincies. He sent his papers approved.

The fourth is named Licentiate Don Juan de los Cobos. He has been governor of the archbishopric of Nueva Caceres for ten years, and has acquitted himself well in what was entrusted to him. At present he has just finished visiting the districts of the clergy in this archbishopric.

The fifth is named Bachelor Amaro Diaz, who is a very virtuous ecclesiastic, of so exemplary and moral life that no one is more so; and he can be trusted in any matter whatever.

The sixth is named Gabriel de Muxica Buitran. He is an ecclesiastic who has been here long, and is rather aged. He is very exemplary, learned in archives, and very retiring.

The seventh is named Don Pedro Enriquez de Artosa. He is a gentleman, and has attended lectures in arts and theology. He is an exemplary ecclesiastic, and is well liked in this city on account of his character.

The eighth is named Don Bartolome de Cañedo. He is the son of one of the conquerors who served your Majesty many years in these islands. He is a prominent and estimable man and has attended lectures in arts and theology. He is at present my crossbearer [in processions].

The ninth is named Licentiate Manuel Rabelo. He has been long in this country, and is a learned man and a good preacher. On account of his qualifications he has obtained the best benefices which have been assigned; and at present has the district of Tabuco, twelve leguas from this city.

The tenth is named Don Diego de Velasco. He has studied arts and theology, and is the nephew of the most deserving, exemplary, and honored ecclesiastic that we have had in this cathedral—who was provisor for a number of years, and schoolmaster, and distributed all his property among pious works. He was named Don Miguel de Velazco.

FRAY HERNANDO, archbishop of Manila.

¹ Spanish, *tablilla*: a list of persons excommunicated, exhibited in churches.

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1. *Manila treasury accounts*.—"Simancas—Secular; Audiencia de Filipinas; cartas y expedientes del gobernador de Filipinas vistos en el Consejo; años 1629 á 1640; est. 67, caj. 6, leg. 8."
2. *Letter from Andres del Sacramento*.—The same as No. 1.
3. *Letter from commissary-general*.—The same as No. 1.
4. *Discussion regarding Portuguese trade*.—"Simancas—Secular; Audiencia de Filipinas; cartas y expedientes de personas seculares de Filipinas vistos en el Consejo; años 1635 á 1642; est. 67, caj. 6, leg. 41."
5. *Military services of Filipinos*.—The same as No. 4.
6. *Request for Jesuit missionaries*.—The same as No. 1, save the dates, "1629 á 1637."
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17. *Conflicts between civil and ecclesiastical authorities.*—In pp. 323–343.

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